

THE LAST DAYS OF
MARY STUART
AND THE JOURNAL OF BOURGOYNE
HER PHYSICIAN

BY

SAMUEL COWAN

AUTHOR OF

"MARY QUEEN OF SCOTS, AND WHO WROTE THE CASKEY LETTERS?"

"THE GOWRIE CONSPIRACY" "THE ANCIENT CAPITAL OF SCOTLAND"

ETC. ETC.

LONDON
EVELEIGH NASH

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DAYS OF MARY STUART, AND THE JOURNAL OF BOURGOYNE
HER PHYSICIAN ***

THE LAST DAYS OF MARY STUART



*Mary Queen of Scots.
From a Painting in possession of the Earl of Morton.*

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PREFACE

The *Journal* of Bourgoyne, which I had meant originally to be the text of this volume, is a work of some importance in helping us to elucidate the life and later days of the Queen of Scots. I have considered it necessary, for the benefit of the reader, to reproduce also a Summary of the voluminous correspondence which took place during the same period between Queen Mary and her confrères, and Elizabeth, and the leading ministers and secretaries of the Crown of England. The correspondence discloses the political manœuvres and secret negotiations of that eventful time—the last six months of Queen Mary's life: and the Summary occupies the first half of the volume. It has been impossible to restrict it further and convey to the reader what is meant to be conveyed—an intelligible estimate of her prison life, with all its painful vicissitudes. The letters have an important bearing on the character of the Scottish Queen, and illustrate the situation better than can be done by any criticism.

The fascination of Mary Stuart as the central figure of the greatest drama in Scottish history is an additional reason for putting another volume before the public, even though the literature on the subject is abundant; while Bourgoyne's *Journal*, now specially translated, we must remember, has not been much in evidence in its original form. It is really a domestic, not a political or daily, record, and is the only such record we possess, for no historian has attempted to give more than an outline of her public career. In this *Journal* there are entries of which we have hitherto been unaware; entries which manifest the cunning and deception of that age; chiefly and more particularly the administration of the Crown of England—thrilling reading—Elizabeth occupying the foreground and swaying the sceptre in a manner that must be read to be appreciated.

A large portion of the matter in this volume is published now for the first time, and to the rising generation the entire narrative will be quite new. The greatest point of historical importance resulting from a study of this *Journal*

is its determination, and settlement of all doubt, of the innocence of Queen Mary of having had any connection with any plot against the life of Elizabeth; or with that huge fraud the Babington Conspiracy. How this is established the reader will realise from the accompanying recital.

S. C.

PERTH, *1st January 1907.*

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THE LAST DAYS OF MARY STUART

CHAPTER I

The last act of the drama—Lord Burghley and Secretary Walsingham actively engaged against Queen Mary—Walsingham and his spies—Character of Walsingham—Plots of Elizabeth to take Mary's life—Savage, Ballard, Morgan, and Babington—Mary's pathetic appeal to Chateaufort—Text of her first letter—Text of her second letter—Elizabeth and Sir Amias Paulet—The famous memoranda between Paulet and Wade as to how Mary was to be kidnapped and her papers seized—Paulet's official instructions to kidnap the Queen—Elizabeth's confirmation of these instructions—Elizabeth's final orders to kidnap Queen Mary.

It may be said without qualification that no one who has not read the *Journal* of Bourgoigne can have an adequate conception of the life of the Queen of Scots during her last days. These have been very little touched upon by many of the writers whose works we possess, and the reason is obvious. The life of the Queen engrossed the attention of historians, and was in itself so eventful as to practically overshadow the later days of her career.

That momentous time forms the subject of this volume, and for those who are interested in the history of that period this narrative is more particularly intended. Bourgoigne's notes extend from August 1586 to February 1587, and his summary may be regarded as the best and most accurate we possess of Queen Mary's life during what may very properly be called "The Reign of Terror."

Mary was overwhelmed with humiliation and misery from her long confinement and the failure of all her plans to effect her escape, while her mind was constantly on the rack in order to protect herself from the espionage of spies, and the systematic intercepting of her letters, resulting in their decipherment and forgery. The correspondence of the time is voluminous, much of it bearing on the so-called Babington Conspiracy and the determined efforts of Elizabeth and Walsingham to involve Mary in that plot; Mary's release, and the plots originated to effect that release; and the mass of correspondence which these plots involved.

It would be an insufficient presentation of the case to say that Queen Mary's misery arose from her unwarrantable treatment. The treatment meted out to her by the express command of Elizabeth was, during the whole nineteen years of her captivity, one of studied and detestable cruelty, but for the period under review it was greatly accentuated. It was cruel, harsh, and inhuman, destitute of every element of justice and mercy, reminding us more of the barbarism of uncivilised rule in the dark ages,

“When wild in woods
The noble Savage ran,”

than of a court at the close of the sixteenth century with Queen Elizabeth and Lord Burghley at its head. It was a systematic course of torture, kept up daily and terminating with the disgraceful scene at the execution, when the feeble, and pitiable, and defenceless condition of the Queen might have aroused the compassion of her enemies, and spared her the outrage of Fletcher, the Dean of the Diocese, but it did not.

It is due to the Catholic party to say that every movement of Elizabeth was jealously and indignantly watched by them, while Mary's long captivity, coupled with the active reign of her son, seems to have materially toned down the enthusiasm so long felt for her in Scotland. From the businesslike way in which the official papers are now kalendered, we are able to give the text of documents which fifty years ago were not available, and to form a more accurate and intelligible estimate of the whole situation, around which so much controversy has arisen. To many readers these papers will be quite new. They are important as unfolding the intrigues of that turbulent age; the true, unvarnished character of the Queen of England, showing that her primary object was the destruction of the Queen of Scots, her part of the drama being to indicate the means by which that was to be brought about. Her disregard of truth, her duplicity, her indifference to cruelty and murder, and her strong resemblance in that respect to her father, Henry VIII., constituted her a notable member of the house of Tudor. Her treatment of the Queen of Scots is probably without a parallel in history; and it is a curious fact that during Mary's captivity neither her ministers nor her nobility, notwithstanding her unlawful conduct, could induce her to release, or modify the treatment of, the Scottish Queen. They experienced under her a “Reign of Terror,” but of a different kind from that of the unfortunate Mary.

Nor is any adequate reason given by her, certainly no *bonâ fide* reason, unless it were that Mary was the nearest heir to the Crown of England, and greatly her superior in every human accomplishment. A conspicuous element in this matter is the servility of her ministers. Burghley and Walsingham led the way as her lieutenants, while that poor creature, Sir Amias Paulet, was always ready and willing to torture the Queen of Scots and fall down and worship Elizabeth so long as he was paid to do so. These men were properly educated in the peculiar tactics and sentiments of their mistress. They knew her mind regarding Mary. They foresaw the end: that the latter was to be condemned, and that that was to be done, as afterwards appeared, by tampering with Mary's letters. Elizabeth's policy was absolute, disobedience to her commands being punishable with death.

Of the ability of Burghley there can be but one opinion, and it is extraordinary that he compromised himself with a scheme for the destruction of a defenceless and innocent woman for no other reason than to please Elizabeth. His attitude to Mary cannot be defended. Bourgoyne refers to him as a very vehement (very violent) man. That Burghley's private opinion was contrary to the attitude he was compelled to take up may, we think, be suggested. His conduct towards Mary was intelligible only as a stern command from his Sovereign. With Walsingham the case is different. He was a man evidently cast in a similar mould to that of his mistress, unscrupulous, unprincipled; and of all the villainy in connection with the Babington Conspiracy he may be said to have been the author: for in addition to intercepting and interpolating Queen Mary's letters by means of spies, and producing the material which accomplished her destruction, he executed in cold blood Anthony Babington and his eleven companions after a mock trial, or no trial at all, victims of a plot of his own creation, and because they were the only human beings who could prove Mary's innocence of this base and contemptible enterprise.

Walsingham's character is thus given by an eminent writer: ^[1] He was ambitious, cunning, heartless, and a liar. He also ruined more innocent persons than the whole of Elizabeth's Privy Council. It was he who overwhelmed the Earls of Arundel and Northumberland, destroyed the Howard family, covered the sea and the Continent with English exiles, and spread over Europe a leprous spying; while he encouraged, led on, and ruined Babington. And another writer ^[2] says of him: He completely

deceived Charles IX. and the house of Austria, fomented the insurrection of the Huguenots in France and the wars of the Low Countries at the time that he was trusted by both reigning houses. It is said that he employed in foreign courts fifty-three secret agents and eighteen spies, and that he had the wonderful art of weaving plots in which many people got so entangled that they could not escape. He obtained evidence of the setting out of the Armada by a copy of a letter written by Philip King of Spain to the Pope, procured him by a priestly spy, who bribed a gentleman of the Pope's bedchamber to steal the key of his Holiness' cabinet, and while the Pope slept to transcribe the letter and return the key. This summary of Walsingham's character fully corroborates his conduct to the Scottish Queen.

Though free from dread of Scotland, Walsingham conceived and carried out the most treacherous and shameful plot recorded in history. He himself led the Catholics to conspire against Elizabeth. He managed to implicate the Queen of Scots, that he might be able to massacre with seeming justice the royal prisoner and her defenders. His spies filled the ports, towns, and even seminaries. He made use of Catholic conspirators to accuse and ruin Mary. His task was easy; for it was quite natural that a Queen held against all right a captive for many long years should give way to hope and encourage those who might try to release her. ^[3] There is reason to believe that the plots for Queen Mary's release during the nineteen years of her captivity were pretty numerous, as the activity of the Queen and the Catholics of England, France, and Spain was unabated. These plots are practically unrecorded, the inference being that they all broke down from one reason or another before arriving at maturity. There were also plots by Elizabeth to take the life of the Queen of Scots privately, such as the one to have her drowned and the other to have her poisoned or executed in private, but these also fell through. The last plot for Mary's liberation had the elements of success had it been managed with greater skill and judgment. All the arrangements were as good as completed when it was discovered by Walsingham. It has been the subject of much controversy arising from the extraordinary nature of its negotiation and development. When every plot for Mary's release had failed, and her friends were wearied out with her long captivity, an English Catholic named John Savage, who had served under the Prince of Parma in the Spanish army, had a conference on the subject of Mary's release with

some of the priests at Rheims. At this conference Savage undertook the assassination of Elizabeth with his own hands. About the same time another plot was formed by Ballard, who had a conference with Charles Paget, Morgan, and Mendoza regarding an invasion of England and the deliverance of Mary. He arrived in London on 22nd May, when he met Babington. Babington had been a page on the staff of Lord Shrewsbury at Sheffield, but he was also connected with a good family in Derbyshire. Ballard, it is alleged, informed him of the proposed assassination, and that it would precede the invasion of England. Babington would not entertain the assassination, but he entered into a plot for the liberation of Mary—the Babington Plot. ^[4] These three men—Savage, Ballard, and Babington—were all executed for this plot. In Chapter XII. of this volume (appendix) we have reproduced some remarkable letters in connection with these plots for the Scottish Queen's release which throw additional light on the subject.

Before reproducing Bourgoyne's *Journal* it will be necessary for the reader's benefit to give a summary of the correspondence and political manœuvres of the period. The accompanying narrative will enable the reader to recognise Queen Mary's actual position and circumstances, and the unconquerable spirit she manifested to the very last in defending herself for nineteen years against the false and calumnious charges of her enemies. The people of Scotland appear to have been quite in the dark, and to have taken no part in the extraordinary proceedings that in her last days were going on.

One writer informs us that her death was not known in Scotland for a month after its occurrence, while the administration of the Crown of England for this period was almost wholly confined to her persecution and the creating of schemes by which her death might be accomplished.

When Mary abandoned all hope of getting satisfaction from Elizabeth, she addressed a communication on the subject to Chateaufort, the French Ambassador in London, setting forth the nature of her grievances, and desired him to discuss the same with Elizabeth. This letter leaves us in no doubt regarding the sufferings of the writer. She speaks plainly of the cruelty of Elizabeth and of the “infirm and pitiable condition to which eighteen years of imprisonment have brought me”; that for four years she had endeavoured to please Elizabeth, and had sent her secretary with *carte*

blanche to come to terms with her; but everything had failed. The Ambassador discussed it very seriously with Elizabeth, but made no impression. A few days after the despatch of this letter Mary wrote another to Chateauneuf, both of which we reproduce slightly condensed.

The letter to the French Ambassador speaks for itself, and gives us a better idea of her forlorn condition than any other paper we possess. It is painfully evident that she was reduced to the level of a criminal, and every comfort and every means of recreation denied her. Nobody was permitted even to approach the house where she was living without declaring their object, and no one was allowed to have access to her. "It is unreasonable," as she says, "to make me suffer for that of which I am not the cause." But that is not the most painful part of this pitiable letter. She adds, "And to speak still more freely, necessity making me, to my great regret, overcome shame, I began to be very ill attended to in my own person, and with no regard to my infirm state." Even if Mary had been guilty of all that was laid to her charge, this treatment by the English Queen was infamous, and what is to be said if she was innocent? It was only a month after the date of this letter that the kidnapping of Mary took place by Elizabeth's command. The letter was in the following terms:—

Queen Mary to Chateauneuf, end of July 1586, Chartley:

"In consequence of the small satisfaction which I receive in all that concerns my condition here, I am constrained once for all to represent by you to the Queen of England my very strong complaints in this respect, seeing that the more passively I have endured all this time to give proof to her of the determination which I had in complying in all and by all with her, so much the more they reduce me step by step to the utmost distress, without any regard to my rank and without consideration of the infirm and pitiful condition to which eighteen years of imprisonment have brought me, or recollection of the promises which the said Queen has made to me to the contrary. So that it appears that my enemies, who in expectation of my death being at hand, in my sickness had last summer slightly relaxed their rage against me, wish to retrace their former steps to hasten by evil and unworthy treatment that which they do not wish or are unable to execute otherwise, lest they make themselves openly culpable.

“I have constantly during the space of four years courted the Queen of England by the most advantageous overtures and endeavours and correspondence to come to the point of some good agreement with her, and at last I sent to her my secretary in a manner with *carte blanche*.

“I made such offers to her that herself and those of her Council wrote to me they could desire nothing more on my part; and in sooth there never was seen nor heard of a Sovereign prince imprisoned, rightfully or wrongfully, who has redeemed his liberty on conditions so unreasonable for himself. Not only has there been nothing further done with regard to my propositions for my liberation as I had been assured of it, but almost nothing of that which had been promised has been performed to me. Instead of the mission of certain of my servants to my son, which had been granted to me in order to make an end with him of the hindrance which they alleged he made to my treaty of liberation, and which they said prevented the Queen from going further into it, I have been shut up entirely out of the way and separated from him, in order the better to reunite him to our common enemies here and to expose or subject him to his rebellious subjects. For my safety in this bondage there is nobody of judgment who does not consider it less at present than in the hands of one of the peers and lords of this kingdom, of reputation, force, and power sufficient to preserve me against the attempts of my enemies whatever may happen; which has always been my principal desire since they have removed me from the custody of Lord Shrewsbury; and in that I do not mean to do wrong to my present keeper, whom in other respects I consider a very honourable gentleman and faithful servant of his mistress.

“With regard to my condition and treatment here, which the said Queen had expressly written to me she wished to do all things very honourably as far as to disclaim that of the past, I must say in a word that I find myself at the present time rather confined in a gaol than in a prince's captivity, much below me or whom they could by right of war or otherwise justly detain. I am interdicted from all private correspondence with my son, to whose welfare and preservation as I feel myself obliged to have regard, so much the more I have of sorrow and torture in being unable to render him this maternal duty in the straits and necessity wherein he very often is.

“As to my private affairs, you are aware of the severity exercised at Chartley when he came to give an account of them, so that his journey to me amounted almost to nothing.

“My servants' despatches are delivered to me with so much delay, and mine to them, that the opportunities usually slip away before I can make use of them, the necessity, nevertheless, for it being such, that I am put as they say to my last shift. The place in which I am is made so detestable by the severity which is exercised to all who approach to it even for the ordinary conveniences necessary for me and my servants, and I am seldom permitted to do good to any poor person in the neighbourhood, the distribution of my alms having been removed from me this year, that it was too apparent how much they endeavour to make me be reputed and held as some savage and complete stranger, and so insult those not only who should have some respect for me, but whoever will have anything to do with me and my servants.

“I have not until now had so much need of having a fixed residence in which I might settle myself with the conveniences requisite for my health, being but as one passing from inn to inn.

“In like manner the expenditure of my household remains, from what I hear, so uncertain that I cannot in any way check it, being always dependent on the goodwill of the person who shall have charge of me for retrenching and disposing of it as he shall think fit. The freedom promised for my exercise with some recreation has not been preserved to me, being now prohibited from going out on festival days, without considering that in consequence of my ailments, and that the time does not always suit, especially winter, I must take it when I can. Other encroachments have been made which I cannot construe, but the restriction and deterioration of my former state, instead of having it amended as they promised me: it serving no purpose to say that the time has not been suitable for it, owing to the disorders which have happened in Christendom, as they have always replied to me, except that they wish more plainly to say that they cannot find the time suitable for doing me a good act. It is unreasonable to make me suffer for that of which I am not the cause, and perchance the treaty between the said Queen and me had by it prevented a part. I had hoped that the evidence of my sincerity destroying in her impressions to the contrary would revive

towards me her good disposition, and procure for me the satisfaction of passing the little of life that remains to me in the close friendship which I have always so much desired with her. But alas! I fear that the evil has gone so far as to be irremediable, however I may endeavour to place the good against the evil, my enemies being unable to content themselves with this my long-suffering and imprisonment, or that in it I may never have any peace of mind or body. And to speak still more freely to you, necessity making me thereon, to my great regret, overcome shame. I begin to be very ill attended to in my own person, and with no regard to my infirm state, which deprives me in a manner mostly of all appetite. For which if they had been inclined to allow me to supply it at my own cost I should not have made entreaty. Being more than ever entirely hopeless of better treatment and of securing my condition and rest here for the future, I have resolved to renew more urgently than ever the request I have made to the said Queen all these years past for my liberation, conjuring her in God's name, and in as far as her conscience towards herself and honour before the world are dear to her, to see to it speedily. I entreat you very earnestly to interpose thereto as far as you can the weight and intercession of the King your master, my brother-in-law, as the mediator always proposed by me in that matter. The physicians are of opinion that there are no means left for preserving my life by strengthening my nerves from the weakness of which by want of exercise all my maladies proceed, but by some natural warm baths of Italy, which, being impossible to be had in this country, it seems to me that the said Queen, in the imminent danger in which she knows I am, ought to feel responsible for the evil consequences which may arise from refusing this last and only remedy.

MARIE R.”

The second letter was as follows:—

Queen Mary to Chateauneuf, 13th July 1586, Chartley:

“I do not know what determination has been taken for my change of residence and the passports of my servants; but my keeper for some days has shown himself much more vigorous and overbearing than ordinary, cutting off entirely all access round about this house from everyone whosoever, and intending to reduce the expenditure of my household as

strictly as he can, contrary to the order settled and decided by the Queen of England and her Council. If this restriction continues it will be the means of making my servants more weary of this prison and altogether insupportable to them. I have heard a report, but uncertain, that my keeper is to be discharged at the end of this summer, and some suppose I am to be delivered to the Earl of Shrewsbury, which I can with very great difficulty bring myself to believe. He speaks also of removing from me all the English servants which I have in my household. But I dare not take notice of anything until my keeper gives me a hint of it. In truth I shall not be sorry to change my host, for he is one of the most whimsical and austere persons whom I have ever known, and in a word fitter for a gaol of criminals than for the custody of one of my rank and birth. Besides that, in the event of the death of the Queen of England, I should think my life very insecure in his hands, from his little rank, credit, influence, and power, and especially in this quarter, where he makes himself exceedingly hated and ill-liked. There would be no harm in your speaking of it to Lord Burghley, but it should only be by way of conversation and from yourself on the authority of some of my friends in this kingdom, without giving him any ground of suspicion that the wind blows from this quarter.”



MARY, QUEEN OF SCOTS.
Watson Gordon Portrait

When Bourgoyne began this *Journal* the Queen would be fully eighteen years in captivity. It will be noticed that Paulet her gaoler appears to have had *carte blanche* from Elizabeth to treat her with every mark of cruelty. Every such act was communicated to her, and that she never disapproved of what Paulet did indicated her tacit consent to what was going on. Considering Mary's long captivity, and the weakness of her physical frame

as the result of that captivity, it is almost impossible to conceive that Elizabeth or her ministers could authorise such treatment as is fully set out in these letters. It would appear from this *Journal* and from other documentary evidence that Mary's life was doomed before any trial ever took place at Fotheringay. Paulet's execution of Elizabeth's orders, no doubt well discussed at the Privy Council, was to lead up as it did to Mary's execution. Her first act towards that end as recorded by Bourgoyne was the bogus Stag Hunt at Chartley—the kidnapping incident. What could be more disgraceful than that proceeding?

It is briefly referred to by some historians as merely the removal of the Queen to Tixall, but Bourgoyne's *Journal* discloses the true nature of the transaction; and the full description given by him, which may be accepted as authentic, shows that this outrage was an act of kidnapping pure and simple. On 3rd August there was a conference to arrange the details, between Paulet and Wade, the latter one of Elizabeth's secretaries. The narrative of this private conference, which evidently was not intended to be made public, affords us a side-light into the machinations of the period, and identifies Elizabeth with this crafty and cunning plot. The composition of the narrative is evidently hers, and the plot was carried out to the letter. (See Bourgoyne, pp. 160-70.) At this conference Elizabeth's questions were put down accompanied by Paulet's answers.

The reader will notice that the principal event is left to the last; that the seizure of Mary's papers and the seizing of Nau and Curle are plausibly put in the foreground. It is of great importance that these papers are preserved. This document was sent to Walsingham accompanied by the following letter from Paulet:—

“Chartley, 3rd August 1586. I heard from Mr. Wade yesterday, and this morning I met him and conferred with him at length, as will appear by these notes enclosed. He procured the substitute, and was the only messenger between him and me. He had been charged and troubled many ways, as knoweth the Almighty, who always preserve you.”

Memoranda of a conference between Paulet and Wade about the manner of seizing Queen Mary's papers and the kidnapping of the Queen of Scots:

“That Her Majesty (Elizabeth) desires Sir Amias Paulet to consider in what manner the Queen (his charge's) writings might be best seized on, whether remaining there, or removing her to some other place under the colour of hunting or taking the air would be best. This Queen will be easily induced to kill a stag in Sir Walter Aston's park, where order being taken with her, some gentleman of credit may be sent forthwith to seize her chambers and cabinets in this house, and to remove out of it the gentlewomen they shall find there.

“That he also consider how Nau and Curle may be best apprehended, and in what manner that seemeth meet that they be apprehended at the very instant of the challenge made to the Queen.”

Reply: “I would not advise that this enterprise should be unfurnished with gentlemen of trust and credit, but that two gentlemen be sent to take the charge of the conducting of Nau and Curle, so as to keep them from conference. Pasquier is half a secretary and much employed in writing, and perchance not unacquainted with great causes.”

“Consider whether it be not fit to remove her, and to what place. What persons are to be retained about her, and in what manner she shall be kept.”

Reply: “The cabinets and other places cannot be duly searched unless she be removed, because the doing thereof will require some leisure, and she cannot be lodged in any other place in this house than where the cabinets are. Three gentlewomen, her master cook, her panterer, and two grooms of her chamber, may suffice in the beginning of this removal but may be increased afterwards.”

“Decide in what manner she should be removed and under what guard.”

Reply: “Sir Walter Aston's house seems for many reasons the fittest for this purpose, and he may convey her directly from his park to his house, with the assistance of my horsemen and others. I think he will require to be assisted with my guard of soldiers, who may take their board and lodging in the village adjoining, and because the house is of no strength, if I were in Sir Walter Aston's place I would have some stronger guard.”

“Have you already sufficient instructions for requesting the assistance of the well-affected gentlemen, and if not, then to advise what further commission required?”

Reply: “I have already Her Majesty's commission for levying forces.”

“Have a watchful eye over your charge, and in such sort as may create no suspicion.”

Reply: “This shall be performed as near as I may.”

“That the extraordinary posts be commanded to use more diligence, and for that purpose to keep two horses in the house for the packets.”

Reply: “It seemeth meet that this order come from you, and I will also require it.”

“Your opinion touching the gentlemen in that county and in other counties next adjoining who are well affected and fit to be used in this enterprise.”

Reply: “I have lived as a prisoner in this country, and therefore not well acquainted with the state thereof; but I have a very good opinion of Sir Walter Aston, Mr. Bagott, and Mr. Greysley, all three neighbours. Mr. Trentham is one of the lieutenants of this shire, and of very good report, but I have had little to do with him.”

“Consider what order shall be taken with the unnecessary number of her servants, especially with young Pierrepont.”

Reply: “Although I take Mr. Melville to be free from all practices, and indeed liveth as a stranger to his own company and hateth Nau deadly, yet I think he should be removed from his Mistress to some gentleman's house.”

This paper is preserved in the State Paper Office, and is an authentic proof that the kidnapping outrage was carried out at the desire and by the personal order of Queen Elizabeth. The instructions given in the paper would not have been believed if the paper had not been preserved. In all this Elizabeth was deliberately violating the laws of England and the eternal principles of justice.

The Queen of Scots was not her subject. She had no jurisdiction over her, and the seizing of her papers was, in the circumstances, simply an act of highway robbery, punishable in the case of a subject with death.

At this date (9th August 1586) the plot for the kidnapping must have occupied Elizabeth's whole attention. She had evidently become doubtful as to whether Paulet was equal to the occasion, and whether the commission with which she had intrusted him was not too much for his capability. It was to his credit that she doubted his sincerity and ability concerning this infamous scheme. It will be observed that Paulet's orders of 3rd August were duplicated by Elizabeth on 9th August, so determined was she that nothing should prevent the plot being carried out.

The records of the time are incomplete, and leave us to conjecture what public feeling was. It was impossible for the nation to concur with Elizabeth's administration regarding this matter, and we observe that no expression of approval or disapproval was allowed to be recorded.

The next paper recorded is dated 9th August and is entitled "A Memorial of Things to be done about the Removal (kidnapping) of the Scottish Queen. Instructions for Sir Amias Paulet." This paper, which we reproduce, is in the handwriting of Walsingham, and is followed by one from Elizabeth accentuating the instructions already conveyed to Paulet:—

"Remove her under colour of some good excuse before arresting Nau and Curle or seizing papers. Take her to some house near Chartley where the inhabitants are known to be best affected to us. The owner of the house to be removed where the Scottish Queen shall stay for a time. Appoint standing watches in the towns for a time and the well-affected Justices to assist in the thoroughfares. Gorges to repair to Stafford or some place near Chartley to seal the study. He to conduct the prisoners and to be assisted by Francis Hast. Have some gentlemen of credit at the search writings and send up some trusty servants with the same in the company of Wade.

"Search Nau and Curle's chests and take order with Pierrepont."

Following on this communication of Walsingham the English Queen sent her own instructions as follows:—

Instructions of Elizabeth to Sir Amias Paulet about the removal of the Queen of Scots, the apprehending of Nau and Curle and the seizure of their papers, 9th August 1586:

“You shall, with as convenient speed as you may, under the colour of going a-hunting and taking the air, remove the Queen, your charge, to some such house near to the place where she now remaineth as you shall think meet for her to stay in for a time until you shall understand our further pleasure. And to the end that she may be kept from all means of intelligence: we think that the owner of the house where you place her shall be removed, saving such persons as are to furnish necessities of the household. You shall between Chartley and the place where you mean to remove her, as is contained in our letters, cause her servants Nau and Curle to be apprehended, and to be delivered into the hands of some trusty gentleman of that county or the counties next adjoining, as you shall know to be discreet, faithful, and religious, for H—— B—— to conduct them to London with some convenient guard, where there shall be order given for the placing of them.

“You shall also take order with the conductors to see them brought up in two separate troops, and to have special care that they may be kept from conference with any person on their way to London, and to appoint in the places where they lodge good standing watches to be kept during the night.

“You shall immediately after she is departed from Chartley cause all such papers as are found either in her own lodging or in the lodgings of any that appertain to her (taking care that all secret corners in the lodging be diligently searched) to be seized and to be put up in bags or trunks as you shall think meet, for execution of which service you shall use besides our servant Wade two principal gentlemen of credit either of that county or of some other county adjoining. For which purpose we think John Manners the elder and Sir Walter Aston suitable to be used if they be found in the country, or some of like quality. These we would have in no way made acquainted with the said service until the Queen shall be removed and they brought to the place when and where you shall think suitable to be performed. You shall cause the said gentlemen, together with Wade, to seal up with their seals of arms the said bags or trunks where the letters and

papers shall be placed: and to send up two of their trusty servants together with Wade with the said writings.

“You shall do well during the time of her abode in the house she is taken to, to cause some substantial watches to be kept both about the house as also in the town next adjoining; wherein we doubt not but you will have a special regard to use the service of such of the Justices and gentlemen in that county as are well affected, giving them special orders to choose well-affected men as watchers, and not such as are known to be recusants.

“And whereas our meaning is that hereafter she shall not have such a number of attendants as she has had, we think you should make choice of as many of her train, both men and women, as you shall see necessary to attend on her person; and for the rest they should be kept together at Chartley in such a manner as there shall be no access to them, until you shall understand our further pleasure.”

All this shows how deliberately the kidnapping scheme was carried out.

Queen Elizabeth to Paulet, 9th August 1586. Final orders to kidnap:—

“We having of late discovered some dangerous practices, tending not only to the troubling of our estate but to the peril of our own person, whereof we have just cause to judge the Queen, your charge, and her two secretaries, Nau and Curle, to have been parties and assenting in a most unprincely and unnatural sense, contrary to our expectations, considering the great and earnest protestations she hath made of the sincerity of her love and goodwill to us. Our pleasure therefore is that you cause the two secretaries to be apprehended and to be sent up to us under good and sure guard, and that you take the said Queen to some such place as you shall think meet, and there to see her straitly kept with so many of her train to attend on her as you shall think necessary until you understand our further pleasure.

“ELIZABETH R.”

The interpolations on Mary's letter to Babington of 17th July 1586 were at that date three weeks old, so that this letter is apparently founded on them.

CHAPTER II

Outline of the kidnapping scheme, and how it was carried out—Paulet requires instructions as to Nau and Curle—Queen Mary's return to Chartley—Forcible seizure of her money and cabinets by Paulet and Walsingham—Letter from Yetsweirt about Nau and Curle—Private letter of Nau to Elizabeth exonerating himself and Mary—Elizabeth's fulsome gratitude to Paulet—Letter Walsingham to Paulet—Burghley and Walsingham instruct Paulet about Fotheringay—Paulet writes Walsingham (kidnapping plot)—He writes Burghley and Walsingham—Desires to resign office—Mary complains of her cruel treatment to the Duke of Guise, the Lord Chancellor, and Pasquier—Elizabeth's second order to seize Queen Mary's money—Relations between James and his mother—Letter Walsingham to Master of Gray—Mary's intercepted letters.

ON the 16th August, what may be called the kidnapping of the Queen took place, and reference is made to Bourgoyne, pp. 160-70, for details. It will be observed how adroitly Gorges, a subaltern of Elizabeth's, suddenly stopped the Queen and delivered one of Elizabeth's insolent messages, charging her with the violation of an agreement which never existed and with a conspiracy against Elizabeth's life in which Elizabeth herself was known to be involved. This was her pretext for her treatment of the Scottish Queen, and ordering her servants to be seized and separated from her. Mary indignantly replied, "Far from having conspired against the Queen, I have never even had such a thought." This availed nothing, and her followers were thereupon apprehended. The "Stag-hunt" manœuvre was successful in enticing her away from Chartley, and affording Paulet and his satellites an opportunity of carrying out the kidnapping plot and afterwards breaking into her private apartments in her absence, forcing open her cabinets, and carrying away her papers, letters, and all private documents. Bourgoyne tells the story at considerable length, and a pitiable story it is. Then when she discovered they were not returning to Chartley, that she was in fact being kidnapped, she sat down on the road and refused to remount her horse till she knew where she was being taken. Her offering up prayer under an adjoining tree, supported by Bourgoyne and Elizabeth Curle, is one of the most pathetic incidents of her life, and we are indebted to Bourgoyne for the narrative and for the words of the prayer which he has given from memory.

We cannot realise at this distance of time the overwhelming agony of the poor captive bereft of her friends and attendants, held prisoner by a tyrant; being kidnapped and taken she knew not where, alike ignorant whether life or death awaited her. No one need be surprised that in such circumstances she appealed to the Almighty. Bourgoyne stood by her and rendered her noble support. He immediately discussed the situation with Paulet, and evidently made some impression on the heart of that heartless individual. It drew from Paulet the expression that the Queen would experience no harm. Paulet in an arbitrary manner took her confidential and devoted attendants from her: Nau and Curle, Melville and Bourgoyne. These were arrested and not allowed any more to accompany her; in short, Nau and Curle never saw her again. There is an important discovery brought to light here, namely, that the Queen had at this date lost all confidence in her secretary Nau because he had become unfaithful and disloyal to her. His conduct after he was taken to London was not only that of a traitor, but he actually made to Walsingham the most unfounded accusations against her.

After the kidnapping of the Queen, one of Elizabeth's attendants named Nicasino Yetsweirt wrote Walsingham on 21st August informing him that Elizabeth approved the order taken for the safe custody of Nau and Curle, and the things that Gorges and Wade had charge of, besides caskets with writings:—

“Her Majesty was anxious to have those caskets safely brought, and she was informed that a discreet person was despatched to assist Gorges and Wade in their charge. She was not satisfied with that, and would have you to provide yet better herein, and specially that the caskets might be brought under sure conduct and by sure persons, for Her Highness attaches more importance to them and their contents than to Nau and Curle. Little she esteemeth them in comparison with the caskets.



MARY, QUEEN OF SCOTS.
From the Painting in Edinburgh Castle.
(By permission of FRANK C. INGLIS.)

“The French Ambassador and Monsieur Deshcool, who is come out of Scotland, had audience today, and Her Majesty said she never saw a man more perplexed than the Ambassador when he was about to speak. Every joint in his body did shake and his countenance changed, and specially when this intended enterprise was mentioned by her. Whereupon, seeming to take more heart to himself, he said, 'I would have moved some suite unto you, but I see your Majesty is somewhat troubled with these *jeunes*

follastres (young fools) that are apprehended.' 'Yea,' said Her Majesty, 'they are such *jeunes follastres* as some of them may spend ten and twenty thousand francs of Rentes and it may be that there are some who may spend more.' Her Majesty seemeth afraid that this Ambassador might devise some mischievous means to disturb the quiet and sure bringing up of these men, and the things just rescued, whereupon she desired me to warn you that special care be taken thereof."

This letter forms a link in the chain of the kidnapping outrage and shows the hand of Elizabeth as presumably the head of it. Nau and Curle were sent under a guard to London (Westminster Palace Prison). From that prison they witnessed on 20th September the cruel execution of Babington and one-half of his companions in Palace Yard, including Savage and Ballard; the other half were executed the following day at Tyburn. They admitted ciphering three letters to Babington from minutes alleged to have been written by Queen Mary. On Phillips' decipherment of the one dated 17th July, they said it was the same or like it, and signed an attestation to that effect. Nau, however, privily wrote a narrative of Mary's proceedings in the matter, fully exonerating himself and her from ever practising against Elizabeth's life. This he succeeded in getting delivered into Elizabeth's own hands, to the surprise and displeasure of Burghley, to whom it was shown by her. Burghley endorsed the narrative (contemptuously), "Nau's long declaration of things of no importance, sent privately to the Queen's Majesty." In another endorsement suspicion is expressed as to how Nau got this letter put into Elizabeth's hands. Surprise should rather have been expressed that Elizabeth, having received such a letter, should have proceeded with the execution of her royal captive. Nau, from his influential position of private secretary to Queen Mary, was able to speak with authority on this point, and it was the first duty of the English Queen after receiving such a letter to make a searching investigation into the circumstances and find out the truth. If Mary was innocent, she ought to have been released on the spot. Nothing evidently would induce Elizabeth to liberate her. This letter was disregarded and the bogus indictment against Mary was proceeded with as if no such letter had been written.

On 24th August 1586 Paulet wrote Walsingham touching on the outrage of 16th August, desiring instructions as to the disposal of Nau and Curle's

servants and the removal of Mary to Chartley. This letter is of no moment save as forming part of the record of that event:—

“Forasmuch as you required me by order from Elizabeth to acquaint her of what hath passed between this lady (Queen Mary) and me in the execution of the late charge, as also how she hath behaved herself since the apprehension of her secretaries, I have considered that the sooner I performed this duty the better it would be, and therefore I send to you enclosed my letter to Her Highness (Elizabeth). You will consider what shall be done with Nau's servant, who is of this country and came to his service from Pierrepont, and with Curle's servant, who is a Scot, they both being now unnecessary.

“Touching the residue of the Scottish family, I will send you a note of their names and charges, so that you may consider as to removing as you shall think proper.

“It is intended that this lady (Queen Mary) shall remove to Chartley tomorrow, where this household can have no long continuance without imminent danger and extreme charge to Her Majesty in many things this winter, as provision has not been made beforehand. I hear of traitors that are carried towards you every day—God be thanked for it.

“From Tixall, 24th August 1586.”

Walsingham's letter to Paulet under date 5th September was in the following terms:—

“Her Majesty continues her firm resolution to have that lady's money seized and her servants divided from her, as you may perceive by the enclosed extract of a letter I received this morning from Mr. Wade; and therefore, her pleasure being thus, I do not see why you should any longer forbear the putting of the same into execution. If afterwards inconveniences happen therefor, Her Majesty can blame none but herself.

“I am now absent from court by reason of inflammation in my leg grown of the pain of a boil, and therefore I cannot debate the matter with Her Majesty as I would. This afternoon the Lord Chancellor, the Lord Treasurer,

and the Vice-Chamberlain meet at London. You shall be advised of the resolution that will be taken either for the removing of that lady to Fotheringay or bringing her directly hither to the Tower.”

Enclosure accompanying the foregoing letter:—

“Points to be considered in the proceedings against the Queen of Scots:

“Whether any tho ... ys ought to be on publication of the commission.

“Whether the accusation shall be by writing or *ore tenne*, and by whom.

“If she will not answer.

“If she will require counsel.

“If she will require time to answer.

“If she will require to come to the Parliament House.

“If she will require to hear the accusers.

“Whether it shall be convenient to admit the accusers to maintain the accusation upon their voluntary oath, being partakers in the accusation being criminal.

“Whether the commission may not be adjourned to any place to finish the sentence.

“Whether any entry or record shall be made of the proceedings, and whether in Latin or English.

“Whether she shall be dealt with by the name of Mary, late Queen of Scots, or by what name.

“Whether the sentence must be given there or upon an adjournment to any other place.”

The kidnapping having been carried out and completed, Elizabeth before the end of August sent the following fulsome expression of gratitude to

Paulet for the manner in which he had done his duty. The text of this curious letter is evidently founded on the material introduced by Walsingham into Mary's letter to Babington of 17th July. Elizabeth, there is reason to believe, knew about this and was responsible along with Walsingham for the consequences. No such language was ever before or since applied to the Queen of Scots:—

“Amias, my most faithful and careful servant, God reward thee treblefold in three double, for thy most troublesome charge so well discharged; if you knew (my Amias) how kindly besides dutifully my grateful heart accepteth and praiseth your spotless action, your wise orders, and safe regards, performed in so dangerous and crafty a charge, it would ease your travails and rejoyce your heart; in which I charge you to carry this most just thought, that I cannot balance in any weight of my judgment the value that I prize you at, and suppose no treasure to countervail such a faith, and shall condemn myself in that fault which yet I never committed if I reward not such deserts, yea let me lack when I most need if I acknowledge not such a merit with a reward. *Non omnibus est datum*. Let your wicked murderess know how with hearty sorrow her vile deserts compel these orders, and bid her from me ask God's forgiveness for her treacherous dealings towards the saver of her life, many a year, to the intolerable peril of her own; and yet not contented with so many forgivenesses, must fall again so horrible, far passing a woman's thought much less a Princess. And instead of excusing (whereof not one can serve, it being so plainly confessed by the author of my innocent death) let repentance take place, and let the fiend possess her, so as her better part be lost, which I pray for with hands lifted up to Him that may both save and spill.—With my most loving adieu and prayers for thy long life, your most assured and loving Sovereign,

“ELIZABETH R.”

This letter, which is a further development of Elizabeth's policy, was immediately followed by one from Walsingham to Paulet dated 25th August intimating the Queen's great commendation of him and approving the proposal of removing the Scottish Queen back to Chartley, but she is to be treated as a prisoner. It will be noticed in all this that Lord Burghley is

conspicuous by his absence, Elizabeth and Walsingham being solely responsible for Mary's treatment at this period:—

“Gorges and Wade came safely to London on Sunday at night with their several charges, and Her Majesty is marvellously well satisfied with the care and endeavours that you have exercised in the search of the house (Chartley). She approves of removing your charge to Chartley for the reasons you give of the strength of the house and the easing the country of their continual watches. But upon report made by Wade of the unsoundness of the country, Her Majesty meaneth that your charge (the Queen of Scots) shall be shortly conveyed to some other place, and not there remain with so much liberty as she enjoyeth, but in the state of a prisoner attended only with few persons, such as she must have of necessity. Therefore Her Majesty would have you to consider to what number the said persons may be restricted. I mean to know Her Majesty's pleasure touching the priest whom in the meanwhile you have done well to detain in Gresley's house. And you shall also know what is to be done with young Pierrepont and Melville. For young Pasquier, Her Majesty would have you send him here under sure guard such as to you shall seem convenient, because it is supposed he was privy to the writing of those letters that were in cypher.”

During Mary's captivity Elizabeth committed a series of crimes or cruelties against her, but these pale into insignificance as against the kidnapping outrage and the final scene at Fotheringay. In all the circumstances, what is there to excuse or explain this policy? In vain will the student of history investigate the matter, for explanation there is none. Elizabeth resolved that the time had come when the Scottish Queen should be removed to the place of her destruction—Fotheringay. Lord Burghley, who now appears on the scene, and Walsingham, were intrusted with the management and execution of the scheme which was to become the greatest tragedy in English history. These men on 26th August instructed Paulet as follows:—

“The Queen's Majesty, on information given to her by Wade, has resolved to have the Queen your charge removed to some other place of more safety, and for that purpose hath thought upon Fotheringay Castle in Northamptonshire, and asks us to consider of such things as are necessary

for the removal. We have directed Sir Walter Mildmay to inspect the said castle and certify us of the state thereof, and how the household may be furnished with necessary provisions and wood and coal, and with a suitable quantity of beer from some brewer in the town of Fotheringay or otherwise. You will likewise send either Darell or some other apt person thither, accompanied with one of the wardrobe, to consider in what sort the stuffs and hangings that are now with you may furnish some convenient lodging for the Queen. It is not meant that she shall henceforth have that scope and liberty that heretofore she has enjoyed, but remain in the state of a prisoner, with some regard nevertheless to her degree and quality. Other particulars wherein we desire to be informed we have set down in the enclosed articles, wherein we pray you that you will reply immediately. What number of servants both of men and women will be sufficient to attend upon the Queen of Scots' person being kept as a prisoner, and how many of those that she hath attendant now upon her may be spared? The names and quality as well of such as shall attend as of such as are to be dismissed to be set down.

“How she is furnished of coach and litters for the removal both of herself and those who shall attend upon her.

“In how many days the removal from Chartley to Fotheringay may be performed (it is thought here that the readiest way is by Leicester), having regard to the sickly state of her body.

“What well-affected gentlemen there are between Chartley and Fotheringay who have convenient houses to lodge the said Queen, wherein Sir Walter Mildmay's advice shall be used.

“Whether it shall not be convenient for her to stay two or three days in Leicestershire or in some convenient place in Northamptonshire until the said house may be put in readiness, wherein Sir Walter's advice is also to be used, by sending some discreet person from you to him.

“Under what guard she should be conveyed until she comes into Leicestershire, where the country being sound you shall need the less assistance.

“If you are furnished with money for this removal, and if not what sum you will require. There is now orders given for your man to receive £600 or

£700 here at London. You are to decide how soon she should be removed.”

In continuation of this correspondence we have the following communication dated the succeeding day from Paulet to Walsingham referring to the removal of the Queen from Sir Walter Aston's house at Tixall to Chartley conducted by Sir Walter, Mr. Gresley, Mr. Chetwynd, and others; the Queen's visit to Curle's wife and baptizing Curle's child:—

“This lady was removed hither on the 25th of this month by Sir Walter Aston, Mr. Bagott, Mr. Gresley, Mr. Littleton, Mr. Chetwynd, and others to the number of one hundred and forty horses at the least. At the coming out of Sir Walter Aston's gate she said with a low voice, weeping, to some poor folks who were there assembled, 'I have nothing for you; I am a beggar as well as you; all is taken from me,' and when she came to the gentlemen she said, weeping, 'Good gentlemen, I am not witting or privy to anything intended against the Queen.' She visited Curle's wife (who was delivered of child in her absence) before she went to her own chamber, bidding her to be of good comfort, and that she would answer for her husband in all things that might be objected against him. Curle's child remaining unchristened, and the priest removed before the arrival of this lady, she desired that my minister might baptize the child with such godfathers and godmothers as I would procure, so as the child might bear her name. This being refused, she came shortly after into Curle's wife's chamber, and laying the child on her knee, she took water out of the basin, and casting it upon the face of the child said, 'Mary, I baptize thee in the name of the Father, the Son, and the Holy Ghost,' calling the child by her own name Mary. This may not be found strange in her who maketh no conscience to break the laws of God and man.

“At the coming hither Mr. Darell delivered the keys as well of her chamber as of her coffers to Bastian, which he refused by direction from his mistress, who required Mr. Darell to open her chamber door, which he did; and then this lady, finding that her papers were taken away, said in great choler that two things could not be taken from her: her English blood and her Catholic religion, which both she would keep until her death, adding further these words: 'Some of you will be sorry for it,' meaning the taking away of her papers. I was not present when these words were spoken, but

no doubt they reached me, in what sense she only knoweth. I may be sorry for others, but I know there is nothing in her papers that can give me cause to be sorry for myself. I am deceived also that she is not hasty to see me or speak with me, only she sent to know if I would convey her letter to Her Majesty, which I refused, saying that no letters should pass out of this house without orders from above. She made the like request at Sir Walter Aston's house, which I also refused and desired your direction thereon. I received yours of the 25th, by which you continue to increase my joy by your report of Her Majesty's gracious acceptance of my unworthy services. God be thanked that so many of the principal conspirators are apprehended, and God make us thankful for his singular mercies."

It is possible Paulet did not know of the interpolations on Queen Mary's letters. He was evidently outside the select circle which carried them out. The close of this letter would indicate that he, being outside of it, was convinced of the complicity of Mary in the Babington Plot. He never for a moment suspected the sincerity of Elizabeth.

When Mary reached Chartley from Tixall on 25th August she found her coffers and desks rifled and all her papers and jewels taken away. One cabinet in her bedroom, strange to say, had been overlooked, and it contained her money. Paulet wrote immediately to Walsingham, the result being that Paulet and Richard Bagot, a magistrate, on receipt of Walsingham's reply, rudely entered the presence of Mary, intimating that they were commanded to take her money, and advised her to deliver it up quietly. Mary emphatically refused to comply, and declared she would not give up the key. Paulet called his servants and told them to bring bars to break open the door. Seeing the uselessness of further resistance, she submitted, and saw him seize five rolls of canvas, containing five thousand French crowns, two leather bags, one having £104 in gold and the other £3 in silver; the silver he left with her. In Nau's chamber he found two bags, one with £900 and the other with £286, and a chain valued at £100. In Curle's chamber he found two canvas rolls each containing one thousand crowns; they were Queen Mary's gift to Mrs. Curle on her marriage. Paulet sealed and took possession of them in Elizabeth's name, and delivered them into Bagot's charge. ^[5]

This was another of the disreputable transactions carried out by Elizabeth's orders. The question may very naturally be asked, What right had she to break into lockfast places and seize the money and jewels, etc., of the Scottish Queen? If a subject behaved in this manner he would be immediately arrested and punished.

It is important at this crisis to know what letters passed between Paulet and Walsingham. We are in possession of only some of these, and the information they convey is that a gigantic scheme was progressing for the murder of the Scottish Queen, and that these men were the puppets of Elizabeth for accomplishing her design. What is obvious is that Paulet's letters were written with profound caution—almost terror—lest he should offend his mistress. His letters and his treatment of the Queen show that to her he was both cunning and false, alike destitute of the honour of a gentleman and of those feelings of humanity which are essential to a man intrusted with the delicate duty of custodian of a Queen. Only once did he show that he realised his responsibility, when in a letter to Walsingham of 30th August he desired to be relieved of his onerous duty. The letters were in the following terms:—

Paulet to Walsingham:

“It may please your Honour to be advised that, receiving your letters of the 26th and 28th of the month, I have, according to your direction, despatched Mr. Darell this morning towards Fotheringay for the views of the lodgings there, which no doubt will be furnished with the hangings belonging to this house, whereof there is a good store of all sorts of length and breadth. I send herewith my opinion touching your article addressed unto me, and have sent the copy as well of the articles as of my postills to Sir Walter Mildmay, so that he may supply all the defects by his better judgment and knowledge of these countries. I think myself happy for many causes to be removed out of this country, and now I should think myself twice happy if this Queen with the change of lodgings might also change her keeper; and indeed a gentleman of that country might supply this place with less expense to Her Majesty and better surety of his charge, having his servants, tenants, and good neighbours at hand.

“Although I am bold to write as I wish, yet I will never desire it, but as it may stand with Her Majesty's good pleasure as one that embraceth all Her Highness's commands with all willing obedience.

“From Chartley, 30th August 1586.”

And again, on 15th September, Paulet said:

“I find by your letter of the 12th, received last night at midnight, that you were not acquainted with my Lord Treasurer's first and second letters to me of the 8th, the contents whereof may appear unto you by my answer of the same sent to his Lordship. I find this lady very willing to remove so as to hear often from the French Ambassador, by reason that her lodging is within thirty miles of London; and now twenty carts are appointed to be laden here this next morrow, and I think we shall remove from hence about the middle of this next week, if we be not stayed by contrary news, whereof I thought good to advise you. Since my last letters to you I have found in a casket in Nau's chamber £5, 10s. in gold and £1, 7s. 3d. in white money, and among the same the silver piece enclosed, by which you may easily judge of his malicious, cankered, and traitorous heart towards Her Majesty. All this Queen's seals were in this casket, which are in great numbers, and two serve for privy packets and all other purposes.”

This letter was immediately followed by one of considerable importance from Queen Mary to the Duke of Guise, September 1586:—

“My good cousin, if God do not help you to find means of aiding your poor cousin, it is all over this time. The bearer will tell you how they treat me and my two secretaries. For God's sake help and save them if you can. We are accused of having wished to disturb the State, and of having practised against the life of the Queen or consented to it; but I have asserted what is true, that I know nothing of it. It is said that some letters have been seized in the possession of one Babington, one Charles Paget, and his brother, which testify to the conspiracy, and that Nau and Curle have confessed it. I maintain that they could not do so unless more than they know were forced out of them by means of torture.”

(This confession was the result of the rack.)

Pasquier or de Pasquier, a literary friend and follower of Mary, was apprehended along with Nau and Curle for no reason whatever, and very shortly after that event he was brought before the Lord Chancellor to see what secret information about Mary they could possibly draw out of him. As he was in reality a member of Mary's household, Elizabeth's ministers were sanguine that they would get important information. In that, however, they were disappointed, as Pasquier was able to keep his own counsel. On 2nd September 1586 he appeared before the Lord Chancellor, when the following interrogatories were put to him, but we have no answers recorded. These cunning questions were in the interest of Elizabeth, and constitute a mean attempt on the part of Bromley to drag the Scottish Queen into trouble:—

“Whether he has been at any time acquainted with the practice for the setting of the Scottish Queen at liberty?

“Whether he has not been made acquainted with some practice within the realm of disposing the hearts of Catholics to join with such foreign forces as should invade the realm?

“Whether he has not within these four or five months written letters to certain persons in foreign parts to show how the Catholics of this realm stood affected with them?

“What practice he has been made acquainted with in these three months prejudicial to Her Majesty's State or person?

“How he knoweth that the Queen of Scots has had her secret letters carried or brought to her?”

In the midst of these negotiations Walsingham appears to have had another subject on hand: this was the relations between Mary and her son.

It need not be the least surprising that Walsingham should have written the following false and calumnious letter to the Master of Gray, dated 15th September. If he could surreptitiously open, copy, and interpolate Queen Mary's letters, he was quite capable of giving the advice contained in this communication. This Master of Gray was one of Mary's enemies, and was

mainly instrumental in putting discord between mother and son. No man knew better than Walsingham that Mary was innocent of Darnley's murder, but to admit this would be to jeopardise his scheme for her execution. Consequently her innocence could not be entertained. Mary losing her Crown had nothing whatever to do with the Darnley murder. She never voluntarily gave up the Crown, but it was compulsorily taken from her by Lindsay and Ruthven when she was confined in Loch Leven in 1567, in order that Moray might assume the Regency:—

“I thank you for sounding the King's disposition, how he could be content to have the Queen his mother proceeded against for the late fact, but I suppose it will be in vain to move him any further, because he may conceive it would be *contra bonos mores*, in respect of the bond of nature between them, that he should make himself a party against her. Nevertheless, you may with good reason persuade him that he make no mediation for her, or oppose himself against the course that is intended to be adopted with her, considering the hard treatment that his father received at her hands, for which detestable deed she was deprived of her Crown. It is meant that she shall be tried here according to the Act made in the last Parliament, and that agreeably to the contents of the said Act certain noblemen shall be appointed to charge her, who assembled for that purpose the 27th of this month, and shall be with her by the 4th of the next at Fotheringay Castle, seven miles from Stamford, whither she is appointed to be brought. But the matters whereof she is guilty are already so plain and manifest, being also confessed by her two secretaries, as it is thought they shall require no long debating. We suppose she will appeal and challenge the privilege of her sovereignty, which in this case neither by the civil law nor by the laws of this realm can be available.”

Bourgoyne's *Journal* exposes the cruelty of Queen Mary's enemies and their importunity about the Babington Conspiracy, and while she protested that during her captivity “Elizabeth had maintained, sustained, and aided her rebel subjects, alienated her son from her, and taken away what she possessed,” and could prove this, they would not listen to it, but wanted to squeeze out of her something that would incriminate herself.

The following paper, which is in the handwriting of Phillips, one of Walsingham's spies, is preserved in the Record Office under date September 1586. It is reproduced not because it is of any value, but rather to show the persistent and cunning efforts to entrap the Scottish Queen. It concerns the Babington Conspiracy, and is a wholly unauthenticated document. The papers Phillips refers to are from Mary's cabinets, seized on the day she was kidnapped; and in order to understand the object of the paper, we must keep in view that it assumes the accuracy of Mary's interpolated letter of 17th July to Babington. In short, it was Phillips, the writer of this paper, who was the copyist of these interpolations.

Bereft of these, any plot against Elizabeth by Mary is the merest fable and cannot be proved; and what remains is a series of enterprises for the release *simpliciter* of the Scottish Queen. Mary was connected only with schemes for her own liberty, and for that she cannot be blamed. This paper is a laboured and wicked attempt to induce posterity to believe that she was hatching plots for Elizabeth's murder and an invasion of England. There is no proof to defend this charge:—

“Memorial showing how the ten parcels of extracts and copies of the Scottish Queen's intercepted letters delivered to Wotton are to be used.

“For declaration of the attempt against the Queen's person (Elizabeth), invasion of the realm, and stirring rebellion within the land, proposed and wrought by Charles Paget, Ballard, and Babington, as is contained in the instructions with her acceptance and approbation of the whole.

“The extract of the letters sent by Charles Paget to the Scottish Queen of the 29th May 1586 with her answer of the 27th July.

“The copies of the letters between the said Queen and Babington, verified by Nau's confession, showing the manner of writing and making up all her despatches, and particularly proving the letters of the Queen to Babington have been penned by herself and taken out of a minute by her own hand (Nau's confession was got by the rack). The extract of the letters written from the Scottish Queen to Don Bernard de Mendoza, the Bishop of Glasgow, Sir Francis Englefeld, and Lord Paget, 27th July 1586, with sundry propositions.

“That an overture had been made to her by the Catholics of England to join with foreign forces for the execution of an enterprise to the disturbance of the present State.

“That she allowed and embraced the same (this was a plan for her own liberty).

“That she thereupon made them an ample despatch (which was the letter to Babington), with directions for all things necessary for the execution of what was proposed.

“That every one of them should give the best assistance they could for effecting the enterprise.

“The Bishop of Glasgow to travel to Rome by all means to advance the correspondence of the Pope with the King of Spain, and to try to set up some new faction against that of England. In France to deal with the Duke of Guise either to keep France occupied, or, peace being made, to join with the King of Spain in this enterprise.

“Sir Francis Englefeld and Lord Paget to be earnest in Spain with the King in her name for his full resolution upon the overtures to be made him by Mendoza, and thereupon for his advice when and how his forces shall march.

“To draw the French King's affection from the Scottish Queen and incense him against her and her servants, and particularly for the delivery of Morgan and Paget—

(1) By showing the said Queen and her servants' devotion to Spanish causes to the prejudice of the Crown of France.

“The extract of her own despatch to Charles Paget and Mendoza of 20th May 1586 concerning the delivery of her son into the King of Spain's hands, and gift of this Crown unto the Spaniard by testament.” (This was not the Crown of England, and her letters—21st May 1586—must be referred to in order to understand the matter. See appendix.)

(2) “By the extract whereby Morgan is discovered to have had intelligence and practised with Mendoza both against the Queen and the

French King even since his imprisonment.”

(3) “By proving Paget and Morgan to have been special dealers against Elizabeth. For charging of Paget particularly by his own letter of 29th May proposing the enterprise to the Scottish Queen.

(4) “For charging Morgan particularly by his own confession to have been a principal instigator of the plot taken up with Creyton the Jesuit with the Duke of Guise, the Archbishop of Glasgow, the Pope's Nuncio, and Father Claude. That he was privy to Gifford's practices in England, who set Savage at work to kill Elizabeth, and was to have come over to effect the same (Phillips is founding on the interpolations); that he was privy to Ballard coming into England and the cause, Ballard also was a practiser against the Queen's person (Elizabeth).

“Lastly, the furtherance of his delivery whereby may appear to the King how both he and Her Majesty were abused in the perusal of Morgan's papers when he was first demanded.”

“The papers were concealed and his proceedings disguised by Cherelles and others more careful of the Queen of Scots and the Queen's rebels than of their Master's honour and satisfaction.”

After reading this paper the reader will naturally suppose that the Queen of Scots was a wicked person to get up an agitation among the Catholics of France and Spain for the invasion of England and the consequent removal of Elizabeth from the English Crown. That such were the wishes of the Catholics will not be denied, but the connection of Mary with such a revolutionary scheme was one of the cleverest acts of Walsingham and Phillips the spy. We have printed six letters in the appendix, which are of great importance in considering this complexion of the matter. No. vi., which is a genuine letter of the Queen, should be read first. In it, though dated so late as 27th July, there is no reference to such a thing, and Mendoza was one of her most confidential friends. The paper which we have just reproduced is evidently founded on Nos. i. and v., Queen Mary to Charles Paget. These two letters are in the State Paper Office in the handwriting of Phillips, and may be set down as forgeries. We have no evidence save that of Phillips that Queen Mary wrote these two letters, and

until reliable proof is produced they must be regarded as bogus productions. Whether Paget wrote No. ii. it is impossible to determine.

In the investigation of this matter we have to bear in mind that the Babington Conspiracy and the Babington Plot were two separate and distinct schemes. The former was for the assassination of Elizabeth, fabricated and tacked on by Walsingham to Babington's letter proposing Mary's liberation; the latter was Babington's plot for Mary's liberation only and for nothing else, which neither Babington nor Mary ever denied.

CHAPTER III

Interview between Queen Mary and Paulet at Fotheringay—Elizabeth nominates commissioners for the trial—Elizabeth's commission to Burghley and Walsingham to conduct the trial—Important letter, Elizabeth to Burghley, Mary's sentence prearranged—The commissioners in Mary's bedchamber—The three private interviews—The Lord Chancellor Bromley opens the trial—Mary exposes Walsingham's duplicity (Petit's version)—Close of the first day and conversation with her physician—Sentence of death—Burghley writes Davison—The gross illegality of the trial exposed—The commissioners in the Star Chamber—Tytler's opinion of the Babington Plot—Mary Seton's letter to Courcelles—Paulet to Walsingham, 24th October 1586.

AFTER Queen Mary's pathetic letters to the French and Spanish Ambassadors at the end of July (see pp. 304-5) no further communications of hers are to be found for four months. On 23rd November she received official notice of her death sentence, and on that overwhelming occasion she wrote to the Pope, to Henry *III.*, to the Duke of Guise and the Archbishop of Glasgow, informing them of the appalling event. What happened to her during these four months is so far recorded by Bourgoyne. It was a painful and exciting period for her and her household. The State Paper Office as regards Mary is practically silent for the time, but Elizabeth and her court were in a state of great activity.

In order to understand the situation, it will be necessary to make a brief reference to the events of these four months. The time was mainly occupied with schemes of Walsingham for getting the Scottish Queen involved in the so-called Babington Conspiracy. These plots were conceived and developed with all the skill and audacity of men educated for the work. Walsingham and Phillips the spy occupied the chess-board, and their object was to "checkmate the Queen." A startling move took place on 2nd August, when Phillips desired Walsingham to order Babington's arrest; and on the following day Francis Myles wrote Walsingham recommending Ballard's apprehension, while Phillips asked a warrant to do so. Same day Babington announced to Queen Mary the treachery of one of his companions (Maude), and begged her not to falter, as it was an honourable enterprise (his plot for

her release): “What they could and would they would perform or die.” This letter has been copied three times by Walsingham's spies who intercepted Mary's letters, and this shows how important these men regarded it as a weapon against herself. Their actions were prompt. Then came the kidnapping plot, when the Scottish Queen was taken she knew not where. There is also recorded the so-called confessions of Savage as to the Babington Plot and his knowledge of those who practised against Elizabeth. This paper is in the handwriting of Phillips, which suggests forgery. A few days later, namely, on 20th August, Courcelles wrote Pinart that forces were being levied in Scotland to aid Elizabeth, and that they were under the command of the Master of Gray. On 4th September Walsingham wrote Phillips that Curle admits receipt of Babington's letters and the Queen of Scots' answer; Phillips to see Elizabeth and get her orders as to granting her favour to Curle in the hope of drawing information out of him. On the same day Walsingham acquainted Paulet with Elizabeth's orders as to Mary's treatment: “They are in consultation about having her brought to the Tower and proceeded against according to statute made in last Parliament.” On the same day are recorded Nau and Curle's confessions about Mary's letter to Babington (in the handwriting of Phillips). On 10th September Nau wrote Elizabeth that he knew nothing whatever of the enterprise more than is contained in the enclosed, which protests that Queen Mary had no connection whatever with the design of Babington and others. There is a vacancy of seventeen days on the Record, and on 27th September it is recorded that Burghley ordered Walsingham to send Phillips for certain letters which would be wanted at the meeting of the lords next morning.

After a fatiguing journey of four days under much privation and suffering, Queen Mary arrived at Fotheringay on Sunday, 25th September. The journey is fully described by Bourgoyne. For a week after her arrival there are no entries in the *Journal*, from which we infer that she was for that period undisturbed by her persecutors. But on the following Saturday, 1st October, the dark shadow of Elizabeth was felt at Fotheringay. Paulet, in his usual insolent manner, communicated to Mary one of Elizabeth's characteristic messages: “That she had sufficient proof to contradict what Mary had said to Gorges” (see Bourgoyne, p. 189). She was careful, however, never to produce that proof. These words were doubtless an invention for the purpose of enabling her to convey what really was the

message: "That the Queen of England was to send some lords and counsellors to speak to her," *e.g.* Mary's trial and condemnation. Elizabeth at this date had evidently resolved on Mary's execution and how she was to accomplish it. On the same day Paulet again had an interview with Queen Mary in order to torture her a little more about the bogus conspiracy against Elizabeth's life. He desired her to ask pardon of Elizabeth and confess her fault. Mary's elastic spirit got the better of her, and she said ironically that "his proposal reminded her of what one would say to children when one wanted them to confess." Paulet, who was destitute of humour, remained silent as if struck dumb. His importunity to get Mary to "confess something," as he put it, was a trick to inveigle her, but it failed. This must have been a great disappointment to Elizabeth, for she had no evidence to prove her case. Elizabeth nominated the commissioners for Queen Mary's trial.

The commission was issued on 5th October to forty-six persons, and included peers, privy councillors, the Lord Chancellor, five judges, and the Crown lawyers, constituting them a court to inquire into and determine all offences committed by the Scottish Queen against the statute of the 27th year of Elizabeth. Shrewsbury and ten others declined to serve on this commission. The commissioners arrived at Fotheringay on 11th October, and Bromley and Burghley were appointed to conduct the trial. Elizabeth could not take the life of the Scottish Queen without the formality of a trial, and she therefore made her arrangements for an imposing function, so as to satisfy the public mind that she was doing her duty and that the trial was of the utmost importance, being no less than to determine a conspiracy against her own life and an invasion of England. In an age when the people were grossly ignorant and probably superstitious, a charge like this, on its becoming publicly known, was bound to set the people against the Scottish Queen.



MARY, QUEEN OF SCOTS.

From the Collection of LORD ELPHINSTONE, at Carberry Tower.

After the arrival of the commissioners we have the solemn farce of “preaching and prayers” at the chapel of Fotheringay, which Sir Walter Mildmay and others attended as a prelude to the trial. When we consider that these men came there (a) to try an innocent person, (b) that they had no proof, (c) that they had their Sovereign's command to condemn her with or without proof, this service was a mockery. It was not a Catholic service, consequently Mary had nothing to do with it. And in anticipation of what was coming, we have Elizabeth's really first insolent letter to Mary as

referred to by Bourgoyne, in which she addresses her as “Madam” and appends simply her signature “Elizabeth.” No one can realise how keenly Mary felt this insult, while Bourgoyne passes it over as evidently too painful to be recorded.

The impatience of the English Queen to have the captive tried and executed is manifest from the following paper, which conveys her instructions on the subject. Burghley and Walsingham were to use their discretion respecting the manner of first communicating with Mary, in respect of any private interview, if she should desire one, and likewise as to the expediency of admitting the public.

Commission from Queen Elizabeth to Lord Burghley and Walsingham, 7th October 1586:—

“Whereas in the course of your proceedings at Fotheringay it has not yet been considered what form is to be kept by you and others of the commissioners in acquainting the Scottish Queen with our pleasure and the delivering of our letters (a matter notwithstanding fit to have been thought on), or whether to send some two or three of the nobility and council to her to that effect, or to commit the same only to the charge of Sir Amias Paulet, in whose custody she presently remaineth. We have thought good to put you in mind thereof, and in case any scruple arise expressly to authorise you to proceed as in your judgment is most conformable to our honour and service.

“It may be that she may desire to have private conference with some of you, with whom she may offer to deal more frankly than before the whole number, wherein you may happen to make some difficulty without special warrant and direction from us. We authorise you, in case any such request be made, and that you find it expedient to make choice of two, three, or four of the nobility and council there, besides yourself, to repair privately to her to hear what she has to say and deliver to you without prejudice, notwithstanding that commission and warrant we have already given for your guidance, and where also we are informed that many private persons, as well as strangers as of our own subjects (amongst whom we hear are many ill-affected), are already gone down to the place of your meeting, to observe and hearken after the doings there.

“Forasmuch as under this cloak there may resort thither some bad and dangerous men, whose conduct at such a time may penetrate to the heart of our service, we think it should be well considered whether it be expedient to have the proceedings against her so public that every man may hear, or such only as by the commissioners shall be admitted; as also, whether in case she desire to hear her servants, Nau, Curle, and Parker, personally to testify those things they have confessed against her, it shall be necessary to have them there, or to proceed otherwise without them, which points we have thought meet be presented to you.”

Queen Elizabeth to Lord Burghley and Walsingham, 8th October 1586:—

“Whereas the Scottish Queen may probably desire a conference with some of you our commissioners during your abode at Fotheringay, as yet you have not been authorised to assent by any special directions from us, our pleasure is, in case any such request be made, that you two with other two, three, or four of our council there, do resort to her to hear what she shall have to say to you, and thereafter, if you find cause, to advise us. And these our letters shall be to you, and the rest of our council whom you shall think meet to join you, sufficient warrant and discharge in this behalf.”

The following is an important letter in judging of the policy and conduct of Elizabeth. It was written before the trial took place, and its date would be between the 1st and 14th October:

“Upon the examination and trial of the cause, you shall by verdict find the said Queen guilty of the crime wherewith she standeth charged.”

These are momentous words. The trial at Fotheringay was therefore a mockery of justice, as Queen Mary's fate was sealed long before by the irrevocable edict of the English Queen. Lord Burghley and others of the commissioners, Walsingham excepted, must have felt themselves in a position of great difficulty and responsibility in convicting the Scottish Queen contrary to the general consensus of opinion, and without being able to produce any *bonâ fide* proof. They, however, could not help themselves. They must obey the edict or take the consequences. This was the greatest blunder the English Queen ever committed, and this fact dawned upon her

the morning after Queen Mary's death. During the remaining years of her life she was tortured day by day by an evil conscience, and died a miserable death:—

Queen Elizabeth to Lord Burghley:

“Whereas by your letter received we find that the Scottish Queen absolutely refuses to submit herself to trial or make any answer to such things as by you and the rest of our commissioners she is to be charged with; and that notwithstanding you are determined to proceed to sentence against her, according to our commission given you, we have thought good to let you understand that upon the examination and trial of the cause you shall by verdict find the said Queen guilty of the crimes wherewith she stands charged; and that you accordingly proceed to the sentence against her. Yet do we find it meet, and such is our pleasure, that you nevertheless forbear the pronouncing thereof until you have made your personal return to our presence and reported to us your proceedings and opinions, unless you find it may prejudice your principal commission or hinder our service to advise us and abide our further answer. And this shall be to you and the rest of the commissioners sufficient warrant and discharge.” [\[6\]](#)

This is a letter that has not been sufficiently brought to the front by historians of Queen Mary. It practically settles the question of the Babington Conspiracy, and stamps that plot, so far as the life of Elizabeth is concerned, as a purely bogus transaction. If the Queen of England could have proved her case or identified the Scottish Queen with it she would never have written this letter. In the face of this communication, which condemned Queen Mary before she was heard, the conclusion is inevitable that the Babington Conspiracy against Elizabeth was a huge fraud, unknown to the Scottish Queen, fabricated by Walsingham and Phillips, proclaimed to the world in all sincerity by Lord Burghley, and having its inspiration directly from the Queen of England. In all this the character of Elizabeth is quite intelligible, her ideas of the eternal principles of justice such as no one can misapprehend, while students of history must form their own opinion, after perusing this letter, how far she was responsible for the

deliberate murder of the Queen of Scots, whom she had tortured nineteen years in captivity.

An important interview took place on 12th October between Queen Mary and Sir Walter Mildmay, Edward Barker, and Paulet, when they delivered to her a letter from Elizabeth. The object of the interview was to persuade Mary to stand her trial. After she had read Elizabeth's letter she said she was sorry that the English Queen was so ill-disposed to her; that after so many promises made on her behalf she found she was neglected, and though she had forewarned things dangerous to her and the State, she was not believed but contemned. And the Act of Parliament lately passed *gave her sufficient understanding what was intended against her*.

In the afternoon of the same day a second interview took place, the deputation waiting to know if she adhered to her former answers. She asked them to be read over and she would consider them. That being done, she said they were all right. She had omitted in the morning to reply to Elizabeth's remark that "because she (Mary) had enjoyed and was under the protection of her laws, therefore she was subject to be tried by them." Her answer was that she came into this realm for safety, and ever since had been kept a prisoner, so that she enjoyed no protection from the laws of this realm and no benefit therefrom; neither was it lawful for her to take notice of the laws from any man. This she wished to add to her former answers.

The third interview took place the following day, 13th October, when Bromley and Burghley spoke with her. They said, in a very harsh manner, that the statements of the two previous interviews were insufficient; that neither her pretended captivity nor her claim of privilege of being born a queen could exempt her from answering in this realm to such a crime as she was charged with. They wanted a definite reply whether she meant to continue in her refusal of appearing before the commissioners to answer the charge; and though they might justly proceed to trial without her presence, or any further notice of her, yet in honour, and because of Elizabeth's good disposition to justice, they desired her to alter her answer and to hear what should be produced and proved against her. They wished to convince her that in this manner of proceeding nothing was offered or intended against her but what was conform to the laws of the realm and to justice. They required her immediate answer, and gave her to understand that if she

refused the commissioners were to proceed with the trial without further information.

To this arrogant speech the Queen replied that she was no subject of the realm of England, and would rather die than become one. She was prepared to affirm on oath that she never did evil to the Queen or the State of England, and was not to be proceeded against, as she was no criminal; therefore she adhered to her former answer and protestation. She might answer before a free Parliament, but she knew not *what obligation or promises some of the commissioners had come under before seeing her. She thought all their procedure merely formal, as she believed she was already condemned by those who should try her.*

It is necessary to observe at this point that Elizabeth wrote Burghley on 12th October that as the Scottish Queen refuses to submit to be tried, she requests that, “in case they proceed and find her guilty, they are to defer passing sentence until they return to her and report proceedings.”

The question naturally arises, how did Elizabeth know on 12th October that Mary refused to submit to be tried, when it was on that same day that Mary made the announcement? The one Queen was at Windsor, the other at Fotheringay, and the transmission of letters at that period was slow. Elizabeth did not and could not know on the 12th October what happened at Fotheringay on the same date; she could not but be aware that the Scottish Queen would protest against any such proposal as being tried, and the letter to Burghley was simply a part of her policy to have Mary executed notwithstanding any trial.

On the morning of 14th October the trial began, when Bromley opened the proceedings charging Mary with the Babington Conspiracy. The Queen, notwithstanding the interview of the previous day, defended herself with great eloquence. It was the crowning effort of her life, in spite of the exertions of Bromley and Burghley to crush her. In asserting her innocence she “protested before the living God that she loved the Queen of England,” and in her concluding sentence she “appealed to Almighty God, her Church, and all Christian princes, and the Estates of the kingdom, she was ready and prepared to sustain and defend her honour as an innocent person.” She

charged Walsingham as being her enemy. Whether she knew of his interpolations on her letters is not clear, but she undoubtedly suspected him.

Walsingham's reply was significant and cunning: "He bore no ill will to anyone; he had never attempted anyone's life (yet he was plotting against Queen Mary's life at the time he was speaking), and protested that he was a gentleman, and a faithful servant of his mistress." No one will doubt the last remark, and no one will believe the words that go before. Mary had charged him with being in communication with Ballard, one of the conspirators. If she had followed up this line of argument she would have defeated her accusers, but she was not allowed to produce a single witness nor to refer to her letters, and therefore could only say what she imperfectly remembered.

Petit's version of the Walsingham incident varies from this. She said, addressing him haughtily, "Do you think, Master Secretary, that I am not aware of the artifices you use against me with such knavish cruelty? Your spies beset me on all sides; but you perhaps do not know that many of those spies have made false depositions, and have warned me of what you are about. And if he has so acted, my lords, how shall I be assured that he has not forged my cyphers to put me to death, when I know he has conspired against my child's life and mine?"

Those withering words, falling suddenly and without warning on the head of the guilty Walsingham, called forth a quick reply: "God is my witness," exclaimed he, "that in private I have done nothing but what an honest man ought to have done, and in public I have done nothing unworthy of my office. I have carefully sifted the conspiracies against Elizabeth, and had Ballard tendered me his services I should have accepted them."

Queen Mary: "Give no more heed to the words of those who slander me than I do to the statements of those who betray you. No value is to be attached to the testimony of those spies or agents whose words always give the lie to their hearts. Do not believe that I have been vain enough to wish that harm should be done to Elizabeth. No; I shall never seek her ruin at the cost of my honour, my conscience, or my salvation. Your proceedings are unjust: passages are taken from my letters, and their real meaning twisted; the originals were taken from me; neither the religion I profess nor my sacred character as a queen respected. My lords, if my personal feelings can

make one sympathetic chord vibrate in your bosoms, think of the royal majesty insulted in my person; think of the example which you set; think of your own Queen, who was, like me, wrongly mixed up in a conspiracy. I am accused of having written to Christian princes in the interest of my freedom. I confess I have done so, and I should do so again. What human creature, O good God, would not do the same to escape from a captivity such as mine! You lay to my charge my letters to Babington. Well, be it so, I deny them not; *only show me a single word in them about Elizabeth, and then I shall allow your right to prosecute me.*”

That Mary was so persistently attacked and importuned about this, first by Gorges, then by Paulet, Bromley, and Burghley, without proof, indicates pretty clearly:—

1. That she was ignorant of the so-called assassination plot.
2. That the interpolations on her letter to Babington were the work of Walsingham.
3. That the importunity of Elizabeth's ministers was by Elizabeth's express command, and was part of a deliberate plan to incriminate Mary, in order to justify her execution.
4. That this course was considered the most politic in order to defend their action before the crowned heads of Europe.

To the unlearned in those times a charge of this kind instituted by the Queen of England would, as already stated, be calculated to raise great suspicions against the Queen of Scots.

There is some similarity between the murderers of Darnley meeting solemnly at the Privy Council and resolving to prosecute and punish the murderers, and this trial at Fotheringay, when Elizabeth, who was responsible for the conspiracy against her own life, resolved to punish the authors of that conspiracy. In view of this, the speech of the Lord Chancellor in opening the case is an extraordinary exhibition of the corrupt morality of the period. The scheme to incriminate Mary was not a secret one. Its execution by Walsingham and others would make it universally known at the English court. Of the conduct of Elizabeth's ministers in this matter there is only one explanation, and that was their fear of death. They

were presumably terrified by such a bloodthirsty woman, and were glad to do anything rather than irritate her. Mary told them that Babington's plot was simply to release her, and she demanded to see any letter of hers referring to a conspiracy against Elizabeth. But no such letter could be produced; only copies, and these interpolated.

It would appear from Bourgoyne that during the trial the manner of the prosecutors was "to keep reading or speaking, in order to persuade the lords that she was guilty." All this was doubtless prearranged. When the Queen returned to her chamber she said to Bourgoyne that the trial put her in mind of that of Jesus Christ. They did to her in her place as the Jews did to Him: "Away with Him, crucify Him." She saw that she was practically condemned, and that nothing could save her. She appealed to Almighty God as the judge of her innocence, and demanded a public trial. This they refused, and this must be regarded as a proof of the weakness of their case.

The trial at Fotheringay was private and limited to Elizabeth's commissioners and a very few others. Burghley at the close of the Queen's speech tried to make a point against her by charging her with wearing the arms of England. To charge the captive queen with that when she had been nineteen years in captivity was an inexcusable and heartless proceeding, and shows how little better he was than his mistress. In regard to Nau and Curle, Queen Mary said she could not answer for them what they had written about this enterprise (conspiracy); that they had done it of themselves without her knowledge. Nau had been a traitor for about a year before this, and there is no doubt that anything he said against her, though void of truth, would be greedily devoured by Elizabeth's ministers. Mary said that she and Nau had many quarrels because she would not give in to his ideas and would not instruct him. He did her great harm, and to save themselves they had accused her.

When Elizabeth gave sentence of death Bourgoyne says there was great excitement in Parliament over it. We do not doubt this, for every member of Parliament outside of Elizabeth's ministers could not but be impressed with Mary's eloquent words and with her innocence, and with Elizabeth's tyrannical conduct. The treatment of Mary by her tormentors was still further illustrated. All her last requests were refused by Paulet, and eventually she was not allowed to write a letter without showing it to him

and allowing him to read it. Had the Crown of Scotland ever reached a lower depth?

On the evening of the second day of the trial, 15th October, Burghley appears to have written the following letter to Davison, one of Elizabeth's secretaries. As Davison would put the letter before his mistress, and Burghley knew that, that would account for the wording of it. The letter is not creditable to Burghley. It was a dish prepared to suit the palate of Elizabeth. "I did so encounter her (Mary) with the reasons, etc., as she had not the advantage she looked for." Why was Queen Mary there at all?

Burghley, from his position, could not but be aware of the tampering with her letters; that he could produce no authentic proof against her; that before the trial he had Elizabeth's order to condemn her; and this letter to Davison was therefore a discreditable communication from the first minister of the Crown:—"This Queen of the Castle (Mary at Fotheringay) was content to appear again before us in public to be heard, but in truth not to be heard for her defence, for she could say nothing but negatively that the points of the letters that concerned the practice against the Queen's person (Elizabeth) were never by her written, nor of her knowledge; the rest for invasion, for escaping by force, she would neither deny nor affirm. But her intention was by long, artificial speeches to move pity, to lay all the blame on the Queen's Majesty, or rather on the Privy Council, stating that all the troubles of the past did ensue because of her reasonable offers and our refusals; and in these her speeches I did so encounter her with reasons out of my knowledge and experience as she had not that advantage she looked for; as I am sure the auditory did find her case not pitiable, her allegations untrue, by which means great debate fell yesternight very long, and this day renewed with great vigour. And we find all persons in the commission fully satisfied, as by Her Majesty's order judgment will be given at our next meeting; but the record will not be provided in five or six days, and that was our reason why, if we had proceeded to judgment, we should have tarried five or six days more. And surely the country could not bear it by the waste of bread, specially our company being there, and within six miles above two thousand horsemen, but by reason of Her Majesty's letter we of her Privy Council, that is, the Lord Chancellor, Mr. Rich, the Secretary, and myself, only did procure this prorogation for the other two causes."

Mary was evidently not aware that, by an Act passed fifteen years before, witnesses in trials for high treason were required to be confronted with the accused, and not one of her six-and-thirty judges had the courage to inform her of this important fact. All remained deaf to her appeals; her secretaries were not examined and her notes were not produced. Nothing could have been more utterly worthless than the evidence produced against her. The letters were alleged to be copies of cyphers, but by whom the cyphers were deciphered, and by whom the copies were made, the commissioners were not informed, nor did they ask a question on the subject. ^[7]

On the second day neither the attorney-general nor the solicitor-general nor the Queen's sergeant took any part in the proceedings. Whether he was dissatisfied with the mode in which they had conducted the case, or whether he was desirous of displaying his erudition and his animosity against the Scottish Queen, Burghley took upon himself the whole management of the trial. Such conduct on the part of a judge was neither dignified nor decent, nor do we find in any other of the State trials of this reign so marked a departure from established usage. It may perhaps be taken as a proof of his declining powers that he had even the vanity to boast of the skill and success with which he had encountered and defeated the “Queen of the Castle,” as he facetiously termed the woman against whose life and reputation he had plotted incessantly for more than twenty years. ^[8]

On the 25th October the commissioners met in the Star Chamber, Westminster. With one exception, they found Mary guilty, not of the various matters laid to her charge by Burghley, but of having compassed and imagined since 1st June divers matters “tending to the hurt, death, and destruction of the Queen of England.” Lord Zouch alone had the spirit to dissent from the sentence, declaring that he was not satisfied that she had done so. Thus ended the most disgraceful of all the judicial iniquities which disgrace the history of England. No witnesses were examined, and of the various documents produced against her not one was original. They were not even copies of written papers; they were only alleged to be copies of cyphers, on the credit of men who were not confronted with the accused, and whose signatures attached to their alleged confessions were either obtained through fear of torture or forged by Phillips. ^[9] It is evident that the utmost exertions and the strictest search on the part of Mary's enemies,

directed by all the skill and vigour of Walsingham and carried into effect by the unscrupulous artifices and ingenuity of Phillips, had not been able to find the smallest scrap of evidence under Mary's hand which could connect her with the plot against Elizabeth's life. The whole case has been examined and carefully weighed, and the result is a confirmation of Mary's innocence. [\[10\]](#)

That devoted friend of the Queen of Scots, Marie Seton, one of the four Maries, now living in the convent of Rheims in France, had evidently heard of the overwhelming calamity which had befallen her old mistress, and writing a private letter to Courcelles, the French Ambassador in Scotland, sent by Henry III. to urge Queen Mary's cause before Elizabeth, under date 21st October 1586, said:—

“If she had not had a long experience of his courtesy she would complain of lack of news, as she only heard yesterday of his going to Scotland, in a letter from Paris on the return of M. d'Epinaert's son. Begs to recall herself to his memory. It is nearly twenty years since Marie Seton left Scotland, and almost all her relatives and friends had died during that period: still there must be some who would let her know any news that he might be kind enough to tell her. She apologises for a short letter, but has to write in great haste. She only adds that she is in great trouble and anxiety over the news which the talk in France has of fresh troubles to the Queen her mistress, and commends M. de Courcelles to God, praying to God that he may be happier than she is,” etc.

The espionage of the Scottish Queen continued with unabated energy. Paulet was careful not to name her in his correspondence with his august mistress, but used the expression “this Queen.” This pleased Elizabeth, and Paulet had her instructions to report daily everything that passed even to the minutest particular. The following letter, Paulet to Walsingham, 24th October 1586, enables us to understand the sort of material Elizabeth desired and relished. This illiterate individual instructing the Queen of Scots what books to read is highly ludicrous. Mary's sarcasm would doubtless be exercised on such a tempting opportunity, but Paulet takes care not to record it:—

“I took occasion yesterday, accompanied with Stallenge, to visit this Queen, who hath been troubled these two days past with a defluxion in one of her shoulders. I see no change in her from her former quietness and security certified in my last letter, careful to have her chambers put in good order, desirous to have divers things provided for her own necessary use, expecting to have her money shortly restored, taking pleasure in trifling toys, and in the whole course of her speech free from grief of mind to all outward appearance. I tarried with her one hour and a half at the least, which I did on purpose to feel her disposition, and moving no new matter myself, suffered her to go from subject to subject at her pleasure. She had a long conversation with Lady Shrewsbury of the Lord of Abergavenny, and of some other things not worthy of notice. This only I thought good to signify to you, that failing in the talk of the late assembly here, and having glanced at Lord Zouch for his speech in her chamber, and also of Lord Morley for some things delivered by him to the lords sitting next to him, which she said she overheard and told him so in the open assembly. She was curious to be informed of the names of those sitting in such a place, and of others sitting in other places, saying that one had said little, another somewhat more, and others very much. I told her that I might easily perceive by her reference to the lords which she had named that she was much inclined to think ill of all of those who spoke, and that I would forbear to name any to her, praying her to think honourably of the whole assembly, and to think that those who spoke and the rest who were silent were of one mind, to hear her cause with all impartiality. She added that the histories made mention that the realm was used to blood. I answered that if she would peruse the Chronicles of Scotland, France, Spain, and Italy, she would find that this realm was far behind any other Christian nation in shedding of blood, although the same was often very necessary where dangerous offences arose. She was not willing to go further into this matter, and indeed it was easy to see that she had no meaning in this speech to reach her own cause, but spoke by way of observation, after her usual manner. Thus you see that I am bold to trouble you with trifles, as one willing to be blamed rather for lack of good manners than for want of diligence.”

It would appear that on 11th November Walsingham received an anonymous letter, evidently from a Catholic writer, informing him that Elizabeth dared not put the Queen of Scots to death for fear of the consequences. This threat, however, was not followed by any movement to support it. The indifference of the Scottish people to the persecution and imprisonment of their Sovereign cannot be explained unless their loyalty to James VI., her son, stood in the way, and they could not face a rebellion.

CHAPTER IV

Elizabeth's instructions to Lord Buckhurst to communicate the sentence of death to Mary, and her remarkable reasons for this act—Elizabeth compromised in the Babington Conspiracy—Her letter to Paulet to allow the commissioners an interview with Mary—Elizabeth's chicanery (Petit's version)—Paulet to Walsingham, 21st November 1586—Letter Henry III. to his Ambassador in London to request James to save his mother's life—Sentence of death communicated to Mary by Buckhurst—Queen Mary's pathetic letter to the Pope informing him that she has been sentenced to die, and giving her last instructions—Her letter to the Duke of Guise informing him of her sentence, and giving instructions about her affairs.

HAVING in the previous chapter touched on the various points which occupied the attention of Queen Mary's enemies during the past four months, we now arrive at a critical period, the month of November. The situation was gradually becoming more serious and more acute, indicating that the mind of Elizabeth was not only fixed on the Scottish Queen during the day but during the night. The subject, in short, engrossed her whole attention. On 16th November 1586 she formulated her final instructions to Lord Buckhurst regarding the sentence of death which in her former letter she had ordered her ministers to find and pronounce. In this document, which we give in full, much is false and conjectural, much of it grotesque, while none of it is sincere or truthful. It would not occur to the Queen of England that these interpolations on Queen Mary's letters would ever be discovered:—

“Instructions given by Elizabeth to Lord Buckhurst and Robert Beale to declare to the Queen of Scots the sentence passed against her and the demand for her execution:

“After you have informed yourselves particularly as well of the treatise offered and other things needful which have passed between us and the Scottish Queen; of the manifold favours we have from time to time shown to her, both before and since her arrival within our realm, requited by her great ingratitude toward us, of which our pleasure is you shall receive some special note and remembrance from our principal secretary Walsingham, as

also of the whole course of our proceedings with her in trial of the late unnatural and wicked conspiracy against our life and Crown, whereof she is found by a just and honourable sentence of our nobility to have been not only privy and consenting, but also a compasser and contriver to the inevitable danger of our life and state. God of his great mercy towards us and our poor people most happily and miraculously discovered and prevented the same. Our pleasure is that you shall immediately repair to Fotheringay, where the said Queen now remains in charge of Sir Amias Paulet, and after you have delivered our letter to him and imparted our instructions and other directions, you shall go together to the Scottish Queen, to whom you shall signify the cause of our sending you to her, namely, to let her understand how the lords and our commissioners lately sent to Fotheringay have proceeded from their return from her. You shall particularly explain the causes which moved them to postpone the pronouncing of their sentence, their several meetings after their return at our Star Chamber to examine and perfect their proceedings, so that no just exception might be taken against the same; the producing before them of Nau and Curle; their free, voluntary, and public maintaining and confirming in their presence, without either hope of reward or fear of punishment, of all those things which they had before testified both by word, subscription, and oath, against her; and finally, the sentence given by the universal consent of all the lords and other commissioners, that she was not only privy to the late most horrible and wicked conspiracy against our person, but a contriver and compasser thereof according to the words of the sentence, which to this effect our pleasure is shall be delivered to you. And also how the Parliament of this realm now assembled, having been informed of our honourable and just proceedings by our commission, directed to the lords and others appointed for the examination and trial thereof, and made acquainted with the particulars of those things with which they found her charged, together with the testimonies and proofs produced against her, and her own answers to the same. Finding, after deliberate consideration, that the sentence pronounced by the commissioners was most just, lawful, and honourable, have not only with full consent and without scruple or contradiction affirmed and approved the same, but also by sundry deputies selected from both Houses of the Lords and Commons and addressed to us in the name of the realm, offered and presented their humble and earnest petitions to us, both written and oral, tending to the moving and persuading of us by their

strong and invincible arguments to proceed to the finishing of the sentence by the execution of her whom they find to be the seed plot, chief and motive and author of all these conspiracies which these many years past have been hatched, intended, and attempted against our person, Crown, and State, and do yet still threaten the same. If we should not apply that remedy which in honour, justice, and necessity appertaineth, we should be guilty and inexcusable before God and the whole world of all the miseries and calamities that may ensue of our neglect or refusal to agree to their humble petition, so greatly affecting the safety of our person and preservation of the State, of religion, and common weal of our realm, none of which can in their opinion be otherwise sufficiently provided for and assured against such outward dangers than by a just execution of her by whom and for whom they have been, and are still likely to be, devised, attempted, and followed out against us. And for that we are pressed on all sides as well with respect to honour, justice, surety, and necessity as the unfortunate suit and petition of our Lords and Commons, who still protest that they can find no other way of assurance for our person, religion, and State than by proceeding against her according to justice. You shall therefore let her understand that we know not how it shall please God to incline and dispose our heart in this matter, but we have thought meet in conscience that she should be forewarned thereof, so that she may the better bethink herself of her former sins and offences both to God and to us, and call on Him for grace to be truly penitent and for her late unnatural and ungodly conspiracy against our life. This crime is so much the greater and more odious in the sight of God and man in that she hath suborned and encouraged some of our own subjects to be the actors and doers of an act so foul and horrible against their Sovereign and anointed prince her own near kinswoman, and one that, however she may account thereof in nature and duty for past benefits, ought to have received a more charitable measure at her hands if either the fear of God or common humanity had prevailed anything with her. And because she should have no reason to think herself hardly dealt with in the manner of our proceedings against her, you shall let her know how much the respect of her degree, calling, and nearness in blood to ourselves hath moved us to take the course we have done in sending her a number of our chief and most ancient nobility to examine and try her offence. We might have proceeded otherwise by an ordinary course of law without these respects and ceremonies if we had not preferred our own honour to any other particular

affection of malice or revenge against her, which you may truly say is such as if the consequence of her offence reached no farther than to ourselves as a private person. We protest before God we could have been very well contented to have freely remitted and pardoned the same, if we might hereafter have lived sufficiently cautioned and assured against the like, a thing so much the more hopeless however she might hereafter reform herself. The taking of our life and subversion thereby of the present state of religion and commonwealth is amongst her factors and instruments abroad and at home now held and approved in their bloody divinity, as work meritorious and lawful before God and man. And whereas in the opening of these particulars she may happen, as in the late meeting of our commissioners with her, to fall into some justification of her former offers and demeanour towards us, removing the cause of all these mischiefs from herself and imputing the same to the hard treatment she may pretend to have received at our hands. We have thought meet, in case she shall fall into any such argument, that you remind her how much she is to blame to wrong us in honour with her unjust and untrue assertions, considering how much more graciously we have dealt with her than she could with any judgment or reason expect, if we had proportioned our favour with her own demerits. You may take occasion to point out to her those our deserts and benefits with her many ingratitude in recompense for them, which is conform to a special note from our secretary which shall be delivered to you. Lastly, in case you shall find her desirous to communicate with either of you apart under a pretence of revealing any matter or secret of weight to be delivered to us concerning either ourselves or our service, we think it not amiss that you conform yourselves to her desire, and thereby, if you find cause, to advise us before your return, which we leave to your discretion.

“ELIZABETH R.”

This is probably the most startling official paper to be found during the period covered by our narrative. It is pure fiction and was written a month after Queen Mary's trial. The first question that arises is this: Was Elizabeth connected directly or indirectly with the interpolations on these letters, and if so, to what extent? She was much too clever a woman to commit anything to writing that would incriminate herself. We have evidence that Walsingham, her secretary, was the writer of them, and that he paid Phillips

to open the letters surreptitiously, copy them, and on the copies introduce the interpolations. The originals were evidently destroyed, for they were never seen again. [\[11\]](#)

Could anyone suppose that this momentous proceeding was going on without the knowledge of the English Queen? Such a supposition would be impossible. Walsingham was a daily visitor at court and Elizabeth's paid secretary. It would have been as much as his life was worth to negotiate this diabolical plot unknown to his mistress, and particularly as every movement in connection with the Queen of Scots had to be communicated to her. It was a case where she reserved to herself exclusively the privilege of giving every order, with no intention whatever of consulting her responsible ministers or her Privy Council. In this particular matter they were merely figureheads. Walsingham, therefore, whose character we have already described, was in this case nothing but a puppet in the hands of a powerful and unscrupulous woman, stronger than himself. If he had an audience of her daily no correspondence between them would be necessary. The spies employed were Walsingham's servants. Their object was to inveigle Mary into a crime that was punishable with death. Walsingham having failed to get Babington's consent to Elizabeth's assassination, and thereby compromise the Scottish Queen, evidently resolved on the other alternative, and manufactured the material which Phillips introduced into the letters. The circumstantial evidence is too strong to permit of Elizabeth's escape from the responsibility. The actual extent to which she was compromised we shall probably never know, but it is a fair and reasonable deduction from the correspondence, as now disclosed, to say that she and Walsingham were responsible for connecting Mary with the plot against her life. There is no proof against Mary that will stand investigation, and no proof at all save forged and interpolated letters (see pp. 228-40). It was, in plain language, a cunning plot by Elizabeth against Elizabeth to encompass the Scottish Queen in a false conspiracy against her life.



SIR FRANCIS WALSINGHAM,
Secretary to Queen Elizabeth.

The foregoing paper containing instructions to Buckhurst, the outcome of this plot, we shall proceed to analyse. For audacity and unblushing falsehood it is almost without precedent. It proceeds on the assumption that the duplicity of the writer would not be found out, and we have no evidence that during her lifetime, or for long after, it was found out. The first paragraph takes us back to the beginning of Mary's captivity, and considering the length of that captivity and the treatment Mary experienced, the paragraph and its charges may be regarded as sheer imagination, to

which the innocence of Mary has given the lie. The second paragraph requires Buckhurst to explain the cause of his mission, the entire responsibility of which Elizabeth put on the shoulders of her lords and commissioners, who, she says, gave sentence against Mary unanimously! This almost takes away one's breath. The reader will take note that the sentence was written out by Elizabeth, handed by her to her ministers with a command to make it their finding notwithstanding Mary's guilt or innocence. No one dared to offer a word against it, or in short to have any opinion of his own; otherwise it might have cost him his life. As regards Nau and Curie, their evidence was obtained by the rack, and is of no value. The third paragraph orders the execution, with the hypocritical reasons which led to it, in all of which the wish is father to the thought, and plainly indicates the mind of Elizabeth. The conspiracy trick was an excellent trump card for such a woman to play against Mary, and by that means get quit of a rival whom of all the women in the world she knew to be superior to herself in every accomplishment. No woman could frequent the court of Elizabeth who was superior to her in these respects. We have a proof of this in the famous interview between her and Sir James Melville in 1564, when Melville's ingenuity was taxed to the uttermost to acknowledge Elizabeth's accomplishments against his will. The fourth paragraph may be considered as perjury and hypocrisy and a repetition of the unblushing falsehoods already expressed. The fifth paragraph doubtless was intended to convey to Mary some idea of the saintly conduct of Elizabeth and the wicked conduct of Mary, which reminds us of the Pharisee in the Hebrew story. The commissioners were to let her know "how much in respect of her degree, calling, and nearness in blood to us, have moved us to take the course we have done in sending our chief nobility to try her case." Whether this sentimental and insulting message was conveyed to Mary is not recorded, but the probability is it was not. The sixth paragraph is an "instruction" to the captive that as she has no case she is not to abuse the plaintiff. If she attempted to justify herself before the commissioners she was to be told what was equivalent to an insult: "how much she is to blame to wrong us in honour with her unjust and untrue assertions." This was before any assertions were made! Obviously the English Queen was not endowed with the common feelings of humanity. If we wished to get a side-light into her character this paper would afford us as much information as we require.

On the same day, 16th November, Queen Elizabeth wrote Paulet, authorising him to allow the commissioners an interview with Mary:—

“We have thought it convenient, for sundry reasons, to send Lord Buckhurst and Beale to acquaint the Queen your charge, as well with the proceedings of the commissioners since their departure from Fotheringay, as with what hath been lately done in Parliament concerning the commissioners' proceedings. Our pleasure is that you permit them to have access to the said Queen, hoping in God that before they repair thither you will be restored to that good state of health, so that you may be able to assist and join them in the present service committed to them. And in case the said Queen shall desire to have any conference apart, upon pretence to reveal some secret matter to be communicated to us, either with Lord Buckhurst or with any one of our servants, we are willing to assent thereto if she shall request the same; otherwise we could best like that you should be present when any such remarks should be delivered.”

When Parliament ordained the sentence to be carried out, Elizabeth was the more overjoyed at it as she believed herself thereby cleared, while she had accomplished her brutal purpose; and she took care to hint that but for the love of her people she could never have made up her mind to sign the death-warrant of Mary Stuart! She said, “I must tell you one thing, that by the last Act of Parliament you have reduced me to such straits and perplexities that I must resolve upon the punishment of her who is a princess, so nearly allied to me in blood, and whose practices against me have so deeply affected me with grief and sorrow that I have willingly chosen to absent myself from this Parliament lest I should increase my trouble by hearing the matter mentioned, and not out of fear of any danger or treacherous attempts against me, as some think. But I will now tell you a further secret (though it be not usual with me to blab forth in other cases what I know). It is not long since these eyes of mine saw and read an oath wherein some bound themselves to kill me within a month. Hereby I see your danger in my person, which I will be very careful to prevent and keep off.”^[12]

The unabated energy shown in the espionage of the Scottish Queen is evident from Paulet's letter to Walsingham under date 21st November 1586:

“My letter to Her Majesty enclosed herein will be, I doubt not, imparted to you; and although it pleaseth you to impute her intended liberality to my servants and soldiers to the report of Stallenge, yet I am persuaded that the same hath proceeded of your favour towards me and mine; wherein you have bound me very much, and indeed I thank you for it as for a singular benefit. I do not remember, and I think I may be bold to deny, that I have at any time left this lady in her passionate speeches. I have said to Stallenge, and it is very true that in former times I have observed this course: to have as little talk with her as I might. Lately, following your direction, I have given her full scope to say what she would; and yet at some times, finding no matter to come from her worthy of notice, I have departed from her, as otherwise she would never have left me; and I am deceived if Lord Buckhurst will not give the same testimony of her tediousness.”

At this crisis the conduct of James VI. surprised many of the friends of Mary. He was indifferent about his mother, because he was shaping his policy to succeed Elizabeth, and to do so he must not quarrel with her. A judicious and well-expressed letter on the subject was sent by Henry III. of France to Courcelles, his Ambassador. It was intended that this letter should be put before James, which doubtless was done, but for the reason stated was not acted upon. It is believed he could have saved his mother's life, but he was a selfish young man, and from all reports indifferent to his mother's circumstances, he never having seen her since he was an infant. The letter from the French King is full of sympathy, with every expression of anxiety for the sad and pitiful condition of the unfortunate Mary. It bears date, St. Germain, 21st November 1586:—

“I have received your letter of 4th October informing me of the conversation which passed between you and the King of Scotland on your expressing to him the sincere affection I bear him, by which he seems to have an earnest desire to correspond with me entirely; but I wish that letter had also informed me that he were better disposed towards the Queen his mother, and that he had the heart and the will to do everything to assist her in her present affliction, considering that the captivity in which she has been unjustly held for eighteen years and more might have induced him to listen

to the many proposals which have been made to him for obtaining her liberty, which is naturally most desirable to all men, but more particularly to those who are born sovereigns and to command others, who are more impatient of being thus detained prisoners. He ought also to think that if the Queen of England should follow the advice of those who desire her to imbrue her hands in the blood of his mother, it will be a great stain on his reputation, inasmuch as it will be thought that he has withheld the good offices which he ought to render her with the Queen of England, which might be sufficient to move her if he had employed them as early and as warmly as natural affection commanded. It is much to be feared that in case of the death of his mother there may be hereafter some scheme for acting the same violent part towards him, to render his accession to the throne of England more easily attainable by those who have it in their power to secure it after the Queen of England, and not only to deprive the King of Scotland of the right that he may claim to it, but render doubtful that which he has to the crown of Scotland. I know not in what state the affairs of my sister-in-law (Queen Mary) may be when this reaches you, but I desire you will endeavour to excite the King of Scotland by these remonstrances and any others that can bear on this subject, to take up the defence and protection of his mother; and tell him in my name that this is a thing for which he will be highly praised by all other kings and sovereign princes, and that he may be assured if he fails in this, great blame will attach to him and perhaps great injury ensue to himself.”

In the circumstances this was a noble letter, but on James it was quite lost. He had been repeatedly asked to befriend his mother, but we have no evidence that he ever did so. With him “the love of money was the root of all evil,” for he was constantly in want of money. Elizabeth aided him, and in fact controlled him; but that was no reason for allowing his mother to be murdered when he could have prevented it. King Henry III. of France behaved to Queen Mary as a brother and exerted himself more than anyone else to save her. But what is to be said of her son, on whom this eloquent letter of the King of France was lost!

It is evident from the conduct of Elizabeth that Mary's life could not have been saved except by military force, and nothing should have prevented James from appealing to arms. The kings of France and Spain would have

given him the necessary assistance. The more we know of James the less do we feel enthusiasm for him.

On 23rd November 1586 sentence of death was communicated to Queen Mary by Buckhurst, by order of Elizabeth. It does not appear that Mary was surprised by the announcement; it would rather appear that for some time she had been daily in expectation of it. To an ordinary individual the intimation would have been overwhelming, it would have crushed him to the earth. Mary, however, was made of sterner stuff. She had an overflow of spirits, which during her captivity did her great service and was a great factor in preventing her falling into melancholy. It may be said that her brilliant spirit never left her, but carried her through all her troubles up to their final termination. On the very day when she received this crushing intimation she sat down and wrote a long and beautiful letter to the Pope, a letter which His Holiness could not read without emotion. She also wrote to the Duke of Guise. These letters have been preserved and are as follows (slightly condensed):—

23rd November 1586, Fotheringay:

“Holy Father; And so it is that it has pleased God by his divine providence to make an order in his Church by which he has willed that under His Son Jesus Christ crucified all those who should believe in Him and be baptized in name of the Holy Trinity should acknowledge one universal and Catholic Church....

“I have been unable to give due testimony to your Holiness in consequence of my detention in this captivity together with my long illness, but now that it has pleased God to permit for my sins and those of this unfortunate island that I should be, after twenty years of captivity, shut up in a close prison and at last condemned to die by the Government and heretical Parliament of this country: as it has been signified to me today by Lord Buckhurst, Amias Paulet, my keeper, one Sir Drew Drury, and a secretary named Beale, in name of their Queen commanding me to prepare to receive death, offering me one of their bishops and a Dean for my consolation, a priest whom I had having been by them long ago taken from me and kept I know not where, in their hands. I have considered it to be my first duty to turn myself to God, and then with my hand to signify all to

your Holiness, that although I cannot make you hear it before my death, at least after it the cause of it may be manifest to you; which is, the whole well sifted and considered, for the subversion of their religion in this island alleged by them to be by me designed and in my favour attempted both by their own subjects obedient to your laws, their declared enemies, and by strangers, in particular the Catholic princes and my relations, who all maintain my right to the crown of England, causing me to be named as such in their prayers in the churches. I leave to your Holiness to consider the consequences of this opinion, supplicating you to cause prayer to be offered for my poor soul; and of all those who have died or shall die for the same and the like opinions. And also in honour of God to distribute of your alms, and instigate the kings to do the same, to those who shall remain alive from this shipwreck. My intention being to confess, to do penance so far as is in me, and receive my viaticum if I can obtain my chaplain or other lawful minister to administer to me my last sacrament, as in default of this with a contrite and penitent heart I prostrate myself at the feet of your Holiness, confessing myself to God and to His saints a most unworthy sinner, and deserving of eternal damnation, if it please not the good God who died for sinners to receive me by His infinite mercy to the number of poor sinners penitent by His grace. Entreating you to accept this my general submission and as a testimony of my intention to fulfil the rest in the form ordained and commanded by the Church and to give me your general absolution....

“I entreat your Holiness to impetrate from the most Christian King that my jointure may be charged with the payment of my debts and the wages of my poor desolate servants, and with an annual obit for my soul and those of all my brethren deceased in this just quarrel; having had no other private intention, as my poor servants present at this my affliction will testify to you, and how I have willingly offered my life in their heretical assembly to maintain my religion, Catholic, Apostolic, and Roman, and bring back the devout of this island; protesting in this case that I would willingly demit all title and dignity of Queen, and do all service and duty to theirs, if she would cease to persecute the Catholics, as I protest that this is the object at which I have aimed since I have been in this country, and have no ambition or desire to reign or dispossess others for my own sake, being by sickness and long affliction so weakened that I have no more desire to trouble myself in this world than with the service of His Church and the gaining of the souls

of this island to God. For evidence of which at my end I would not fail to prefer the public safety to the private interest of flesh and blood, which makes me beseech you, with a mortal regret for the perdition of my poor child, after having by all means endeavoured to retrieve him, being to him a true father as St. John the Evangelist was to the youth whom he recalled from the company of the robbers, to take at last all the authority over him which I can give you to constrain him, and to call on the Catholic King to assist you in what relates to temporal matters, and especially together to endeavour to unite him by marriage. And if God for my sins permits him to be obstinate, knowing no Christian prince at this time who exerts himself so much for the faith, nor possesses such means of assisting in the reduction of this island, as the Catholic King to whom I am so much indebted, he being the only one who has assisted me with his money and advice in my necessities, under your good pleasure I leave him all the rights or interest which I can have in the government of this kingdom. Should my son remain obstinately out of the Church; whom if he can be brought back I desire to be by him and my kinsmen of Guise assisted, supported, and advised, enjoining him by my last will to consider them after you as fathers, and to ally himself by their advice and consent and with one of these two houses, and if it should please God I wish him worthy to be a son of the Catholic King. You shall have the true recital of the manner of my last struggle and all the proceedings against me and by me, so that, knowing the truth, the calumnies which the enemies of the Church would fasten on me may be by you refuted and the truth known. [\[13\]](#)

“MARIE R.”

Queen Mary at the same time wrote to the Duke of Guise, Fotheringay, 23rd Nov. 1586:—

“You whom I hold most dear in the world I bid you farewell, being on the point of being put to death by an unjust judgment, such a one as never any belonging to our race yet suffered, much less one of my rank. But praise God, my good cousin; for, situated as I have been, I was useless to the world in the cause of God and his Church; but I hope that my death will bear witness of my constancy in the faith and my readiness to die for the support and restoration of the Catholic Church in this unfortunate island.

And though executioner never yet dipped his hand in our blood, be not ashamed, my friend; for the judgment of these heretics and enemies of the Church, and who have no jurisdiction over me, a free Queen, is profitable before God to the children of His Church, which, had I not adhered to, this stroke had been spared me. All those of our house have been persecuted by this sect; witness your good father, with whom I hope to be received in mercy by the just Judge. I recommend then to you all my poor servants, the discharge of my debts, and the founding of some annual obit for my soul; not at your expense, but to make such solicitation and arrangements as shall be requisite to fulfil my intentions, which you will be informed of by my poor disconsolate servants, eye-witnesses of this my last tragedy. May God prosper your wife, children, brothers, and cousins, and all belonging to them. May the blessing of God and that which I should give to my own children be upon yours, whom I commend to God not less sincerely than my own unfortunate and deluded son. You will receive tokens (rings) from me to remind you to have prayers said for the soul of your poor cousin, destitute of all aid and counsel but that of God, who gives me strength and courage to withstand alone so many wolves howling after me; to God be the glory! Believe in particular a person who will give you in my name a ruby ring, for I assure you upon my conscience that this person will tell you the truth agreeably to my desire, especially as to what concerns my poor servants and the share of each. I have suffered much for the last two years and upwards, but have not been able to inform you of it for an important reason. God be praised for all things, and may He give you grace to persevere in the service of His Church so long as you live, and may that honour never depart from our race, that all of us may be ready to shed our blood in the defence of the faith regardless of all other worldly interests. For my own part, I think myself born both on the father's and mother's side to offer up my blood for it, and have no intention to degenerate. May Jesus crucified for us and all the holy martyrs render us by their intercession worthy of the free-will offering of our bodies for His glory. Thinking to degrade me, they took down my canopy, and my keeper afterwards came and offered to write to the Queen, saying that this act had not been done by her command but by the advice of some of her council. I showed them on the canopy, in place of my coat of arms, the cross of my Saviour. You will be informed of all that was said; they have since been more indulgent.

"MARIE R. of Scotland,
Dowager of France."



CHAPTER V

Queen Mary's letter to Mendoza the Spanish Ambassador informing him of the sentence of death, her submission to it, and her references to Paulet's treatment of her—Her letter to Mendoza, 21st May 1586—Her remarkable letter to the Archbishop of Glasgow asserting her innocence of every charge against her, and her rebuke to the commissioners “that she would die a Queen in spite of them”—Her letter to Elizabeth with her requests regarding her death and interment—The Commendator of Pittenweem and King James—Letter of Bellievre, Chancellor of France, to Mary, 14th December 1586—The graphic interview of Bellievre and Chateauneuf with Elizabeth, when they demanded of her with a threat to spare Mary's life, or take the consequences—Elizabeth loses her temper.

ON the same day on which Queen Mary wrote to the Pope and to her uncle, the Duke of Guise, she also wrote to her devoted friends Don Bernard de Mendoza, the Spanish Ambassador, and the Archbishop of Glasgow. These letters, which we reproduce, were evidently written under deep emotion, and must have caused inexpressible grief to the friends who received them. There seems no doubt that Mary was quite estranged from her son for some time before her death. He was entirely under the control and in receipt of a pension from Elizabeth, which would account for it. Mary felt his conduct acutely; and not later than 21st May 1586 she wrote a private letter to the Spanish Ambassador (also given), in which her feelings on the subject are remarkably and excitedly expressed, even to the extent of handing her rights (if any) in the Scottish crown to the King of Spain, if her son continued in his present course of conduct. Mary has been taken to task for this letter by some of her enemies, who would make out, in defending her execution, that she sold the crown to the King of Spain. She wrote the letter in trying circumstances. The offer was simply to express how keenly she felt hurt by the behaviour of her son. There was nothing more in the letter than that. As a matter of fact, Mary had no rights in the crown to give away, but her enemies chose not to recognise this. We have not attempted to condense the two letters referred to—that to Mendoza and that to the Archbishop. They form a very important chapter in the last days of her life, and are letters that cannot be overlooked in surveying her history. A

deliberate perusal of them will strengthen one's belief in the forgery of the letters in the appendix of this volume. The sentence we have put in italics in the letter to the Archbishop is a convincing proof of the Queen's innocence as regards the conspiracy against Elizabeth's life. We must remember that this was amongst the last letters she ever wrote, and after she had received sentence of death.

Queen Mary to Don Bernard de Mendoza, 23rd November 1586:—

“Having ever found you zealous in the cause of God, and desirous of my welfare and deliverance from captivity, I have always communicated to you my intentions upon that subject, begging you to make them known to the King my brother. For this reason I now write to bid you a last adieu, notwithstanding the little leisure I have, being about to receive the stroke of death which was announced to me on Saturday last, I do not know when or in what manner; but at least you may praise God for me that through His grace I have had the heart to receive this unjust sentence of heretics with resignation, on account of the happiness which I esteem it to shed my blood at the requisition of the enemies of His Church, who do me the honour to say that it cannot be subverted while I am alive, and also that their Queen cannot reign in safety in the same predicament. As for these two conditions I have accepted without contradiction the high honour they confer upon me as one most zealous for the Catholic religion, for which I have publicly offered my life; and as for the other, although I have never committed either act or deed tending to take off her who was on the throne, unless it be that they make a crime of my right to the crown, which is acknowledged by all Catholics, yet I would not contradict them, leaving them to think as they please. This annoyed them much, and they told me that whatever I may say or do, it will not be for the cause of religion that I shall die, but for having endeavoured to murder their Queen. This I denied as being utterly false, having never attempted any such thing, and leaving it to God and the Church to dispose of this island in what relates to religion. The bearer of this has promised to relate to you how rigorously I have been treated by those here and how ill served by others whom I did not expect to have shown so great a fear of death in so just a quarrel. They have not been able to draw anything from me but that I am a Queen, free, Catholic, and obedient to the Church, and that not being able to effect my deliverance by

fair means, I was compelled to seek it by those which presented themselves. Nau then confessed all; Curle has in a great measure followed his example; so that everything turns against me. I am threatened if I do not beg pardon, but I say that 'As they had already destined me to die, they may proceed with their injustice, hoping that God will recompense me in another world;' and out of spite because I will speak, they came yesterday and took down my canopy, saying that I was no more than a dead woman and without any rank. They are at present working in my hall, erecting the scaffold, I suppose, whereon I am to perform the last act of this tragedy. I die in a just cause, and am happy in having made over my rights to the King your master. I have said that I consider him, should my son not return into the bosom of the Church, as being a prince most worthy to govern and protect this island. I have written to the same purpose to His Holiness, and I beg you to assure him that I die in the determination which I have communicated to you, and also another whom you know, to be his dearest and most intimate friend, and a fourth, and those above all others I bequeath to the protection of the King, beseeching him in God's name not to abandon them, and entreating them to serve him in place of me. As I cannot write to them, greet them in my name, and pray to God all of you for my soul. I have asked for a priest, but do not know if my request will be granted. They have offered me one of their bishops, but I positively refused him. You may believe all that the bearer of this shall tell you, and also those two poor girls who have been immediately about my person. They will tell you the truth, which I beg you to make public, as I fear that a very different interpretation will be given. Order a mass to be said for deliverance and repose of my soul—you know the place I mean—and let the churches in Spain remember me in their prayers. You will receive from me as a token of my remembrance a diamond which I have held very dear, having been given to me by the late Duke of Norfolk as a pledge of his troth, and I have always worn it as such; keep it for my sake. I do not know that I shall have leave to make a will. I have applied for it, but they have all my money. Excuse what I write in sorrow and trouble, not having anyone to help me to make my rough drafts and to write for me. If you cannot read my hand, the bearer will read it for you, or my Ambassador. Among other accusations, that of Crichton is one which I know nothing of. I fear greatly that Nau and Pasquier have hastened my death, having kept some papers; and they are men who will turn on any side for their own advantage. Once more, adieu. I recommend to you my

poor and henceforth destitute servants, and pray for my soul. I recommend to you the Bishop of Ross, who will be wholly destitute?

“MARIE R.”

Queen Mary to Mendoza, 21st May 1586:—

“I am in trouble as to what will be the course of events this side. Charles Paget is instructed by me to communicate some overtures on my behalf, concerning which I beg you to inform him without reserve what you think can be obtained from the King your master. There is another point connected with that which I have kept to write to you alone, that you may send word from me to your said lord the King without if possible anyone having knowledge of it. It is that, considering the very great obstinacy of my son in his heresy, I have determined, that in case he does not conform to the Catholic religion before my death—as I must tell you I have little hope of his doing so so long as he stays in Scotland—I yield and give up my right, by will at my decease, to this crown, to the King your master, begging him by means of this to quietly take beforehand under his complete protection both the State and affairs of this country, which for the clearing of my conscience I do not think I can put into the hands of a prince more zealous for our religion and more capable in every respect of re-establishing it this side, so as to be of great importance to the rest of Christianity. Let this be kept secret, more especially as if it came to be known it would mean in France the loss of my dowry, and in Scotland entire rupture with my son; in this country my utter ruin and destruction?

“MARIE R.”

Queen Mary to the Archbishop of Glasgow, Fotheringay, 24th November 1586:—

“After having deferred for a long time on account of the imminent danger of the undertaker, at last I have consented to the proposition which has often been made to me to escape. You will hear what has happened from the doctor and other servants, who till now are left to me, I know not for how long, nor whether I can have leisure to make my will. And having that, I do

not know if I shall have power, all my money and papers having been taken away, and having nobody to help me to write, although I have asked to have my almoner, that being more suitable if it could be done; but I have had no answer. If that is refused, will you entreat His Holiness, the most Christian King, the King of Spain, the Duke of Lorraine, and other Christian friends my relations, that my papers and money be restored, also the furniture which has not been distributed to my servants, in order that my conscience may be relieved towards my poor servants and creditors. You will find this language strange if you have not been told by Buckhurst, Amias Paulet, Drew Drury, and Beale, that the Assembly of Estates has condemned me to death, and they have declared it to me on the part of their Queen, exhorting me to confess and acknowledge my offences towards her. And in order to incite me to die well and patiently and to discharge my conscience, she proposed to send me a bishop and Dean, saying that her people have made constant requests for my death, considering that I being still alive and her rival, as it would appear by my having taken the name and arms of her crown, and not willing to give them up except on condition of being declared next heir to the throne, she could not live secure in her kingdom; also being called by the Catholics their Sovereign, her life had been so often attempted for this end, that so long as I live her religion was not secure in her kingdom. I thanked God and them for the honour they had done me in considering me such a necessary instrument for re-establishment of religion in this island, of which, although unworthy, I wished to consider myself a very zealous defender. In witness of which (as I had before protested) I offered voluntarily to shed my blood in the quarrel of the Catholic Church, and if the people thought that my life would help the welfare and peace of this island, I would not refuse to give it as a reward for the twenty years they have kept me prisoner. As to their bishops, I praise God that without them I know well enough my offences towards God and the Church, that I do not approve of their errors, and wish to have no communication with them. If it please them to allow me a Catholic priest, I said I would accept it willingly, even demanding it in the name of Jesus Christ in order to satisfy my conscience and participate in the holy sacraments on leaving this world. They told me I had done well, but do what I would I could not be either saint or martyr, as I was to die for conspiring against their Queen and for having wished to dispossess her. I answered that I was not so presuming as to aspire to these two honours, but whilst they had power over my body by

divine permission, not by justice, I was a Sovereign Queen, as I had always protested. Still they had not power over my soul, nor could they prevent me from hoping that by the mercy of God who died for me He will accept from me my blood and my life, which I offer Him for the welfare of His Church. Besides, neither here nor elsewhere would I wish to rule over a worldly kingdom and thereby lose the eternal kingdom. And I shall beg of Him that the grief and other persecutions of mind and body which I suffer may be set against my sins. *But to have conspired, counselled, or ordered Elizabeth's death, that I have never done*; nor would I permit on my part that even one single blow [one snap of the fingers is the original] should be given her. Oh! said they, you have counselled and permitted the English to name you as their Sovereign, as appears by the letters to Alan, and Doctors Lewis and others, and this you have not contradicted; to which I answered that I had taken nothing upon myself in my letters, but hindering the doctors and ecclesiastics from naming me at their pleasure was not my province, being obedient to the Church, approving what she decreed but not correcting her. And I said the same in regard to His Holiness if, as they declared, he made me be prayed for everywhere under a title of which I was ignorant. In any case, I wished to die and to obey the Church, but not to murder anyone in order to possess his rights. In all this I saw clearly the pursuit of Saul against David, but I cannot escape like him by the window, although from the shedding of my blood protectors may arise for the sufferers in this general quarrel. In short, the day before yesterday Paulet returned with Drury much more modest than gracious, to tell me that, having been warned to prepare myself to confess my fault towards the Queen, I had shown no repentance nor feeling of my fault, and he had therefore commanded that they should take away my daïs in order to signify that I was a woman who had died without any honour or dignity as Queen. I answered that God had called me by His grace to this dignity, and I had been anointed and consecrated justly, and that from Him alone I held it, to Him alone should I render it with my soul; that I did not recognise their Queen as my superior nor her council and heretical assembly as my judges; that I should die Queen in spite of them, and that they had no more power over me than robbers at the corner of a wood had over the most just prince or earthly judge, but I hoped that God would show His justice after my death upon this kingdom. The kings of this country had often been murdered, and it would not be strange for me to be amongst them and those of their blood.

King Richard had been treated thus in order to take away his rights. After these proposals, seeing that my servants would not lend a hand, all refusing boldly, even the poor girls crying aloud for vengeance upon him and his company, he called seven or eight satellites and destroyed the daïs, sat down and put on his hat, and informed me there would be no more time for exercise and pastime, and thereupon made them take away a billiard-table. I said thank God I have never used it since it was erected; I had always plenty of other occupations. I assembled yesterday my little troupe to repeat to them my protestation in respect of religion and the things they had laid to my charge, such as having distributed the estates, and other lies. Also I charged them all before God to tell you of all my behaviour and that of the others in this matter. I remit to Messieurs de Lorraine and de Guise, and all our relatives, everything necessary for the safety of my soul, the discharge of my conscience, and reparation of my honour, and that of those to whom I belong, which by my death they will put under their feet, not reproaching me alone but my cousin de Guise and all his relations for having given money for her death. I say, and it is true, that I know nothing of it and believe nothing of it.... I am content, and have always been, to give my life for the safety of the souls of this island. Adieu for the last time, and remember the soul and honour of her who has been your Queen, your mistress, and your friend, and if I have had any offence against you I pardon it, and beg of you and all my servants to pardon what I may have done amiss, just or unjust, protesting that I believe you guiltless in everything towards me, but you specially, as the principal and oldest of my servants. I feel myself obliged to recognise your services if God allowed me to live longer; failing that, I shall pray God to the end of my life to recompense you instead of me. May God be with you and with my servants whom I leave as my children.—Your affectionate and good mistress,

MARIE R.”

James Beton, Archbishop of Glasgow, Mary's devoted friend, was resident in France during the greater part of her captivity.

After the communication of the death-sentence Queen Mary employed her time in arranging her worldly affairs and in preparation for her removal. That was a task that was difficult of accomplishment, as she had estates in

Scotland and in France, the actual extent of which we have no means of knowing, but we have reason to believe that they were in each case large and not easily handled. On account of the arrogant and obstreperous conduct of the English Queen, we have no assurance that any of Mary's final directions were attended to. An illustration of this conduct will serve our purpose, and this will best be understood by the reproduction of the following letter:—

Queen Mary to Elizabeth, November 1586:

“I thank God with all my heart that it has pleased Him through you to put an end to the troublesome pilgrimage of my life. I do not ask that it may be prolonged, for I have only had too much time to experience its bitterness. I only ask your Majesty, for I cannot expect any favour from those zealous ministers who hold the highest rank in England. It is only from you, and not from any other, that I expect the following favour:—*First*, I beg of you, as I cannot hope for a burial in England according to the Catholic rites practised by the ancient kings your ancestors and mine, and as in Scotland they have desecrated the ashes of my forefathers where my enemies wish to tarnish my innocent blood, that my body may be carried by my servants to be buried in some holy ground, preferably in France, where the bones of my honoured mother the Queen repose; so that this poor body, which has never had any peace since it was joined to my soul, may find it at last when the two are separated. *Second*, I beg your Majesty, because of the fear that I have of the tyranny of those to whom you have abandoned me, that I may not be executed in a secret place, but in the sight of my servants and others, who can witness my faith and obedience towards the true Church, and defend the end of my life and my last moments against the false reports that my enemies would circulate. *Third*, I require that my servants that have served me with so much grief and so much fidelity may freely retire where they will and enjoy the pittance that my poverty has left them in my will. I entreat of you, madam, by the blood of Jesus Christ, by our relationship, by the memory of Henry VII., our common father, and by the title of Queen which I bear to my death, that you will not refuse such reasonable demands, and that you will assure me by card from your own hand. Thereupon I die as I have lived, your affectionate sister and prisoner,

MARIE R.”

These humane requests were refused by Queen Elizabeth, and though the statement seems incredible, it is unfortunately too true. Such a proceeding throws a shadow of distrust over the entire conduct of Elizabeth towards Queen Mary.

The subject of the King and the release of his mother evidently occupied a good deal of attention immediately Mary's fate had been announced. One of the many communications on the subject was that of Robert Stewart to the Commendator of Pittenweem dated from Linlithgow, 27th November 1586:—

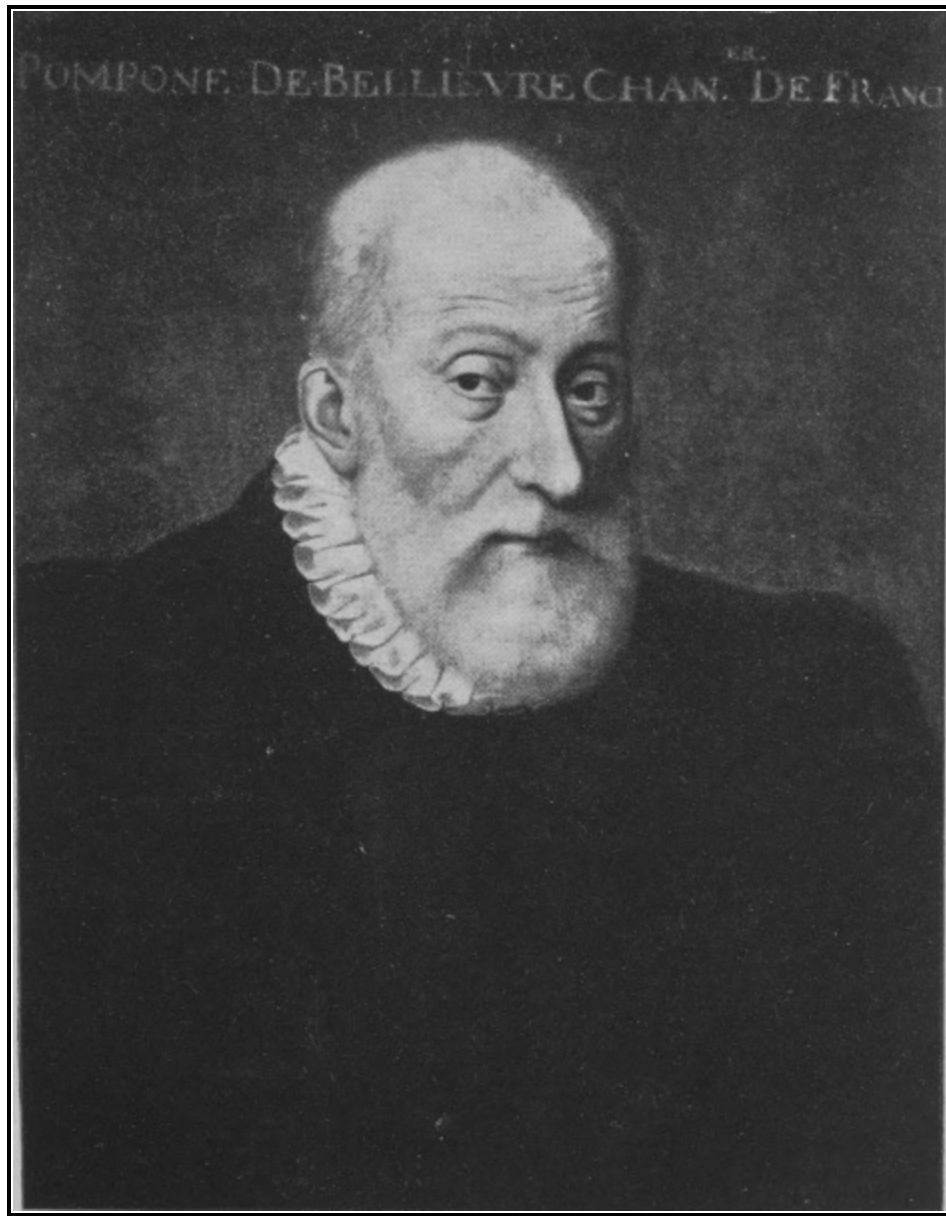
“I delivered your letter to His Majesty at Falkland, which letter and proposition was well received. He inquired the knowledge of the credit specified in the letter, which I would not at that time declare in respect that both the persons whom it touched were then present, but I told His Majesty that I had something to declare that concerned his welfare, which I should do when it pleased him. I attended several times, but could not find an opportunity until the report from His Majesty's mother came: how her Grace was accused and convicted for the conspiracy against the Queen of England. His opinion apparently was 'that she had done worse evil, and far beyond her honour and duty, and he could in no wise excuse her for that conspiracy.' He added, 'She is my mother, and I love her as well as any man may do his natural mother, albeit I must hate her actions deadly.' I discussed with him the power to sit and judge her according to their pleasure, as she, being a foreigner, was not subject to their laws. He said, 'Who could control the Queen of England's laws within her own country?' There is nothing apparently to be here but shame and ruin, except God help in time. It is concluded that the Queen shall die, but never while the King is living and at liberty. We look for nothing but to hear of her execution. The greatest part of the nobility lie out and is almost careless, looking for comfort where there is none. We are all in a miserable state; if there be any hope of help, haste in time, for he is not a Scotsman, though farthest in his relations with England, who would not hazard his life to relieve the Queen and desire the King to give them licence to that effect. The King believes that they dare do nothing to her. This is folly; if her release be not effected with great haste, she will take some sudden sickness, as ye will hear. Alas! my lord, we had some hopes after that parting to have had better news, but I perceive

nothing but what your lordship knows. I dare not write what I would; I would rather be dead than aye dying. At her best what help is the Queen to us; we shall come and seek it of you. As for the noblemen you left last in the country, they believe you are either dead or have altered your opinion; we work that we may win, and we work well for it.”

This letter is given as one of the few communications that have been preserved as coming from Scotland during this period. Whether the people of Scotland were silent respecting the extraordinary persecution of their Sovereign, or whether their protests against Queen Mary's treatment have not been recorded, it is impossible now to say. Their protests are conspicuous by their absence. By far the best remonstrance with Elizabeth on Mary's behalf was made by Bellievre and Chateauneuf, Ambassadors to Henry III. At their interview we have a graphic picture of Elizabeth and a side-light into her cruel disposition. How she takes God's name in vain, when she knows she is not telling the truth, is a scandalous act and an act of perjury. At that time Walsingham's interpolations would be imperfectly known outside the court, and that would very probably induce her to speak as she did. “It was impossible to save her own life and preserve that of the Scottish Queen.” The narrative of this interview is one of the most important papers we possess relating to the last days of the Scottish Queen. It would appear that the French Government sent over to England Bellievre as an Ambassador extraordinary with express orders to look after the Queen of Scots. Chateauneuf wrote asking him to hasten his journey in case the Queen of Scots should be murdered before his arrival. An audience was arranged with Elizabeth, and it took place on Sunday, 25th November, Bellievre being accompanied by Chateauneuf. Elizabeth received them with extraordinary pomp. She was seated upon her throne, the lords and officers being assembled around her in order of rank, forming altogether a brilliant spectacle. Bellievre then made his speech. “The enemies of the Queen of Scots,” said he, “spread a doleful report among your people that the existence of the Queen is your ruin, and that your two lives cannot go on together in this same kingdom.... It seems as if the authors of that statement wish to attribute all to the counsel of men and leave nothing to God's providence.... If some Catholic princes resolve to attack your kingdom, it will not be to save the Queen of Scots, but to uphold religion. Though the

Queen of Scots be taken away from this world, the cause of war is not removed, but rather the occasion for it increased and the pretext for war made more specious than before, to avenge an act so strange and so extraordinary committed against all worldly laws, against a sovereign princess, a Queen anointed and held sacred in the Church of God. If you put the Queen of Scots to death, as some advise you, her death will arm your enemies with despair and with an honest excuse for attempting against you all that may lie in their power to avenge the outrage.” After showing Elizabeth that she ran a great risk in using rigorous measures, he asked her to ensure Mary's safety, in the name of the Queen-mother, the King of France, and the reigning Queen, in extremely tender and touching terms. “Madam,” continued he, “you can greatly oblige us all by the resolution it may please you to take in the case of the noble princess who has been our Queen, and your Majesty is sure to earn our lasting thanks if, instead of handing her over to the evils with which she is threatened, you tender her a generous treatment.” Elizabeth replied, “That she much regretted that persons of their quality should have been chosen to negotiate so thankless an affair, but that her resolution was taken; and that at a later period the patience she had shown to the Queen of Scots would be appreciated, and the justice of her conduct recognised; and that, besides, she had been for some time past aware of the stories which people took the trouble to tell her, but that those noble examples could not induce her to change her purpose. She took leave of the Ambassadors, telling them that she put her faith in God, and that with His grace, poor woman as she was, she should overcome her enemies.” Sentence against Queen Mary was officially announced in London on 6th December, and by command the bells were rung for twenty-four hours without ceasing. This command was from the Queen of England, and need surprise no one after the proceedings we have narrated. Fires were kindled under the windows of the French Embassy amid the hootings of the mob. That affront roused the indignation of Bellievre. He asked Elizabeth to give him time to inform the King of France what was going on. She refused to receive the letter, and sent it to Walsingham. Three days later Bellievre received verbally the assurance that Mary would get a respite of twelve days. Henry III., on being informed, empowered Bellievre to try all means which prudence might suggest to bring Elizabeth to sentiments more befitting humanity. Bellievre requested another interview, which was granted. He then put forward the wishes of Henry III. regarding Mary, and

his grief on learning that the Queen of England was so unkind to her illustrious prisoner. He denied that Mary was under the jurisdiction of Elizabeth, and reflected on the unseemly way in which she had been treated. This noble princess “is so humbled and trodden underfoot that her greatest enemies ought to pity her, and therefore I plead for some clemency and kindness towards her at your Majesty's hands. What now remains for the Queen of Scots but a wretched life of a few short days! If she is innocent, she ought to be discharged. If you hold her guilty, it would be honourable and noble in you to pardon her. When your Majesty does so, then shall you do what princes are wont to do.... Those who wish to reign well and happily had better imprint on the table of their memory the sacred words, 'Thou shalt not kill.' Blood calls for blood, and such doings often bring about a sad end.” These eloquent words had no effect, and he then addressed threatening words, which aroused her. “Monsieur Bellievre,” cried she angrily, “are you charged by the King my brother to address me thus?” “Yes, madam, I have His Majesty's express commands to that effect.” “Have you that power signed by his hand?” “Yes, madam; the King my master has expressly commanded me and charged me by letter, signed by his own hand, to address to you remonstrances.” “I ask from you as much signed by your hand,” added she. Bellievre handed it to her at once, and immediately retired. He then prepared for his return to France, taking home with him only disgust at the course of events, and bitterly regretting that he had not been able to save the Queen of Scots. ^[14] This report of this famous interview gives us the substance of what was so eloquently said by the French Ambassador.



BELLIEVRE,
The French Ambassador who Silenced Queen Elizabeth.
(By permission of BRAUN, CLÉMENT & CIE.)

In the following condensed narrative, [\[15\]](#) which is an extract from the official despatch of Bellievre to Henry III., we get the words of Elizabeth in brief, at both interviews:—"She burst into invectives against the Queen of Scots, recounting the evil that she had received from her and the good offices she had rendered her; that she had been compelled to come to the resolution that had been taken because it was impossible to save her own life and preserve that of the Scottish Queen; and that if we knew any means

whereby she could find security for herself in preserving the Queen of Scots, she would be under great obligations to us, never having shed so many tears at the death of her father, of her brother King Edward, and of her sister Mary, as she had done over this unfortunate affair. The day before this audience Lord Buckhurst was sent to Fotheringay to announce the sentence of death to the Scottish Queen, and it has been said many times in London (though falsely) that they had already put the Queen to death.... Elizabeth gave another audience on the appointed day, Monday. We repeated the same prayer with all the urgency possible, and spoke in such a manner that we could not be heard except by her principal counsellors. But she rejoined in so loud a tone that we were put in pain because we were using prayer (as necessity required), and by her answer we could not but understand that our plaint was refused. Then lowering her voice she told us that she would wish us to be well advised, desiring the good of your Majesty, and that you could not do better than give shortly a good peace to your subjects, otherwise she could foresee great injury to your realm, which a great number of foreigners would enter in such sort that it would not be very easy to find a remedy for the evil. She returned to the subject of the Queen of Scots, saying that 'she had given us several days to consider of some means whereby she could preserve that princess's life without being in danger of losing her own; and not being yet satisfied on that point, nor having found any other expedient, she could not be cruel against herself; and that your Majesty ought not to consider it just that she, who is innocent, should die, and that the Queen of Scots, who is guilty, should be saved.' Two day afterwards Elizabeth informed us, after a long discussion, the reason which had moved them to proceed to this judgment, that 'out of the respect she had for your Majesty she would grant a delay of twelve days before proceeding to the execution of the sentence, conditionally that nothing in the interim should be attempted against her which might move her to alter her mind.' We informed her that if she put to death the Queen of Scots the King her son was determined to renounce all friendship and alliance that he had with England and to advise with his friends how he shall proceed in her cause; at which she put herself into a great fury. Your Majesty will be pleased to consider if there be not some way through your favour and authority whereby there may be a hope of saving her life, of which may it please you to let us understand within the said term your goodwill and pleasure."

This despatch is worthy of the admiration of posterity, and may be regarded as the production of one who was not only a highly capable Ambassador, but probably of all the men who aided Mary in her last hours he was the most influential, the most determined and earnest, and the most courageous. Who was there of all Mary's friends and supporters who could attack single-handed the lioness in her den as he did? His brilliant interview, the irresistible force of his eloquence, his contemptuous disregard of her royalty, his plain speaking, and his remonstrating with her as to her unlawful and cruel treatment of Mary, roused the ire of Elizabeth into a pitch of hysterical excitement, and her screaming interrogatives to the Ambassador were heard over the entire body of the hall. The flashes of wit and ready resources of Bellievre shown in his sarcastic replies were characteristic of the vivid intellect of a French statesman.

Bellievre's last communication to Queen Mary, London, 14th December 1586:—

“As it has pleased the King to send me here to inform the Queen of England how greatly obliged he would be if, in this unfortunate matter which has happened to your Majesty, it might be her good pleasure to treat you with that kindness and humanity that he, his kingdom, and the other princes and States of Christendom would expect from so wise and virtuous a princess, I have set aside everything in order to obey his commands and to do the service that I wish to do to your Majesty, whom I have so long venerated, as the wife of my King, and as my Queen. I should desire above everything in the world that it had pleased God that this princess to whom I had spoken on your behalf would have honoured me with a satisfactory answer. I assure you, madam, of the very good and cordial will of the King towards you, of the Queen, her mother and yours, and of the reigning Queen, who all suffer extreme pain on your account; while they have written to the Queen of England with as much affection as if it were a question of their own lives. I should hope that this princess, being so wise, so magnanimous, and so well advised, would not allow the prayers of persons so great and so interested in your preservation to be made in vain. Nothing is done in this world without the permission of God, whose anger we cannot better appease than by the exercise of a holy and Christian patience. God permits us to be abandoned by all men when for our greater good He desires that we may have all our succour from Him. 'When we

know not what to do,' says St. Bernard, 'to whom should we turn if it is not to thee, O our God!' He is not willing that we should be lost, and is able to give us in the future more consolation in one hour than the afflictions we have experienced during our whole life. If you think the Queen of England has not loved you, who knows that from this time it may please God to soften her heart towards you? ... It will be by God's grace that her good nature will soften her. It will be her generosity that will conquer and force her to love you, to take you under her protection, and join herself to you by the indissoluble ties of a good, happy, and perpetual friendship.”

This letter seems to have been written when the Ambassador could in reality do no more for the unfortunate Queen.

CHAPTER VI

Proclamation by the Queen of England announcing Queen Mary's death—Elizabeth instructs Paulet to deliver Queen Mary to the Sheriff of Northampton—Memorial from Walsingham with instructions for the execution and interment—Unfinished paper by Lord Burghley on Mary's execution—Letter from King James to Elizabeth requesting her to spare his mother's life—Sir Robert Melville and the Master of Gray wait on her and petition for Mary's life—Extraordinary commission by Elizabeth to the Earls of Shrewsbury and Kent to execute the Scottish Queen—Letter of Queen Mary to Henry III.; being the last letter she ever wrote.

DURING the six months over which our narrative extends, probably the most imposing document that was issued was the proclamation by the Queen of England announcing the sentence of Queen Mary. This remarkable paper was drawn up with consummate ingenuity, and no doubt represented the combined skill of Elizabeth, Burghley, and Walsingham. It is founded ostensibly on the so-called Babington Conspiracy. In the full knowledge of that plot which these three persons possessed, and in the circumstances as now disclosed, the issue of this proclamation was an audacious and an unwarrantable act, and cannot be defended. The document may be summed up in one word, "infamous." No one can blame the Scottish Queen for encouraging every plot formed for her release from the miserable life she was compelled to lead for the long period of nineteen years. Not one of these plots, to her knowledge, had anything to do with Elizabeth, and up to the day of her death she repudiated the charge that she ever did anything against Elizabeth's life. When this denial was so repeatedly given, Elizabeth's duty was to produce proof in support of the charge, or, failing that, to release the Queen. She neither did the one nor the other. Nothing was ever produced but these notable "interpolations." Notwithstanding these, she kept nagging and torturing the Scottish Queen to confess her guilt; and when that failed she executed her. During the captivity of Mary many plots were formulated for her release, principally by the Catholic party or individual members of that party, all of which are not recorded. It is natural to suppose that the patience of the Catholics was exhausted at the conduct of Elizabeth. Who could blame them if they got up a rebellion or an

invasion of England by the aid of France and Spain to compel Queen Mary's release? And who could blame Savage and Ballard, two noted Catholics, if they said they would themselves assassinate Elizabeth, in order to release Mary? There might be reasons for assassinating Elizabeth; there were none for assassinating Mary. When we further consider this proclamation of the Queen of England, that it is full of misstatements from beginning to end; when we also consider the mock trial of the Scottish Queen, and the sentence made up and delivered to Burghley, by royal command, before any trial took place, we shall be surprised if any student of Scottish history will fail to see that the Queen of England was herself the prime mover in the matter for which she executed the Queen of Scots. We now reproduce this document, which must at the time have greatly surprised and shocked the English people:—

ELIZABETH, by the Grace of God, Queen of England, France, and Ireland, defender of the Faith, etc.: WHEREAS we were given to understand very credibly (though to our great grief) that divers things were, and of late had been compassed, imagined, and resolutely intended, tending directly to the hurt and destruction of our royal person, and to the subversion of the estate of our realm by foreign invasions and rebellions at home, as well by the Queen of Scots remaining in our realm under our protection, as by many divers other wicked persons with her privy, who had freely confessed the same, and had thereupon received open trial, judgment, and execution according to law for their deserts. And though in very truth we were greatly and deeply grieved to think or imagine that any such unnatural and monstrous acts should be either devised or willingly assented to against us, by her being a princess born, and of our sex and blood, and one also whose life and honour we had many times before saved and preserved. Yet were we so directly drawn to think the same to be true by the sight and understanding of such proofs as were produced before us upon matters that had proceeded from herself, as well as from the conspirators themselves, who voluntarily and freely confessed their doings jointly with her, and directed by her, against our person and realm. Therefore we saw great reason to think the same too dangerous to be suffered to pass onward to take their full effect. Wherefore we were by sundry of our nobility, and others our loving subjects, earnestly moved and counselled to take order for the investigation and examination of these dangerous enterprises and

conspiracies avowed to be by the said Queen of Scots against us and our realm; and also to use all present means with expedition, to withstand and prevent the same. We were very unwilling to proceed against her, considering her birth and estate, by such means as by the common laws of the realm we might have lawfully done, which was by indictment and arraignment before ordinary juries; therefore in respect both of our own honour and of her person we yielded by advice, to proceed in the most honourable way that could be devised for the examination, according to a late Act of Parliament made 23rd November in the 27th year of our reign. Whereupon by our commission under the Great Seal of England, bearing date Windsor, 6th October last, we did according to the said statute assign, name, and appoint the lords and others of our Privy Council, and so many other earls and barons, lords of Parliament, of the greatest degree and most ancient of the nobility, as with the lords and others of the Privy Council made the number forty-two, adding also a further number according to the tenor of the aforesaid Act of Parliament, of certain of the chief and other principal judges of the courts of Record, Westminster, amounting in the whole to forty-seven, to examine all things compassed and imagined, tending to the hurt of our royal person as well by the Queen of Scots, by the name of Marie, the daughter and heir of James V., late King of Scots, commonly called the Queen of Scots and Dowager of France, as by any other by her privity, and all the circumstances thereof, and according to the tenor of the said Act of Parliament to give sentence or judgment as upon good proof the matter to them should appear. Afterwards the greater part of these councillors, lords, and judges—that is to say, the number of thirty-six—did in the presence and hearing of the Queen of Scots at Fotheringay, at divers days and times in public place, very exactly, uprightly, and with great deliberation, examine all the matters and offences whereof she was accused, and all the circumstances thereof, and heard also what the same Queen did or could say for her defence. Afterwards on the 25th October last, all the said council, lords, and judges who had heard and examined the cause in the said Queen's presence, with one assent and consent, after deliberation, did give their sentence in manner following:—That after the first day of June in the 27th year of our reign and before the date of the said commission, divers things were compassed and imagined within this realm by Anthony Babington and others with the knowledge of the Scottish Queen, she pretending a title to the crown of our realm, tending to the hurt, death, and

destruction of our royal person; which sentence the same lords and commissioners had caused to be put in writing and duly engrossed, with the whole process of their proceedings, and have subscribed the same as by a record thereof shown to us. And whereas the same sentence so given and recorded, the Lords and Commons in this present Parliament assembled have also at sundry times heard and considered the principal evidence, proofs, and circumstances whereupon the sentence was founded, and have by their assent in Parliament affirmed the same to be a full, lawful, and true sentence, and so have allowed and approved the same in writing presented to us. They have also notified to us how deeply they did foresee the great and imminent dangers which otherwise might and would grow to our person and to the whole realm if this sentence were not fully executed. Therefore they did by their humble petitions most instantly upon their knees, pray, beseech, and with many reasons of great force and importance move and press us that the said sentence so justly given and approved might, according to the express tenor of the said Act of Parliament by our proclamation under the Great Seal, be declared and published and finally executed. But after such request made to us by the Lords and Commons in Parliament, they perceiving by our own speeches and answers how deeply we were grieved to hear of these horrible and unnatural attempts of that Queen whose many former offences, manifestly and dangerously committed against us, our crown and realm, we had overlooked with our over great clemency, contrary to the advice and request of our subjects in Parliament and otherwise. Therefore they also, understanding from us how desirous we were to have some other means devised by them to withstand these mischiefs intended against us and the quiet state of the realm, and surety of our good subjects, than by execution of the aforesaid sentence as was required: they did after sundry consultations jointly with one accord, in the names of the Lords of Parliament, even by the particular votes of those assembled, and also of the Commons with one universal consent, representing the state of the realm, allege, declare, and protest, that upon their long and advised consultations by our commandment and for our satisfaction, they could not by any means find or devise how the surety of our royal person and the preservation of themselves and their posterity, with the good state of the realm, might be provided for without the publication and due execution of the sentence. Whereupon, being not only moved by our grief, but also overcome with the earnest requests, declarations, and

important reasons of all our said subjects, the nobles and Commons, whose judgment, knowledge, and natural care of us and the whole realm we know doth far surmount all others being not so interested therein; and perceiving also the sentence to have been honourably, lawfully, and justly given conform to justice and the laws of the realm, we did yield, and do according to the said statute by this our proclamation under the Great Seal of England, declare, notify, and publish to all our subjects and other persons whatever that the said sentence is given in manner aforesaid to the intent that they and every one of them by this proclamation may have full understanding thereof. We do also instruct you that you record this our proclamation in our Court of Chancery as speedily as possible; find place and time for the proclaiming thereof; whereof fail you not. We have caused this proclamation to be made patent and sealed with the Great Seal of England.

At our Manor of Richmond, the fourth day of December, the 29th year of our reign, and in the year of our Lord God 1586.

GOD SAVE THE QUEEN.

Following on the issue of this proclamation Elizabeth wrote the following letter to Paulet, which, taken in consideration with all the letters she wrote to that individual, is probably the best of them all for rank hypocrisy. A letter such as this is beyond words to criticise:—

Elizabeth to Paulet, 10th December 1586:

“Whereas you have had and still have the custody of the Queen of Scots, against whom judgment has been given whereby she hath been judged to have attempted our death and divers things to the hurt, death, and destruction of our person, as by our late proclamation of 4th December has been published. We have been continually by the states of Parliament moved, urged, and pressed to cause further execution to be made of the sentence, as without that it is solemnly protested that they can by no device find means for the surety of our person, the preservation of themselves, their posterity, and the realm. Whereupon we are, against our own natural disposition, drawn to yield thereto; and therefore we have directed our commission under the Great Seal to the sheriff of the county of Northampton to repair to you and receive the person of the said Queen into

his charge, and without delay do execution upon her as by our commission may appear to you. Therefore we command you to deliver her into his charge, so that he without delay shall in the presence of sundry noblemen and yourself, within our castle (Fotheringay) do the execution, and that you aid and assist the sheriff and others who shall be there for that service.”

After the issue of the proclamation and of this letter to Paulet we have still some characteristic documents to produce in connection with this great event in Scottish history. We do not think the public are aware that the speeches of the Earls of Shrewsbury and Kent at the execution were prepared several weeks in advance by Elizabeth and her ministers. This appears from a paper published by the Historical MSS. Commission entitled, “Memorial from Walsingham respecting the execution of the Queen of Scots,” and its purport to consider what speeches were fit for the two earls to use at the time of the execution (noted in margin by Burghley), to express her many attempts both for destruction of the Queen's person (Elizabeth) and the invasion of the realm; that the hope and comforts she hath given to the prince Palatine, traitors of this realm, both at home and abroad, are the occasion of all the attempts that have been made against Her Majesty's person. By the laws of God and man she is justly condemned to die; the whole realm hath oftentimes vehemently required that justice might be done, which Her Majesty cannot longer delay. To appoint only the Scottish Queen's chief officers and servants to assist at the execution, excluding the women; to direct the earls what to do in case she shall desire any private speech (noted by Burghley); *not to refuse it, so it be to three or two at the least*; some special person to be appointed to take note of her speech. The body to be buried in the night in the parish church in such uppermost place as the two earls shall think fit. Whether not meet to be embalmed? To take order that her jewels and plate may not be embezzled by her servants. The lords at the court to give out that *there will be no execution*.

The last sentence of this paper is very mysterious and quite inconsistent with the proclamation of 4th December; unless it be that that proclamation was not published at Fotheringay for fear of creating a panic. In that event the people would have probably rescued the Queen, and there can be no doubt that Elizabeth had this eventuality before her and provided for it. She

knew she had taken up a very critical position. The execution of so high a personage as the Scottish Queen was an astounding event; and, like all tyrannical rulers, she was in terror lest by some accident the scheme would be overturned. It was therefore in her opinion essential that the deed should be accomplished with all possible privacy and all possible speed. It has further to be noticed that in connection with the order for “no execution” there was issued what was called the “Hue and Cry,” sent out on the pretence that the Scottish Queen had fled from Fotheringay. This was done conform to the following order from Elizabeth:—“These are to charge you in the Queen's name that you make 'Hue and Cry' forward with all speed, and that you appoint, watch, and keep watch in the Queen's highway and at suspect places, and that you suffer none to pass without examination, and that you make 'Hues and Crys' and send them forth with all speed to every highway; for Fotheringay Castle is broke, and traitors are fled out.”

The publication of the “Hue and Cry” in these days was a common mode of warning the people of any important event, and the official order to issue this notice shows that the Queen of England took the utmost precautions to make the people in the provinces believe that there was no execution taking place at Fotheringay. If Elizabeth's conduct had been just and lawful, and her sentence against the Scottish Queen conform to the principles of justice, no such precautions were necessary. Queen Mary, fourteen days after the issue of this proclamation, wrote her last letter to the English Queen (see Bourgoyne's *Journal*, pp. 250-55). This communication is the cleverest of all her letters to Elizabeth. If she had adopted this style of composition when her captivity began it might have been better for all parties and led to different results. If Elizabeth had any feelings at all, this letter, with its dignified eloquence and its bitter reproaches, must have touched her to the quick. Elizabeth's refusal to grant any of Mary's last requests, even the place of interment of her remains, was an act which has rendered her name infamous to posterity.

Next in order in connection with these proceedings we have a paper on the execution of Mary said to be by Lord Burghley:—

“Notwithstanding that the Scottish Queen had oftentimes sought the destruction of Elizabeth, and has now been by order of justice convicted and found guilty of attempting her death by certain murderers, and that for

the same she deserved death, and so by the states of Parliament adjudged; and requests being importunately made to Her Majesty that for the avoiding of danger to herself and the whole realm she might be executed: Her Majesty, always inclined to mercy, was most unwilling to assent thereto, as appeared by her answers to Parliament, much to the comfort of all evil-disposed persons whose estates depended on the Scottish Queen's life and well-doing in the hope of her coming to this crown by depriving the Queen's Majesty of her life, a life subject to daily peril so long as the Queen of Scots is not executed. Her Majesty was continually solicited by all who saw her perils and understood how much her enemies at home and abroad were comforted and inspired with hope of the Scottish Queen's life and her treasonable attempts against Her Majesty's life. Herewith followed the vehement solicitations by Ambassadors out of France and Scotland to save the Scottish Queen, without any stipulation how the Queen's Majesty's life might be safe from the attempts and treasons of many of them in England and abroad. For preserving the Scottish Queen to be Queen of this realm, they would never desist from attempts against Elizabeth's person. These Ambassadors were vehemently handled, in promoting her foul acts intended for killing Her Majesty, and for invasion and alteration of the whole state of the realm. There was also discovered a practice between the French Ambassador and a lewd young discontented person named William Stafford, and one Maude, a prisoner in Newgate, a mischievous, resolute person, how Her Majesty's life should be taken, and all in favour of the Scottish Queen. After this followed a seditious general stirring up of the common people into arms by circulating billets in writing from one shire to another and from town to town; which though the justices sought to pacify, yet though it was stayed in one part it rose up again in another; and by these seditious practices sought to procure a rebellion. The whole realm was greatly stirred. Her Majesty, in view of these causes of danger likely to arise to her own person and her realm, thought it needful to have more regard how, if these dangers should continue by these seditious persons and stirrers of the common people, some factious and treasonable persons might by force recover the Queen of Scots out of the house where she was, there might be some order in readiness for prevention thereof, and therefore she signed a writing which had long before been devised, which was an order to certain lords, the Earls of Kent, Shrewsbury, Derby, Cumberland, and Pembroke, that they or any three or two of them might have authority to

cause execution of justice to be done on the Queen of Scots. Which writing so signed was in the custody of her secretary Davison, who took it to the Lord Chancellor to put the Great Seal thereto, which was done very secretly, and afterwards did declare the same to certain of the lords and others of the Privy Council, who seem glad thereof; and being at the same time greatly troubled with daily reports from many parts of the realm, of the seditious stirring up of people to take arms, and seeing the....”

Left unfinished, 17th February 1587.

It is by no means clear that Lord Burghley was the writer of this paper. It is unfinished and unsigned, two points against Burghley's authorship. Burghley was unlikely to leave a paper on this or on any subject unfinished. The paper is reproduced from the Report of the Historical MSS. Commission, and except the title, there is nothing to identify it with Burghley. It evidently belongs to one of two classes, namely, it is either a forgery of Walsingham and Phillips, or, if Burghley's, it is written under a total misapprehension of the facts as recorded in the official papers deposited in the State Paper Offices. The age that produced it was pregnant with forgery. Forgery, deciphering, and the surreptitious opening and closing of letters, were at that period in a high state of perfection. If we want an illustration of this we have only to refer to the treatment experienced by Mary and to the remarkably cunning artifice of the brewer's cart, ^[16] due to the ingenuity of Walsingham, when every letter she wrote or received was opened and copied quite unknown to her. Again, no man knew better than Burghley that Mary was never except once arraigned for being concerned in a plot against Elizabeth (Babington Plot), and of which she was totally innocent. If she had “ofttimes sought the destruction of the Queen's Majesty,” we would have had some proof of it, especially as every effort was made at the time to publish slander against the Scottish Queen. Considering the mock trial at Fotheringay and the unfounded charges brought against her, none of which Burghley could prove, we should think it very unlikely that he would write such a paper ten days after the execution. The primary object of the paper was to defend Elizabeth's sentence of execution, a sentence that could not be defended without resorting to the most unblushing falsehoods such as compose the text of this paper.

At the last moment King James came forward with a letter to Elizabeth on behalf of his mother. He was very blameworthy not to have come forward at an earlier stage. His letter need surprise no one who has studied his character. It had no effect whatever on Elizabeth. The letter is dated 26th January 1587, and proceeds to say:—

“I have resolved in few words and plain to give you friendly and best advice, appealing to your ripest judgment to discern thereupon. What thing, madam, can more greatly touch me in honour both as a King and as a son than that my nearest neighbour, being in strictest friendship with me, shall rigorously put to death a sovereign prince and my natural mother? She being alike in sex and state to her that so uses her; albeit subject I grant to a harder portion, touching her, too, so nearly in proximity of blood? What law of God can permit that justice shall strike upon them whom He has appointed supreme dispensers of the same under Him, whom he hath called gods, and therefore subject to the censure of none on earth, whose anointing by God cannot be defiled by man unrevengeed by the author thereof; they being supreme and immediate lieutenants of God in heaven, cannot therefore be judged by their equals on earth. What a monstrous thing it is that sovereign princes themselves should be the examples of the profaning of their own sacred diadems! Then what should move you to this form of proceeding (supposing the worst, which in good faith I look not for at your hands): honour or profit? Honour were it to you to spare when it is least looked for! Honour were it to you, which is not only my friendly advice but my earnest suit, to make me and all the princes in Europe eternally beholden to you in granting this my reasonable request! And now, I pray you pardon my free speaking, to put princes to straits of honour where through your general reputation and the universal, almost all, misliking, you may dangerously peril, both in honour and utility, your person and state. You know, madam, how small difference Cicero concludes to be betwixt *utile* and *honestum* in his discourse thereof, and which of them ought to be framed to the other. And now, madam, to conclude, I pray you so to weigh these few arguments that if I ever presumed on your nature so the whole world may praise your subjects for their dutiful care of your person and for your princely pity—the doing thereof only belongs to you, the performing thereof only appertains to you—and the praise thereof will ever be yours! Respect then, good sister, this my first, so long-continued and so earnest,

request, and despatch my ambassadors with such a comfortable answer as may become your person to give and as my loving and honest devotion unto you merits to receive.

“But in case any do vaunt themselves to know further of my mind in this matter than my ambassadors do, I pray you not to take me to be a chameleon, but, by the contrary, them to be malicious impostors. And thus praying you heartily to excuse my rude and lengthy letter, I commit you, madam and dearest sister, to the blessed protection of the Most High, who must give you grace to resolve in this matter as may be honourable for you and most acceptable to Him.

JAMES R.”

After the attempt of James had failed the Master of Gray (Patrick, 7th lord) was sent with Sir Robert Melville to make a last effort. They were long refused an audience of Elizabeth, and when it was at last granted they could not help asking themselves whether they had received a favour or an insult. These ambassadors, in the name of James and the Scottish nobles, answered for all that Mary might thereafter attempt, and proposed a resignation of her rights to the throne of England in favour of her son. “That would be arming my enemy with two rights instead of one, and making him stronger to do me hurt,” said Elizabeth. She scorned the idea of Mary's resignation in favour of her son. “Is it so!” she exclaimed; “then I put myself in a worse case than before. By God's passion that were to cut my own throat; and for a duchy or earldom to yourself, you or such as you would cause some of your desperate knaves to kill me. No, by God! we shall never be in that place.” Just as she was leaving, Melville asked her to spare Mary's life for eight days. “No,” replied she sharply; “not for an hour.” [\[17\]](#)



MARY, QUEEN OF SCOTS.

From the Collection of MRS. FRASER-TYTTER, at Woodhouselee.

In the beginning of February 1587 Elizabeth was thirsting for the blood of the Queen of Scots. From the contemporary records of the time she would seem to have been getting neither rest nor sleep; and until the culminating act of the drama had been accomplished there was no rest for her. This act, which was to disgrace her memory for all time, was now to be *un fait accompli*. The following paper is the text of the royal commission to those who were intrusted with the execution of the Scottish Queen—the most discreditable commission which was ever given by a Sovereign to a

subject. It is not too much to say that these men, who had the awful duty to perform compulsorily, must have had a heavy weight on their consciences for the remainder of their lives.

We reproduce the text of the commission by Elizabeth to the Earl of Shrewsbury, the Earl of Kent, and others, to proceed to the execution of the Queen of Scots, February 1587:—

“Elizabeth by the grace of God, etc., To our right trusty and well-beloved cousins, George, Earl of Shrewsbury, Earl Marischal of England; Henry, Earl of Kent; Henry, Earl of Derby, George, Earl of Cumberland; Henry, Earl of Pembroke, greeting:—Whereas the sentence given by you and others of our Council, nobility, and judges against the Queen of Scots, Mary, daughter and heir of James the Fifth, late King of Scots, commonly called the Queen of Scotland and Dowager of France, as to you is well known. All the states in our late Parliament assembled did not only deliberately, with great advice, allow and approve the sentence as just and honourable, but did also with all humbleness and earnestness, at sundry times require, solicit, and press us to proceed to the publishing of the same, and thereupon to direct such further execution against her person as they did adjudge her to have duly deserved, adding that the forbearing thereof was and would be a certain and undoubted danger, not only to our own life but to themselves, their posterity, and the public state of this realm, as well for the cause of the gospel and the true religion of Christ as for the peace of the realm. Whereupon we did, though the same was with some delay of time, publish the sentence by proclamation, and yet hitherto have forborne to give direction for the further satisfaction of the aforesaid request made by the states of Parliament whereby we understand by all sorts of our loving subjects, both nobility and council, and also of the wisest and best devoted of all other our subjects of inferior degrees, how greatly and deeply from the bottom of their hearts they are grieved and afflicted with daily, yea and hourly, fear of our life, and thereby consequently with a dreadful doubt and expectation of the ruin of this present godly and happy state of the realm, if we shall forbear the final execution as it is desired, and neglect their general and continual requests, prayers, counsels, and advices. And thereupon, contrary to our own natural disposition, being overcome with the evident weight of their counsels and the daily continuance of their intercessions, importing such a necessity as appears directly tending to the safety not only

of ourselves but also of the weal of the realm. We have condescended to suffer justice to take place, and for the execution thereof upon the special trust, experience, and confidence which we have in your loyalty, faithfulness, and love, both towards our person and the safety thereof, and also to your native country, whereof you are noble and principal members. We do, will, and by warrant hereof do direct, and authorise you, as soon as you shall have time convenient, to repair to our castle of Fotheringay, where the Queen of Scots is in custody of our right trusty servant and counsellor Sir Amias Paulet, and there, taking her into your charge, to cause by your commandment execution to be done upon her person in the presence of yourselves and the said Sir Amias Paulet, and of such other officers of justice as you shall command to be there, to attend upon you for that purpose. And the same to be done in such manner and form, and such time and place, there and by such persons as to you (five, four, three of you) shall be thought convenient, notwithstanding any law, statute, or ordinance to the contrary. And this our Letters Patent, sealed with the Great Seal of England, shall be to you and every one of you, and to all who shall be present or shall be by you commanded to do anything appertaining to the aforesaid execution, a full, sufficient warrant and discharge for ever. And further, we are also pleased and contented, and by these presents we do, will, command, and authorise our Chancellor of England to deliver to each of you the duplicates of these Letters Patent, to be for all purposes duly made, dated, and sealed with our Great Seal of England as these presents are.

“ELIZABETH R.”

The following letter was written by Queen Mary to her almoner de Prean the evening before her death, 7th February 1587:—

“I have striven this day for my religion and against receiving my last consolation from the heretics. You will hear from Bourgoyne and the others that at least I made protestation of my faith, in the which I will die. I require to have you to make my confession and to receive from you my sacrament. This has been cruelly refused to me, as well as permission to carry away my body and the power of leaving by will freely, or of writing anything, except it pass through their hands and by the good pleasure of their mistress. I must

therefore, confessing grief for my sins in general, as I had intended to do to you in particular, imploring you in the name of God this night to watch for me, praying that my sins may be remitted, and to send me your absolution and pardon, if at any time I have offended you. I shall endeavour to see you, though in their presence as they have accorded to me my *maître d'hôtel* (Melville), and if it is permitted me, before them all on my knees I will ask your benediction. Advise me as to the most proper prayers for this night and for to-morrow morning. The time is short and I have no leisure to write, but I will recommend you with the rest (of her household) above all. Your benefice shall be assured to you, and I will recommend you to the King (of France). Advise me of all you can think of for my soul's help—by writing. I will send you a last little token.

MARIE R.”

The final scene, the last act of the drama, will be found narrated in Bourgoyne's *Journal*, and need not be repeated here.

The following is the last letter Queen Mary ever wrote:—

“Fotheringay, 8th February 1587:

“Monsieur, my Brother-in-law,—Having been permitted by God, as I believe for my sins, to throw myself into the arms of this Queen my cousin, where I have had many troubles, and where I have spent nearly twenty years, I am at last by her and her Government condemned to death, and having requested my papers (taken away by them), to the end that I might make my testament, I have not been able to select anything that might be of use to me, nor to obtain liberty to make a register of them, nor that after my death my body might be conveyed according to my desire to your kingdom, where I have had the honour to be Queen, your sister, and former ally.

“This day, after dinner, I received notice of my sentence, that I should be executed to-morrow like a criminal at eight o'clock in the morning.

“I have not had leisure to give you a full recital of all that has happened, but if it please you to believe my physician, and the rest of these my heart-broken attendants, you will hear the truth, and how, thanks to God, I despise

death, and truthfully protest that I receive it innocent of any crime so long as I have been in their power. The Catholic religion and the maintenance of the right which God has given me to this crown are the two points of my condemnation—and yet they will not allow me to say that it is for the Catholic religion that I die, but for the fear of changing theirs; and as a proof of this, they have taken away my chaplain (to my sorrow), whom, although he is in the house, I have not been able to receive, either that he might come to confess me or to administer the sacrament at my death, but they have greatly insisted on my receiving the consolation and instruction of their minister, brought hither for this purpose. The bearer of this and his companions, the greater part of whom are your subjects, will testify to you how I bear myself in this my last act. It remains that I pray you, as the most Christian King, my brother-in-law and former ally, and as one who has always professed your love for me, that at this time you make proof of your virtue in all the points following: first, of your charity—relieving me in a matter which to satisfy my conscience I cannot accomplish without your aid—to reward my broken-hearted attendants, continuing to them their wages; second, causing prayers to be made to God for a Queen who has borne the title of most Christian, and dies a Catholic, stript of all her goods.

“As to my son, I recommend him to you so far as he shall deserve, for I cannot answer for him.

“I have taken the liberty of sending you two rare stones for your health, wishing for you that it may be perfect, with a happy and long life. You will receive them as from your very affectionate sister-in-law, who thus testifies to you in the presence of death her kindly feelings towards you.

“I recommend to you once more my attendants. You will give orders, if it please you, that for my soul I may receive payment of part of that which you owe to me, and that to the glory of Jesus Christ, to whom I shall pray for you to-morrow at my death, you allow thereof sufficient to found an obit for me, and to make the necessary alms.

“Wednesday, two hours after midnight.—Your very affectionate and loving sister,

MARIE R.”

CHAPTER VII

The sham Stag Hunt—The Queen starts in gleeful spirits, fully equipped and attended by her household—The shadow of Elizabeth suddenly appears, and the Stag Hunt is no more—Seizure of Queen Mary's personal attendants—Mary demands to know where they are taking her—She dismounts, and refuses to proceed—Paulet's insolence—Bourgoyne induces her to obey Paulet and proceed—She retires and offers up prayer—Bourgoyne helps her to remount—She is taken to Tixall—Refused pen, ink, and paper by Paulet—Her papers and cabinets seized at Chartley—She is brought back to Chartley—Paulet and Bagot in her bedchamber without leave—Paulet seizes her money and reopens the Babington Plot—He removes her from Chartley to Fotheringay—The remarkable procession and arrival at Burton.

BOURGOYNE'S JOURNAL

THE *Journal* of Bourgoyne, physician to Queen Mary, cannot fail to have a pathetic interest to all students of history. That eminent physician was a faithful and devoted servant of the Queen, and was one of the few who were privileged to be with her in her last moments at Fotheringay. He was a man of much refinement of feeling, if we may judge from his *Journal* and by his behaviour during that period. His *Journal* unfortunately covers only the last six months of the Queen's life. It would have been of great value had it covered a longer period, but we are glad to have it even as it is, as it contains some incidents not otherwise recorded. The minuteness of these details conveys sometimes a different impression from that indicated by the historian, but the importance of Bourgoyne's *Journal* is that no suspicion has ever been thrown around it; and though already published in France, no controversy has arisen to question its genuineness. It may be accepted as a *bonâ fide* record, and indeed its entries are so circumstantial as to leave no room for doubt. The fact that he had uninterrupted access to the Queen gives point to what he says and warrants us in considering his record reliable. Another matter not to be lost sight of is that we have very little recorded of Mary during this period, so that the *Journal* fills up a blank. Some of the entries are very obscure on account of the vernacular of the time, but they manifest the fidelity and integrity which marked this devoted servant of the Queen.

This *Journal per se* would not determine any of the events of the Queen's reign, but it is an important factor in exposing the fraud that was perpetrated against her by the interpolations on her letters to Babington. Bereft of these fabrications, the so-called Babington Conspiracy was a mere plot to release the Queen of Scots from captivity, a plot that she was warranted in encouraging, and a plot, notwithstanding the unfounded charges of her accusers, that has been approved by posterity. It seems reasonable to conclude that Bourgoyne wrote this *Journal* with the primary intention of exposing the kidnapping outrage and the unlawful and inexcusable treatment of the Queen which followed. It will be noticed that in the very first entry the outrage is hinted at as a "stag hunt." We now proceed to reproduce the *Journal*:—

"*Thursday, 11th August 1586.*—The Queen sent Curle her secretary, who was accustomed to be employed in her affairs, to Sir Amias Paulet to let him know that she desired to walk after dinner; to which Paulet answered that the Queen could go if she wished; but if she was well next day she would have a little pastime, as Sir Walter Aston, who lived three miles distant, would give her the pleasure of a stag hunt. He wished her to kill the stag with her own hand as she had done formerly, the year Mr. Bagot had lived here. Her Majesty, very fond of such a pastime, was delighted, and accepted it; and although she hesitated because of the day being Friday, she thought it better to accept rather than lose so good an opportunity, which might not occur again.

"*Friday, 12th August.*—Not so much because of the fast as on account of the weather the hunt was put off till the following day, but that day was also unpropitious. Sunday and Monday passed, being feast days. Her Majesty, who had not forgotten the hunt, desired to have the promised pastime, and, not suspecting anything, sent to remind Paulet, who granted it. She put herself in proper attire, hoping to see a good company, and was followed by Nau (who did not forget to dress himself), Curle, Melville, and Bourgoyne; and Annibal, with the Queen's bows and arrows, all on horseback, and well-equipped, to do her honour, while everyone was merry over the anticipated sport. (This was Tuesday, 16th August.) Although nobody was permitted to go on foot, Paulet allowed many of the valets to follow their horses, the which he repented afterwards. The Queen on horseback galloped a mile in such mirth that we left Paulet with some of his people behind in order to

join others who were in hiding not far away. Having passed a little in front, the Queen warned Nau that Paulet was behind. Wishing to pay him a compliment for the delightful pastime, she said she had gone in front, without remarking it, and that she feared that he, being ailing and infirm in body, could not follow the company so quickly. He answered courteously, pretending that he had been hindered by too great a number of valets and servants on foot, who had come in greater numbers than he wished. We advanced a little farther, when Paulet again approached the Queen and said, 'Madam, here is one of the bodyguard of the Queen (Elizabeth), who has a message for you;' and suddenly M. Gorges, Ambassador of Elizabeth, dressed in green-braided serge, dismounted from his horse, came to Her Majesty, who remained on horseback, and said, 'Madam, the Queen my mistress finds it very strange that you, against the agreement which you made together, have undertaken against her and her estate what she never would have thought of if she had not seen it with her own eyes. And as she knows that some of your servants are guilty, you will not take it ill that they are separated from you; the rest Paulet will tell you.' To which Her Majesty could only answer, 'Very far from having conspired against the Queen, I have not even had such a thought. She has been wrongly informed. She had always shown herself a good sister and a good friend, and she knew well it was not the first time that she had been misinformed and had done her injustice.' Her Majesty added, 'I see we must return,' and called Nau, who as quickly as he could approached her, but was driven back with these words, 'Take him away, take him away; don't allow him to speak to her,' and Gorges got between them. Resisting which, Nau maintained excitedly that they could not hinder him from speaking to his mistress. Gorges told him that he must not prevent him from fulfilling the orders of Elizabeth. The same was said to Curle, who cried out that he would take leave of his mistress, and advanced on a little country nag. Nau, who had a coach-horse that he had taken in order to run better and appear at the chase, was in danger of being upset among the horses. At the last the two turned away without speaking to the Queen, and they never saw her again. Suddenly Paulet ordered them to be disarmed of sword and dagger, which those on horseback were carrying without being prohibited. Then he commanded each of us to be guarded by one of his servants on horseback, to conduct us and be responsible for us. Wade was present but did not interfere. Nau and Curle were taken away into a village and put into separate rooms not

communicating with each other, and Didier the butler was led away by one of Paulet's people, not knowing what he had done. Melville was taken to a house where he only remained the night, being next day taken to the house of M. Chaques, where he remained, being allowed to hunt and walk at leisure. The rest went on with the troop of Paulet's people in front, for a mile or two quickly, until I, who had put myself near the Queen and always followed her, warned her that we were not going the way we came, but that they were taking us another way. Upon which she called Paulet, who was riding in front. She said, 'We are not going home.' He answered, 'No.' She demanded to know where he was taking her, and he said, 'Not far.' But she said she wished to return to her lodging, and would not go beyond it. Upon which she dismounted, and being indisposed, and not able either to ride or walk, sat down on the ground and leant on the bosom of Elizabeth Curle, one of her attendants. She again asked where he wished to take her, and he answered, 'It would be to a good place, and more beautiful than this; that she could not return to her lodging, and that it was time lost to remain there or to resist.' She said she would die sooner than consent to this proposal. He threatened to send for his carriage and put her into it, ordering his people at the same time to go for it. He was answered that the coach horses were not there, for Nau had taken one and Bastian Page the other. During this interval those who went in front were in a short time far away, out of sight of us, and saw us no more, Paulet remaining alone with eight or ten of his people, who walked behind, at which I was much astonished. Her Majesty, still seated, weeping and grieving said to him, 'It was infamous to treat her in this manner, she being a foreign princess; that it was behaving traitorously; that they had given her in charge of a gaoler, and that an honest man would not have undertaken such a commission. She was a Queen, as well as the Queen of England, and of as good a house as she; that she ought not to be treated in this fashion to please her enemies, who demanded nothing but her ruin. She did not know why these things were done; she had done nothing to deserve them; she did not believe the Queen of England intended this, but it was his (Paulet's) bad counsel that was inimical to her; that they had better take care what they did, for this act might cause bloodshed and the death of many; that kings and foreign princes would resent such conduct, and take vengeance on England.' Hearing this, Paulet got impatient and said 'She must be quiet and not annoy herself any more, as no harm would happen to her; that what he did was for a good reason,

and there was no remedy; the longer she remained there the more harm it would do, and she must go on.' On which I and her people reminded her that she must have patience; 'that in her time she had had many afflictions, which she had borne patiently, and that she must show herself firm and composed in this with her royal heart; that she must endure affliction, and that there was no resisting force. As to being in the hands of her enemies, I did not think it good that she should put herself still more in their hands; that she could not remain there all night; that the longer she lingered the worse it would be, since she must set out; that not knowing where they were leading her, she might be benighted and on the road all night, which would more easily give occasion to her enemies to hurt her and execute their ill-will. What they did now would be by force.' Then Her Majesty demanding of Paulet if she had far to go, he said about three miles, repeating that it was a beautiful place, where she would be better lodged and would find fault in nothing. Complaining of the want of her people, as also her clothes and night gear, Paulet said that she would have her people; maids, servants, and effects would all be there as soon as herself. Because of their importunity she rose, and being supported under each arm she retired and under a tree prayed that God would have pity on her people and on those who worked for her, asking pardon for her offences, which she recognised to be great and to merit punishment; that it would please God to remember His servant David, to whom he had extended His mercy and had delivered from his enemies; that upon her his hand might be stretched out, keeping her people faithful and delivering her from the hand of Pharaoh. She desired nothing in the world, riches, honour, power, or worldly kingdom, only the honour of His holy name. I raising her by the arms got up, and not knowing what might be the information—perhaps the Queen of England might be ill or dead, and it might be that England wished to make use of her to place her person in safety or her enemies in surer custody. Upon which, addressing Paulet, she said she did not know on what authority he did this, and the Council had no authority to treat her so. He said it was one with as much authority as the Council, even was the Council, and showed her a letter which he drew from his pocket signed 'Elizabeth,' written by a different hand, the summary of which was partly the message of Gorges and partly giving orders to detain the Queen until further notice. The Queen complaining that she knew well it was the work of her enemies, protested against the wrong they were doing her, invoked God, and immediately

remounted. Being in such trouble, and fearing they might do some harm to her, I begged Paulet to have pity on a princess so afflicted and in trouble, and hoped he would not do such a wrong as to harm her life, and that he would execute his commission as a discreet man; that as courtesy and charity were always approved, no matter in whom, so cruelty was condemned in those who had the right to exercise it. Kings and princesses often gave orders in anger of which they were annoyed afterwards when these were put in execution, and such men were complimented when they did not execute them at once, and often were more welcome to their prince, who had cooled down, and regretting the order given, were happy it was not executed. Further, he himself was known to be wise and prudent, and capable of judging everything, and could weigh it; that having regard to the sex and quality of his captive, he would thus acquire more honour than by executing his command arbitrarily. It would be a perpetual shame and reproach to him and his posterity to have been employed in a cruel act. Paulet answered that he did not take well what I said; that he was no gaoler; that he was a gentleman, although he was not rich; that he was noble, faithful, and honest. Gaolers were for criminals, and she ought to be guarded like a criminal. I said he was having to do with a Queen who was in affliction. I thought no one in such distress would not have said more than she did, seeing no remedy nor succour and finding danger so near. Paulet said no harm would happen to Her Majesty, and that he would do as well as he could. He thought she had been badly advised. I answered if he thought Her Majesty badly advised he might also think the Queen his mistress had been badly informed; and that as princes were often led by those whom they favoured, so also they were often deceived; that Her Majesty, though she had many enemies in England, it was well known she was not without friends. Some here who are at court near to the Queen did not cease to annoy her, and found no difficulty in bringing to notice what would do her harm, and repeated many things that would be found false. Leaving him, I advanced near Her Majesty, and told her briefly part of the conversation I had had with Paulet, assuring her from him that she would experience no harm, and there would be no want of requisite comforts and commodities. When we had gone part of the way Laurence, Curle's servant, held the bridle of the Queen's horse and spoke to her. Paulet caused him to be seized, not without great resistance, and sent him to Chartley with Gorges. We now approached Tixall, the seat of Sir Walter Aston, where they

led the Queen. Paulet approached her, and said it was necessary that Elizabeth Pierrepont should leave her; and then he presented a gentleman named Chatham, who took her in charge with great lamentation and tears, as much on the side of Her Majesty as of the demoiselle, who had been wicked and ungrateful. Her Majesty, he said, ought rather to have regretted ever having seen her than for being parted from her.

“The Queen arrived at Aston's house and was taken to her chamber. She sent me to ask what Paulet had done with her butler. He answered that he thought he was with her, and was surprised, saying he must have been led away without orders. He promised that he would be immediately in the house, and sent for him, as also for the apothecary, the surgeon Jervis, Jane Kennedy, Mowbray, and Martin the cook, all of whom, remaining at Chartley, had been shut up by Wade. After supper Her Majesty sent to ask for her night things, which were sent her; and as Paulet had no power to accommodate her better, she being ill and having need of many things, she requested him to send her pen, ink, and paper to write to Elizabeth. He refused the request, and she replied that she thought it very strange that she could not write, seeing it was a thing she had always been free to do, and Elizabeth had begged of her not to fail to write her in any circumstances, asking if there was a new order prohibiting her from doing so. She called for witnesses, and protested before them against the harsh manner in which she was kept. Paulet said she might take any witness she liked, but she could write no letter until he had the authority of the Court. After this interview she desired to see him again, but he declined. Meantime, as they led the Queen to this place, and Nau and Curle to the other, Wade was at Chartley, where he caused all the servants who remained behind to be shut up in different parts of the house; all the maids and the wife of Bastian, with Mrs. Curle, who was near her confinement; seized all the keys of the doors of the chambers and cabinets of the Queen and as many coffers as he could, and the keys of those who were absent with Her Majesty, and sealed up all the locks that he could.

”*Wednesday, 17th August.*—Her Majesty being still in bed, I was sent for by Paulet to speak with him; but before doing so I asked if she had anything to say to him. She said I must see first if he would allow me. Then I was not permitted to remount, but was taken to Chartley, where I remained a prisoner with the others, waiting the return of the Queen. They sent me

there against my will, resisting as much as possible, under the pretext that I must be present when they visited my chamber to answer for what they found. After stating that my boxes were opened in my room, and they could visit them without me, I was promised that I would return the same day. This, however, was not done. This and next day, Wade, Bagot, Manners, Knight of a great family, who had even been employed in the troubles of the Queen for the Duke of Norfolk, together with Sir Walter Aston, in whose house the Queen was detained—all these gentlemen were employed searching the chambers, cabinets, coffers, and cash boxes, papers, books, and everything they could suspect as containing matter for their information. This evening they brought away three coffers filled with papers of all kinds, one part of which was the private affairs of the Queen's household. At four o'clock p.m. Pasquier, who had been confined in a room separate from the others, was taken to Chartley. And I immediately after went to the cabinet of Her Majesty to find some medicine for her, hoping to return at once, but was sent back to the porter's lodge, where I had been all day waiting until they should come down from the Queen's room, which they did about 7 p.m. Then they searched my room, but found nothing.

*“Tuesday, 23rd August.—*Mrs. Barbara Mowbray, Curle's wife, had a daughter about 5 o'clock a.m.

*“Wednesday, 24th August.—*We consulted to have the child baptized, not having had news of Her Majesty, who was still at Tixall. During dinner M. du Prean was taken away, and the same day Elspeth Bras and her mistress, Elizabeth Pierrepont. All the rest of us were much astonished, only expecting that we also would be separated, hoping at the same time that Her Majesty might return the following day.

*“Thursday, 25th August.—*Her Majesty was brought back to Chartley with a great company, having been strictly confined at Tixall. She was very welcome to each of us, as we held her in great devotion, though not without tears abundantly flowing on both sides. This day we visited each other as those who had just come home. After the tears had passed away Her Majesty found nothing to say except about her papers, which had been carried off. There was found a cloth, from which had been torn off a promise of marriage in parchment between Nau and Elspeth Pierrepont, which they had found in one of that lady's coffers, who, consenting with

some others in the house, had signed the said contract and kept it secret. Her Majesty was very angry, as much for Nau's honour as for that of Melville. Nau had made a solemn promise to the Queen not to marry this lady nor make any vow to her on the subject. Her Majesty several times visited Mrs. Curle until the 6th or 7th September, when Paulet sent to tell her that as Mrs. Curle was now well there was no longer any need of her being visited by the Queen, and that such visitation had been allowed by Paulet for charity and pity, as in the circumstances she was not capable of attending an accouchement. In the next twenty-four hours all her ladies were forbidden to go out any more or go downstairs .“

The next entry is "*Tuesday, 13th September.*—Paulet sent for me to say that Bagot had a few words to say to Her Majesty, and wished to see her. Her Majesty answered that she was very ill and in bed, and not able to see him. She begged of him to leave her alone for this day, not being able to transact business of importance, and that next day or any day she would do her best. Paulet replied that it was not business of importance, but Bagot had come expressly. It was something he could not communicate to her people, therefore she must hear it, and not trouble herself, as it was only five or six words. Paulet said he knew of her malady, but he desired that her servants should not be in the room. He and Bagot came immediately, followed by his son, Gorges, Paulet, Darrell, D'Ispense, his principal servitors, and gentlemen, a great number, with swords and daggers. He entered the chamber alone with Bagot, all the others remaining in the antechamber, sending away all the ladies and servants out of the room, which moved us much, not knowing what to make of such behaviour. The best that I could do was to stand at the door under pretext that the Queen was alone, and had two men with her. This they were unwilling to allow, but at last it was allowed. At the same time the surgeon remained with us. Paulet remonstrated with the Queen on the troubles which had come on the kingdom on her account, stating they were warned that her money did much harm, that by it she suborned many people in England and abroad, who behaved themselves wickedly and traitorously to their country, and that the Council advised that she must give up her money into his hands. Her Majesty, much astonished at this message, said that she had no money and had never suborned anyone. On Paulet giving some particulars, she said she had never sought anyone, and if anyone offered to do her a favour she did

not wish to be ungrateful. She had recompensed their trouble and recognised the pleasure they wished to afford her in the place in which she was. If they came to her she could not refuse, and she did not wish to remain indebted to them, and could not honourably remain so. She had received letters and packets from France and for her household from people that she had never even known, and coming voluntarily to her. She would submit to what they wished if they proved that she had sought those people or invited them to act so; otherwise she would not deliver up her money, and it was not for Paulet or the Council to command it. They had no authority over her. Paulet said 'that she must, and that he had brought Bagot as a witness, assuring her that it would do harm to no one and she would lose nothing. Things being as they were, it was necessary that she should deliver up her money, so that she might have no more trouble; and that it would be better to give it up voluntarily than be forced and create a disturbance.' Her Majesty refusing, Paulet told her that if she did not give it up he would take it by force. She said she recognised no one who could order it, and refusing the key of her cabinet, Paulet said he would break it open. She said she knew he would not spare her. He desired her to command Curle to deliver it up, but she said she would do nothing of the kind. He left the room to ask Elspeth Curle, who refused without the authority of the Queen. We asked him what he was going to do to the Queen so sick and afflicted. He replied he would do her no harm. After having gone to Her Majesty pretending to force the door, Elspeth Curle was called, and gave up the key by order of her mistress. The Queen, seeing herself alone in the chamber guarded by Paulet's people, whom no one dare approach, rose from her bed and followed them, walking with difficulty, and remonstrated with them about this money. Paulet was informed by Wade where and how much it was, and how much belonged to Curle. It was money that she had kept for a long time as a last resource when she was about to die so as to pay for her obsequies; also to pay for sending her servants to their own country after her death. This they would see by her papers, amongst which they would find a duplicate of her will, which she had made with her own hand, in which was a list of those to whom she desired the money to be given, and how much to each. She had promised to her counsel not to touch it, and by his advice she reserved it for this purpose. She had even sworn not to break into it, nor to take a penny herself, nor allow anyone else to do so during her life. As they would not

consent, she begged them to leave at least a part for necessities; being ill, it was not right to leave her without money. Paulet answered that she would want for nothing. They would furnish her with everything, but they would leave no money in her hands. And so they went away and left her with ten crowns. They went to Curle's room to seize the money he had had for his marriage, and were obliged to remain and take the money from his sister Elspeth, who had it in her keeping, upon which at her request they promised a receipt, but refused it when she had given up the money. Upon this Paulet led Catherine Bras into Mrs. Curle's room, where she remained several days. Next day Bastian Page and all his family were sent to their room; Mrs. Curle, her nurse, and Catherine to hers; Baltazare, Robin Morton, Nicholas and Charles, to the robe room, and afterwards, at the request of Her Majesty, Robin Morton was given to her instead of Baltazare, and from that time not one of these saw her again. Some days after, Mary, daughter of Bastian Page, was taken away from the side of the Queen while she was at dinner. Not wishing to go, she remained with her father until they sent for her. So there only remained with the Queen Jane Kennedy, Renee Beauregard, Gillies Mowbray, Elspeth Curle, maids of honour; Jervis, surgeon, and Guon, apothecary; Annabel Stuart, *valet de chambre*; Didier, butler; John Lauder, baker; Hust, chef; etc. After getting permission to serve the Queen, the same day they were shut up with the coachman, two other grooms, and the stablemen, without having any communication with the outside world. Thus we remained in doubt from one day to another whether we should be separated and sent away.

“Some days afterwards Paulet asked if he could see the Queen, and if she would listen quietly and not abuse him.” Coming to her accompanied by Bagot, who spoke more particularly of these troubles —“since England was there had never been any so great. There had never happened any enterprise so horrible (Babington Conspiracy). If she was guilty or consenting God knew it. But there were those who had plotted great things, among others Babington. Six men had undertaken to kill Elizabeth, and were to carry away the Queen of Scots, set fire in the night-time to the outside barns, and so draw the attention of Paulet and his people and upset some carts to prevent them re-entering; afterwards kill Paulet, and carry the Queen away with some of her servants. Two or three miles from her house, near the warrens, there would be a number of horses to conduct her in safety far

away to another locality. It was a great matter if she consented to it; that she ought to know who it was, and if she thought she was badly counselled; that she had had servants as wicked as it was possible to find; that Nau had a mind so restless that he could not be stopped. He wished everything he suggested done immediately; and he had a certain ambition that he could not bear anyone above him. He wished to command and be master everywhere, would give place to nobody, and had done her a great deal of harm." Her Majesty said she knew nothing of all that. She did not know Babington, and had never heard of these plots against Elizabeth. As to her servants, they had only counselled good and worthy things. If they had wished to undertake plots she was not so destitute of sense that she did not know what course to pursue. That she had had long experience in this dispute with Elizabeth to enable her to choose between the true and the false. Paulet maintained that Babington had confessed great things, that the Catholics were going to revolt, and that he thought he had accused Her Majesty; that she could not deny that she had been acquainted with him, and that she had written to him and he to her; and that she had had intercourse with many countries and peoples in that enterprise. She answered that formerly she had heard of Babington, but that was ten years ago; that she did not know what had become of him, and had neither seen nor known any other person nor had intercourse nor undertaking with anyone. She sometimes received letters from her friends, which were offered of their goodwill to give her pleasure, but she had undertaken nothing of this kind; she had suborned nobody. Often she received letters from people of whom she had never heard, and others she did not know whence they came nor from what part. Brasseur de Loges had brought her many packets without knowing from whom they came and without having spoken or having cognisance of anyone belonging to her, said he had borrowed money from her; that for pity, making her believe he was in trouble, she had lent it to him, but she had not suborned or bribed him by any means whatever nor even spoken to him. They could not hinder her from having news and correspondence, and she was not accountable to them; it was her own affair. It was unnecessary that all her affairs should be known. Paulet importuned her to confess something, and tried to obtain proof from her words, and said that they must speak more fully to her and make her clear up everything. From this she thought she would be tried, but nobody thought in what fashion it would be done.



MARY, QUEEN OF SCOTS.

From the Collection of SIR JAMES DRUMMOND, at Hawthornden.

“Thursday, 15th September.—Paulet sent to warn her that it would be for the benefit of her health and for her convenience, and also because she had wished it, the house of Chartley being unhealthy, that she move to another house belonging to the Queen of England thirty miles from London, where she would be very well, and she might prepare herself to go there when it pleased her. He would give her back her money when she got to her destination. (He never did so.) She desired nothing else, ill though she was, and would rather go soon for fear of becoming worse. In two or three days

she would be ready to set out. From that time we began to pack up and prepare for the departure, which would be on Tuesday following, the twentieth of the month. It was ultimately fixed for to-morrow, because of the appointed house being changed and Fotheringay, a castle of the Queen of England, substituted, so that it was necessary to give fresh orders to the carters, who had set out for another place. These things were told secretly and not very assuredly. The Queen was never quite sure where they would take her, not even the last day, when she arrived at her new quarters. Before setting out in the morning they usually told her whether she would have a long or a short journey, sometimes how many miles. They never would tell her the place where she was to remain over night. When they were preparing for their departure Paulet told the Queen of a request from Bastian to get some reward and some money for his journey, not only for himself but for the other servants: those who were in the house as well as for Melville and Prean, who were some miles away. Her Majesty refused flatly to allow Paulet to distribute her money, requesting them to give it to her that she might dispose of it at her pleasure; she would not make him her treasurer, fearing the consequences. After some debate she gave in and asked them to send two hundred crowns to be distributed by Paulet. Paulet said he would give what she wished to each with a receipt, but was resolute that she was not to touch any money. At last she was constrained to make a memorandum written by her own hand and signed, that Bastian should have forty crowns, Curle thirty-six, and Baltazare ten; also ten to Nicholas, Laurence, and Charles; to Henry his entire wages of twenty crowns and thirty shillings, and to Elizabeth Butler, laundry maid, twenty crowns, and to Alice Sharp and Alice Forster forty shillings each, letting it be known that what she did was by constraint and for pity. Should her servants be in danger of want or unprovided with money for the journey, she would recommend them for the rest to the French Ambassador, who would give them sufficient to complete their journey to France, where they would be paid their wages and have each a fitting reward. I have been informed that the money was not given for a long time thereafter.

“19th September.—Sir Thomas Gorges, a gentleman pensioner of Elizabeth, who had led away Nau and Curle as prisoners, arrived by post horse with Stallenge, Usher of Parliament, with their pistols at their belt. We thought they had come for some evil purpose, and we were only assured on

Wednesday when we saw them speak to Her Majesty more courteously than we expected. The Wednesday following, which was St. Matthew's Day, 21st September, the Queen being ready to set out, all the doors of the rooms where the servants were were shut, for fear they might speak to her or see her. She went by carriage, not being able to go on horseback, and sat with her back to the coachman, partly for comfort and partly because of her demoiselles and things required on the journey, which were in the back part of the carriage; and partly to see better what was going on behind her, thinking if they wished to do her harm she would see the blow coming; besides, she could speak to her coachman and ask what they were doing.

“On setting out from Chartley she was escorted by Gorges, who with Stallenge were charged to do so because Paulet could only travel by coach; and there was also their safety on the road. These men took the lead of several others (spies), and there were about two hundred horse. Each horseman wore the livery of his master; none of them had bows, few had harquebuses, while most had swords and daggers. One-half were in front, the other half behind. In the middle the Queen and her servants, and near her Paulet in his coach, his wife and family in another; his people, his servants and horsemen, surrounding the company, all with harquebuses and lighted torches and a couple of pistols at the saddle. Gorges travelled at the side of the Queen's carriage. He said he had something to tell her from his mistress. She said she prayed God that his message might be better and more agreeable than the last. He answered that he was merely a servant, on which she was content, telling him that she did not blame him. After this there was little intercourse on the way until she dismounted at Burton in Staffordshire. Having conducted her to her room, Gorges said he wished to speak to her, but feared to trouble her, she being tired with the journey.”

CHAPTER VIII

Gorges again attacks Mary about Elizabeth's life—Mary's sharp response, and Gorges silenced—Procession sets out from Burton and reaches Hill Hall Castle; next day it reaches Leicester—People there hostile to Paulet—Arrival at Fotheringay—Mary's dissatisfaction with it—Interview with Paulet—Paulet and Elizabeth's insolence—Arrival of the commissioners—They attend prayers—Elizabeth's insolent letter to Mary—Mary's interview with Mildmay, Paulet, and others, official report—Elizabeth's reply—Lord Chancellor and commissioners visit Mary in her chamber—Burghley's overbearing attitude and speech—She refuses to recognise their authority—The second interview, when she is too many for them—Third interview, when Mary delivers an eloquent speech in her defence and exposes the duplicity and false character of Elizabeth.

*“Thursday, 22nd September 1586.—*Her Majesty prepared to resume her journey. Being in great uneasiness, she sent to ask Gorges what he had to tell her: which was that Elizabeth thought it very strange, and would never have thought that she would have been accessory to those things which had been discovered against her, she being a relation and of the same rank. To think of laying hands on a consecrated Queen, Gorges said his mistress was never so astonished. She was so angry with what had happened that she knew well if she had sent Her Majesty into Scotland she would not have been safe and her subjects would have been against her. To have sent her to France, of which there was no intention, they would have thought her a fool. Her Majesty answered that she had never undertaken nor thought of undertaking anything against the Queen of England or her kingdom, and that she had not so little prudence as to wish to conspire against Elizabeth or put her hands upon a consecrated Queen. She knew not if Elizabeth had done like Saul. In place of thinking such a thing, she had cautioned her repeatedly of what she knew would be hurtful to her interests. But there were many people who had different schemes, so that if she would communicate with her, together they could put things in order, and by those means she would be assured. In this she had never been listened to but rather despised and ill-treated, not like a prisoner of her rank but like as if taken in war or even worse, as if they had the power of life and death or a right to torment and afflict her, taking away from her all the conveniences

of life, so that she was without power to communicate with friends or relations, nobody whatever. She was shut up, kept under the order of a man without whose will she could do nothing. That he had been as strict with her as he could, not only as to her liberty and captivity, but concerning her eating and drinking, for herself and household. During her captivity the Queen of England had maintained, sustained, and aided her rebel subjects, alienated her son from her, taken away what she possessed, and even now had made a league with him separating her from him; and in this league she was forsaken and rejected like an abject and abandoned person, without comfort or hope and deprived of all her means. From then till now she had therefore not been able to communicate with anyone. If all the Christian primates her relations, friends, and allies, moved with pity and compassion for her ill fortune, had thought it their duty to compassionate her misery, she could not have done less than throw herself into their arms and put herself at their mercy. She knew none of their designs, what were their schemes, or what they intended to do. She did not mix herself up with these and had in no way mixed herself up in the world. And whatever they had done or intended to do, it was for them to answer, not her. That the Queen of England knew well that she had warned her to pay attention to her and her counsel, as perhaps the foreign kings and princes would undertake something for her benefit. Upon the whole the Queen of England answered her that it was all right as to foreigners and subjects, and she had only to do with her. There was no reply, except that Gorges answered that he prayed God that it might be so. Afterwards they only spoke twice on the way, Paulet doing his best to accommodate her on the road for lodging and commodities required on the journey. Having set out from Burton at 11 a.m. on Thursday, 22nd September, we arrived at Hill Hall Castle, Abbots Bromley, belonging to the Earl of Huntingdon, seven miles from Burton, where we remained for the night. Next day, 23rd September, we set out at 10 a.m. and arrived at Leicester, fifteen miles distant, where Her Majesty lodged at a hotel in the suburbs called 'the Angel.'

“The Corporation made Paulet a present of wine, but a feeling so hostile to him and his coadjutors was manifested by the people of Leicester that it was found necessary to hire three men to watch his coach lest it should be destroyed or carried off during the night. [\[18\]](#)

“On 24th September we set out about the same hour, and arrived pretty late in Rutlandshire at the house of Roger Smith.

“On Sunday, 25th September, we arrived at Fotheringay. Her Majesty on arrival, and next day, complained of the want of proper accommodation for herself and servants. It seemed as if Paulet wished to please her by giving her more room. He caused the private doors to be built up because he was afraid for her safety. One day we had a dispute. The Queen complained much of Paulet in the presence of Stallenge, who remained in the castle, Gorges having left for London. The complaint was about her lodging, as she saw so many beautiful rooms uninhabited. He replied that the lords of the Council were coming to occupy these rooms. She suspected they were coming to interrogate her. This gave her no trouble, but rather seemed to raise her spirits and rejoice her heart more than usual.

“*Saturday, 1st October.*—Paulet sent a message that he would like to say a few words to her. He was accustomed to use this language when he had anything disagreeable to tell her. Having come into her presence, he said that Elizabeth, having had the report from Gorges, was much surprised that Her Majesty had had such a conversation with him, seeing she (Elizabeth) could show the contrary, having sufficient proof to contradict what she said; that she was to send some lords and councillors to speak to her, the which, in order that she might not be surprised, he gave her due notice of; that it would be better for her to ask pardon of Elizabeth and confess her fault than to be declared guilty, and that he would advise her to do this, and he would report it, being ready to write her answer such as it was. Her Majesty, smiling ironically at this proposal, said to him his speech suggested what one was accustomed to say to children when they wished them to confess. She knew she had offended her Creator in many things, and she asked pardon of Him, but that she was a sovereign Queen, and recognised no offence or fault that she had to confess to anyone; that as she could not commit any fault she could not ask any pardon, and did not wish to receive any; and ironically she said they would not go very far; she thought they took much pains for very little, and would not advance their cause very much. Paulet interrupted her and said that he could not confirm what she had written and therefore she had better confess, for the thing was notorious, and that he would send on her answer. Whereupon, having begged Her Majesty to listen, he repeated her response in order that he

might write correctly, asking if this was her meaning; to which she assented. The same day Paulet wrote to the court. Before leaving he told her that if she wished to have Melville, her *maître d'hôtel*, with her he would come, as he (Paulet) had to go to London in order to discharge Bagot, who gave him trouble and expense.

*“Thursday, 6th October.—*I with Marie Page at the door informed the Queen that Melville had come with Paulet's daughter, if she would receive her. Much astonished, Her Majesty agreed.

*“Sunday, 9th October.—*Paulet discharged Roger, Sharp, Laurence, Barlae and Jackson, having first informed her. She ordered Sharp to be paid seventy pounds besides his wages, twenty crowns, and one horse as a gift; to Jackson his wages of ten crowns and forty shillings, with one horse; to Laurence his wages; and as for Aroburn, it was agreed that he could remain to tend the rest of the horses; forty sols (sous) to him. And that he might better serve Sharp, she gave him the little mare in charge until she foaled, that the two might be disposed of as pleased her.

*“Tuesday, 11th October.—*The Lords arrived. Most of them slept in the village, the others at Monde, Mardelemat, at Nayde and Fotheringay, and numbered about fifty. Forty-two of these were chosen by commission. There were only forty-eight in the memorandum given to Her Majesty, of whom nine were absent. There arrived a man named Phal (perhaps Dr. Ford), an emissary of Walsingham, who translated French into English; one named Barker, who wrote his answers and gave the papers to a notary or clerk of court; another who seemed to be an usher or master of ceremonies.

*“Wednesday, 12th October.—*They came to the castle and attended preaching and prayers at the chapel, and sent Sir Walter Mildmay and Barker and Stallenge the usher, who presented a letter to the Queen from Elizabeth without any title such as Madam—simply signed at the end 'Elizabeth' without 'your sister,' and sealed with the Great Seal. Above the superscription 'To the Scotch,' as speaking to the people. She said that after the opinion which she held, having dared to deny being guilty of what they could prove, not wishing to receive any arbiter it seemed good to send her lords and councillors, lawyers, skilful in the practice of the laws of her kingdom, who she had authorised and empowered to proceed as they

thought best, and that the Queen of Scots, being under her protection and in her kingdom, was subject to the laws of the same.”

This letter is of considerable importance, and as Bourgoyne does not give it, we have found what we think is the same letter in the State Paper Office. It is in the following terms:—

“Whereas we are given to understand that you, to our great and inestimable grief (as one void of all remorse of conscience), pretend with great protestations not to be in any sort privy or assenting to any attempt either against our state or person, forasmuch as we find by most clear and evident proof that the contrary will be verified and maintained against you; we have found it therefore expedient to send to you divers of our chief and most ancient noblemen of this our realm, together with certain of our Privy Council, as also some of our principal judges, to charge you both with the privy and assent to that most horrible and unnatural attempt. And to the end you may have no just cause, living as you do within our protection, and thereby subject to the laws of our realm, and to such trial as by us shall be thought most agreeable to our laws, to take exception to the manner of our proceedings; we have made special choice of these honourable persons to be used in this service, having for that purpose authorised them by commission under our Great Seal to proceed therein; and therefore do both advise and require you to give credit and make answer to that which these honourable persons authorised by us shall from time to time during their abode there deliver unto you in our name as if it were to ourselves. Given at our castle of Windsor, 6th October 1586.”

“Her Majesty said that this letter was a mandate and written as to a subject; that she was Queen and a born daughter of a Queen, a foreigner, and the nearest relation of the Queen of England; that she had come to England on the promise that had been made to her to give her help against her enemies and subjects, and was thereupon made prisoner, the which she had been for eighteen years, ill-treated always and afflicted and troubled by their continued persecution. She had several times suggested suitable conditions; she had many times asked to speak with Elizabeth, was ever willing to serve and do her pleasure, but she had been always influenced by enemies; that she, as a free Queen, could not accept commands, nor respond to laws, without hurting herself, the King her son, and all other sovereign

princes. That she was of the same estate, majesty, and dignity, and would not submit, neither she, her heirs, or her country, as a valet had done (referring to Moray); she would rather die. She challenged her judges as being contrary to her religion; she did not recognise the laws of England, did not know them, did not understand them, and many times had made this protest. She demanded that former protests be taken account of; that she was alone, without counsel; that her servants had been taken away, also those who knew and had managed her affairs and had cognisance of laws and formalities; that there was no criminal so poor who might not have someone to speak for him. They had taken away her papers, memoranda, evidences of her past experience, so that she was destitute of all aid, taken by surprise, and ordered to obey and answer people who had been instructed for a long time. The greater part of them were evil disposed to her and only sought her ruin.”

The State Paper Office contains a rather different version of this interview, which it will be interesting to compare with that of Bourgoyne. It is as follows:—

“Relation of an interview between Sir Walter Mildmay, Sir Amias Paulet, and Edward Barker, and the Queen of Scots:—

“Upon the repair of Sir Walter Mildmay, Sir Amias Paulet, and Edward Barker to the Scottish Queen, and the delivery of Elizabeth's letters, the Scottish Queen read the same and thereupon said she was very sorry that the Queen her good sister was so evil informed of her after so many offers made on her behalf. Notwithstanding any assurance given to Elizabeth by her and her friends, she found she was neglected, and that though she had forewarned things dangerous to Her Majesty and the State, she was not believed but contemned. This grieved her much, she being Her Majesty's nearest kinswoman, saying that the association made here and the Act thereupon passed in Parliament gave her sufficient understanding what was intended against her. She added that she saw well whatever danger should happen to Her Majesty, either through the instrumentality of foreign princes, the discontent of private persons, or matters of religion, it would all be laid upon her, for she had many enemies. After some other words to the same effect, and a recital of a long-endured captivity and of some supposed

unkindnesses offered to her, she said that a league had been made between Her Majesty and the King her son without her consent or knowledge. For answer to Her Majesty's letter she said she found it very strange that Her Majesty wrote in such sort, for it was in the nature of a command and that she should answer as a subject; but for her part she was born a Queen, and she would not prejudice her rank and state, nor the blood whereof she was descended, nor her son who was to follow her, nor would give so prejudicial a precedent to foreign princes, as to answer according to the desire of those letters. For her heart could not yield to any compulsion. She referred to the protestation which she had already made to the Lord Chancellor, the Lord de la Warr, and others, adding that she was ignorant of the laws and statutes of the realm, that she was destitute of counsel and knew not who were her competent peers, also that her papers were taken from her and that nobody dared or would speak on her behalf. After this she solemnly protested that she was innocent and had not procured or encouraged any hurt against Elizabeth, and that she was not to be charged but by her word or writing, as she was sure that neither the one nor the other could be shown against her, confessing notwithstanding, that after so many offers made by herself and not accepted by Elizabeth, she remitted herself and her cause to foreign princes.”

Mary's sentiments having been communicated to Elizabeth, she wrote Mary as follows:—

“You have in various ways and manners attempted to take my life and bring my kingdom to destruction by bloodshed. I have never proceeded harshly against you, but, on the contrary, protected and maintained you like myself. These treasons will be proved to you and will be made manifest. Yet it is my will that you answer the nobles and peers of the kingdom as if I myself were present. I therefore require, charge, and command you, that you make answer, for I have been well informed of your arrogance. Act candidly, and you will receive the greater favour of me.” [\[19\]](#)

“Sir Walter Mildmay repeated her conversation and then went and reported it to the Council, which was assembled in a chamber adjoining. This finished, all separated, and went to their places of abode. Paulet, Barker, and Stallenge came to the Queen from the Council, who having heard Her Majesty's answer to Elizabeth's letter found it good to have it

written and communicated to her that she might verify it. Therefore Barker on his knees read it to her, rewritten in a good style without anything forgotten except that she wished to speak to Elizabeth. She verbally approved it without any signature.

*“Thursday, 13th October.—*Paulet, Barker, and Stallenge came to her about ten o'clock in order to ask if it would please her to hear the commissioners, who wished to speak to her. Being willing, they entered her chamber each in their order with great ceremony, one marching before the other bearing seals or the arms of the Chancellor. Then the Chancellor, speaking first, said he came by command of the Queen of England, she being informed that the Queen of Scots was charged with some plot or enterprise against her person or estate, with authority to examine her on certain charges, and upon her answer to proceed as the Council were disposed. She told them that she had seen the letter of the Queen of England, and that she had replied to it the day before. She said this with tears, moving everyone to pity. Burghley, a very vehement man, speaking for the others, said that the Council had seen the answer and he had taken the advice of the law doctors who were versed in civil and canonical law, who after deliberation had found that, notwithstanding her answer, he must proceed with the examination, and therefore the lords had come to examine her; that she might say whether she would hear them or not, because if she refused they would proceed according to their commission. Her Majesty remonstrated about her rank and that she was not a subject, to which they replied that Elizabeth recognised no Queen in her kingdom but herself. As to them, they would not speak to her as to a subject; they knew well her origin and rank; that their commission was not to give way to this, only to examine her upon international and civil and canonical laws. After some conversation touching her bad treatment and the severity she had endured, the commissioners, seeing she would not consent to be examined because she was not a subject, went away. After dinner she made some memorandums with her own hand to refresh her memory when the commissioners returned, as she could not remember everything. Her heart swelled with affliction; her spirits seemed to awaken and become stronger, so that she was able to debate the cause when she was rudely assailed by the commissioners, and said more than she had written. These returned after dinner, when she demanded the indictment of the Queen; what she meant by

the word 'protection'; why she (the Queen of Scots) had come into England, and with what intention. Burghley, who always did the speaking, was irritated, and said that he had seen the letter, and what had been written had explained itself. It would be presumptuous to undertake to interpret the letters of his mistress. That did not belong to them. The Queen said he was not so ignorant of the mind of Elizabeth as not to know her will and intention. If he had power to interpret to the Council he had also power and authority to interpret the Queen's letter to her. Burghley denying that he had power to do so, said he knew well the Queen's intention, namely, that everyone in her kingdom should be subject to the laws, and what he wished to know was whether she would listen to the commissioners or not, or that they might proceed without her. She said she knew this letter was the invention of Walsingham, who had confessed to being her enemy; that she had suspected him as such, and he knew well what he had done against her and her son. Thereupon they debated among themselves if Walsingham was in London when the letter was written, but they came to no decision.

“This same afternoon they sent Paulet before the commissioners came, with an attorney and Bagot and Stallenge, saying that Her Majesty had desired the duplicate of the commission or the principal points of it, and that this had been granted. The Council sent her the roll of the commissioners, explaining the points and the subject of the commission, which was founded by two Acts of Parliament passed two years before, namely, that they must not talk of the succession of the Scottish Queen during the life of Elizabeth, nor of anyone of any station, rank, or dignity whatsoever outside or inside the kingdom. They imagined or consented to the death of the Queen. A certain number (I think eighty) elected and assembled could judge. Therefore she who they called Mary Stuart had consented to the horrible deed of the destruction of her person and the invasion of her kingdom. She would be interrogated by the commissioners upon this point, and they would judge her as they found good. To a great part of this which was read Her Majesty took exception, such as she did to the assembled lords later, and upon their report demanded them to come and speak to her, which they did. She again referred to her not being subject to the laws. They said that if she was reigning peaceably in her kingdom and someone, were it the greatest king on earth, were to conspire against her, she would not recognise him as a king but would proceed against him. She

said she would never act in such a fashion, and that she saw quite well they had already condemned her. What they were doing was only a formality, but what she did was not for the sake of her life. She was fighting for her honour, for those belonging to her, and for the Church. Then she attacked what they said in the morning about the civil and canonical law; that it had been made by the Romish Church, who did not follow them; that they only bound those in this kingdom who could make use of them, since they neither approved nor received the authority of him who had the right by succession. Burghley answered that as to them they made a common use of the canonical law in many matters, such as marriages, etc., the authority of the Pope excepted. She replied wisely that he could not in consequence approve the right of him when he disapproved the authority, he being the sole interpreter of those in the same Church. She knew nobody in England to whom he had delegated this authority. After this observation they were obliged to change the subject, seeing that they were not able to answer without doing wrong to their religion and government. Her Majesty said that the civil laws made by ancient Catholic emperors, or at least received and approved by them, could only be used by those who approved their actions; and as they were difficult to understand and put in force, each wished to interpret them according to his fancy, therefore they had founded universities in France, Italy, and Spain to teach them. Those who had none could not have the true version, but interpreted them at their own will. If they wished to judge her according to these laws, she would like to have people from these universities, so as not to be judged by lawyers who served the laws of England. She told them that she saw quite well they rejected the civil and canonical law and wished to subject her to the laws of the country. She did not know these laws; it was not her profession, and they had taken away her means of learning them. Kings and princes had people near them versed in these, she had none; they had taken them away, therefore she desired to be informed how they were in the habit of acting toward those similarly situated. They said if she pleased she might hear the judges and lawyers who had come; she could then learn what was the law on this point. At first she was content until she perceived by Burghley's proposal that they meant her to understand that she had a bad case, that she was subject to the laws, and that they had a right to cause her to be judged by them. She, seeing that she could not remonstrate with them without humiliating herself, refused to hear them further. They proposed the reading

of the other commission. She refused the request, suspecting that they were making laws expressly to convict her, and that they wished to dispossess her of her right of succession to the kingdom. She was answered that they were indeed new laws, and that they were as just and equitable as any others before God and justice; that she knew well it was necessary from time to time to abrogate some and to make others. She replied that the new laws could not affect her, being a stranger and not subject to them. She confessed to being a Catholic, and for that religion she wished to die and shed the last drop of her blood; that she was ready, and would esteem herself happy if God would give her grace to die in this cause. They, astonished at the firmness of her attitude, pressed her no longer and reserved their answer. She asked for the protest she had made at Sheffield. The Chancellor and the Treasurer read the duplicate as they had promised in the morning at her request when they had presented the original, but would not leave it with her as they had no authority to do so. They confessed that the Chancellor took it, being one of the deputies at Sheffield in the cause of the Duke of Norfolk. He had taken charge of her and represented her, but it had never been received nor approved, and she would not make use of it. The Queen of England had a right in her kingdom over everyone who plotted against her without respect of quality or dignity; at the same time one could see how honourably the Queen had proceeded, having chosen such an honourable company of lords and nobles of the kingdom, commissioners to proceed in this matter, assuring her that nothing had been done against her; they were not judges, only examiners.

“The rest of the day passed in these agitated conversations until night, when Hatton spoke saying they debated many things which did not belong to their commission, and that they had only come because the Queen their mistress was warned that Her Majesty had consented to what had been undertaken against her person, her State, and the public peace. It was a question whether she was guilty or not. It seemed to him that Her Majesty ought not to refuse to be examined; answering would make evident her innocence, which would be an honour to her and a comfort to the Queen and all the lords, whether present or absent. It was the last speech Her Majesty made to him, with tears; that nothing had ever touched his heart or grieved him so much as to come here to undertake such a case against her. Her Majesty asked what recompense she would have when she had proved

her innocence, and what reparation would be made to her for having been in prison so long and accused. They replied that no harm would happen, and she would be honoured, and it would satisfy their mistress.

“She remained all night in perplexity, and at last resolved to intimate to the commissioners that she wished to speak to them before they assembled.

“*14th October 1586.*—This day they came with other Lords, including Walsingham, who had not attended the previous day. She thus addressed them:—‘Sirs, consider my rank, having been born a Queen, a foreigner, a near relation to your Queen. It cannot surprise you that I should be offended at the manner in which you proceed against me, nor that I refuse to recognise your assembly and your mode of procedure as not being obligatory; nor am I subject to your laws nor to your Queen. I cannot answer without prejudicing my state, mine and the other kings and princes of my rank. And at all times I am careful of my honour, to defend which I would not spare my life. Rather than do wrong to the other princes and to my son I am ready to die, if so be that the Queen has a bad opinion of me. She has been wrongly informed if she thinks I have plotted against her person. To show the goodwill I bear her I have demonstrated many times in the offers I have submitted to her, and by my behaviour. In order that you should not think I refuse to answer because I am guilty, and that ambition has induced me to do a reproachable act unworthy of my sacred person, I offer to answer upon this point alone—the life of the Queen—of which I swear to you I am entirely innocent. In making this protestation I demand a deed in writing.’ They were very glad to have brought her to this point, and said that they would not trouble her with anything else. In order to satisfy her and prove whether she was guilty or not, they would receive her protestation and hoped she would prepare herself to come into the Council. She promised to do so immediately after she had dined, with a little wine, feeling herself feeble and ill.

They had erected at the east of the hall the daïs of the Queen, and on the two sides along the partition below were seated the Lords named in the commission; and in the middle along tables and benches were seated the commissioners and Chief Justice in their order. Below they had erected a barrier, one part of which could be raised in order to pass out and in. Her Majesty entered with a veil, a mantle, with a long train held by one of her

ladies. Beauregard was seated in one of the chairs of crimson velvet at the side of the daïs, under her feet a square of the same material; assisted by Melville, Bourgoyne, Jervis, Mowbray, and Beauregard, with Jane Kennedy and Alice Curle, maids, behind her. None of the other servants were allowed to be present. Paulet and Stallenge were seated behind her as guards. Bromley, the Chancellor, opened the proceedings, and began to say that the Queen of England had been informed, to her great regret, that the destruction of her person and the overthrow of her kingdom had almost been accomplished by the Queen of Scots. Notwithstanding her tolerance and patience, the Queen of Scots continued these evil practices and had become the disturber of religion and the public peace in her kingdom and also in countries beyond the sea. The Queen of England because of this had ordered this assembly to investigate the same without malice. If the Queen of Scots were guilty of this deed, and if the Queen of England were careless or so ill-advised as not to have it investigated, she would have committed a great offence against God and would carry the sword in vain. Therefore she had sent this commission, upon the reading of which and hearing the things proposed by Council, the Queen of Scots would be able to say what seemed good for her defence and the declaring of her innocence.

“Addressing the Queen of Scots, Bromley said: 'Madam, you have heard the reason why we are here; you have heard the indictment, and you will be able to say what pleases you.' She then commenced boldly to make a speech, the substance of which was that she had come into England in the hope of succour and under the promise of aid against her enemies; she protested that she was a sovereign and free princess, not recognising any superior but God; that whatever she did in answering the commissioners, who she believed were wrong and falsely informed against her, she might do prejudice to herself, the princes her allies, the King her son, or anyone who might succeed her. Which protestation she made not in regard to her life or to prevent anything becoming known, but for the preservation of her prerogative and honour and dignity, not wishing because she appeared before the commissioners to be compromised or declared a subject of the Queen of England; but that she might show by her answers that she was not guilty of the crime against the person of Elizabeth with which she was charged. And this point alone and no other she would answer. She desired that each of them would keep this in remembrance, and that her protest

would be put into a public act, and that all the Lords present and the nobility might testify to it, all of whom she called to bear witness if some day there should be need of it. And she protested before the living God that she loved the Queen her dear friend and sister, and that she had always borne goodwill to the kingdom.

“The Chancellor in name of the commissioners not at all approving of Mary's entering England under the promise of Elizabeth, but disavowing it, said that these protests were of no importance inasmuch as the Queen of Scots was in the kingdom and charged with such a crime whatever rank or state she wears. She had become subject to the laws notwithstanding the commissioners were content without any approval or deliverance by them. In the name of all present he protested that the protestation of the Queen of Scots was nothing and of no effect in law, and was in no way prejudicial to the dignity and supreme power of their Sovereign, the majesty of her kingdom, or the prerogative of her crown. Which protestation he required to be registered and all present to bear witness to it. In the meantime they were required to read the commission, which was in Latin and contained the above.

“The Queen answered that she did not approve this commission nor its constitution, being based on new laws or articles newly made expressly against her. Hearing the reading of a point she gave her answer without their asking whether it was true or not. Their manner was only to keep reading or speaking in order to persuade the lords that the Queen was guilty. Addressing always their speech to the lords was confusing and without any order, nobody answering them a word, so that the Queen told us when she returned to her chamber that it put her in mind of the passion of Jesus Christ, and that it seemed to her, without making any comparison, that they did to her in her place as the Jews did to Christ who cried, 'Away with Him, crucify Him,' and that she was certain there were those in the company who had pity on her and did not say what they thought.

“Notwithstanding all this the Queen never lost heart, and the more they warmed up to hinder her the firmer she grew; her heart, her strength, her reason rose to the occasion. She remonstrated on the wrong Elizabeth had done her in keeping her a prisoner. She had been kept eighteen years in affliction, treated as the meanest subject would not have been, having no

reason for doing this and still less a right; and because of these trials she had lost her health and the use of her limbs, as they could see; that she could neither walk nor use her arms, and almost always was in bed; had become aged and overwhelmed with misery, and had lost the little gift of *esprit* that God had given her; also her memory to remember things she had seen and read, which would have helped her in this place when she was all alone; also the knowledge of business which she had learned for the management of her affairs, the exercise of the state to which God had called her and of which they had unjustly and traitorously deprived her, and so hindered her from recovering her rights. Besides, not content with this, her enemies by their ill-will had tried to ruin her. She appealed to Almighty God, her Church, and all Christian princes, and to the Estates of this kingdom lawfully assembled. She was ready and prepared to sustain and defend her honour as an innocent person provided they would give her a public trial and in presence of some princes or foreign judges, even her own proper judges, and all without prejudice to their mother Church, to the Kings, sovereign princes, and her son; specially taking into consideration the right which the English claimed, and pretended that it appeared in their chronicles, that they were above the predecessors of Her Majesty, the kings of Scotland. This right she denied and would not admit or strengthen by any act which she could now do, being forced to maintain the honour of these princes, and for want of this she would declare them traitors or rebels, and rather than approve she was ready to die for God and her right. And in this cause being innocent she would offer her life and give herself up to their judgment, and thereby show that she was not ambitious and would not undertake anything against the Queen of England, nor did she desire to reign; she had left all that, and no longer cared for anything for herself but simply to pass the rest of her life in peace and tranquillity of mind; that her age and strength were not enough for the burden of reigning, and she had no desire for any government or public duty, seeing she was in such poor health and possibly having only two or three years to live. Also considering how difficult it was to conduct herself and do justice, and acquit herself with the dignity of a Queen in these evil times filled with wickedness, the whole earth being filled thereby.”



WILLIAM CECIL, LORD BURGHEY.
From the Hatfield Collection.

CHAPTER IX

The Queen and the Commissioners at Fotheringay, and the Babington and Queen Mary letters of July 1586.

BURGHLEY interrupted her at the point which concluded the last chapter, “not being able to contain himself, reproaching her that she had taken the name and arms of England and that she had aspired to the crown. She said that what she had done formerly in this respect was by order of King Henry II., her father-in-law, he knew well why; she said she did not wish to give them up although there was peace between them and King Henry. Although they had made peace because it was to their advantage she had not been inclined to give up her right for their profit, to renounce it to the great loss of herself and her successors without receiving anything in return. She owed them nothing, was not subject to them, nor was she their subject, nor was she now to give up a thing of such great consequence the memory of which would always have been a dishonour and blame. Burghley replied that since then she had always pretended and aspired. She said she had never given up this right and never would, and begged him before this assembly not to press her further; she wished to offend nobody, and therefore hoped he would be satisfied, for he and many of the company knew well why these things had been done, and there was no necessity to say more at present. She knew well that her enemies and those who had tried to nonsuit her had done everything they could by all unlawful means, even to attempting her life, as had been discovered in certain places, by people whom she could name if it were necessary. She did not ask for vengeance, but would leave it to Him who was the avenger of the innocent and of those who suffer in his name, under whose will and power she placed herself; she liked better the manner of Esther than of Judith, although both were approved by the Church, and she prayed God to do with her according to his good pleasure, to his honour and glory and the good of his Church, as she had ever been brought up, and for which, as she had already said, she would shed the last

drop of her blood. She was not afraid of the threats of men; she was resolved to suffer and endure all that God pleased; that she would never deny Jesus Christ, knowing well that those who deny Him in this world He will deny before His father and disown them. As they read at intervals letters of Babington to Her Majesty, and hers to Babington, she denied flatly having ever seen such letters or received them, so that she could not answer them. Upon this charge they insisted, being that on which they founded all. They produced cyphered and other letters and the depositions of those who had been examined, such as Nau and Curle, to prove that she had received and answered this letter from Babington, and in consequence consented to the murder of Elizabeth. As to Ballard, who was one of the six who had undertaken the murder, Her Majesty said she had heard him spoken of, and had heard from France that he was a man of good understanding and zeal in religion, a rigid Catholic, who wished to be of use to her; that he had much intercourse with Walsingham, and that she should beware of him; she knew nothing else about him. Thereupon Walsingham got up and stood with his head uncovered, and took up the charge that Her Majesty had been warned that he did not wish her well, that he had said much against her and was her open enemy, even that he had plotted against her life, hers and her son's. He said he bore no ill-will to anyone; that he had never attempted anyone's life, protesting that he was a gentleman and a faithful servant of his mistress. Her Majesty avowed that she never thought this, and had never believed what they said; that if he had not been received in Scotland as he merited, she could not help it, and she did not think he would wish to avenge himself upon her who knew nothing about it. Of the four men on horseback who were stationed in London to come and warn her when the blow should be struck, she said she knew nothing whatever. Her Majesty owned to some cyphers. There were old ones and recent ones, but that was nothing, as many of them served for different occasions, and Morgan, who was formerly in her service, was helped by these cyphers to the intercourse he had with other princes. (This is the first time she named Morgan.) They reproached her that he was still her servant and that she gave him a pension although she knew well that he had plotted the death of Elizabeth with Pary and was still a prisoner in France. He was prosecuted and accused by Lord Derby, who was a witness, at the request of the Queen. She answered that they knew well she was not mixed up in that enterprise nor had bribed anyone. They could easily see that other people wished the

Queen of England harm; if anyone had plotted against that Queen it was not her. She was very sorry Morgan had been mixed up in such a thing, but she was not responsible for his actions. She could not do less than help him in recognition of his services, which she could never forget.

“At last they changed the subject, after having insisted for a long time that Morgan was a pensioner, which she denied. She said she had merely given him money for his requirements. Of Nau and Curle they said they had writings signed, that they owned to answers of certain letters which they had always done by order of Her Majesty; that they had written nothing without communicating with her as was the custom, not allowing anything to be produced unknown to her, thus proving her direction of letters. They were written afterwards in her cabinet, where despatches were taken very often in her presence, and after having written them they read them; that she shut and sealed them always in her cabinet, and they often wished to dissuade her from these enterprises. She replied that she could not answer as to Nau and Curle what they had written about this enterprise. They had done it of themselves and not communicated with her; she entirely repudiated their evidence; that Nau, a servant of the King of France, might have undertaken something that she did not wish, and that there was intercourse she knew nothing of. Nau confessed publicly that he belonged to the King of France and not to her, and only did for her as he liked. They had many quarrels because she would not give in to him and would not instruct him; she knew well that Nau had many peculiarities, which could not be said in public, for which she was sorry, and further, that he did her great harm. She did not wish to accuse Nau and Curle; she saw quite well that what they said was under fear of death, under the promise of saving their lives, and that to do so they accused her, thinking that she could save herself better than they, never thinking that they would require to treat her in this fashion. For more than twelve months Nau had written nothing in her cabinet. He did everything, made out his despatches in his own room, for his own convenience and to be more at his ease, as Paulet and all those in the house could testify. As to Curle, if he had done anything he must have been constrained by Nau, whom he was afraid of displeasing and for quietness. At the same time she did not think that either the one or the other would have forgotten themselves so far. Being for the greater part of the

time ill, she could not watch over everything and did not know much that they did but left it to Nau.

“Burghley replied that Nau was owned by the King of France as his subject, born in France; that he had been Cardinal Lorraine's secretary, but he was her sworn servant and did her commands. He had not been constrained in any way, but of his own free will had made this deposition, sworn, signed, and written by his own hand. Her Majesty replied that he was secretary to the King, and called himself his treasurer in this country; and upon this pretext he gave himself airs and was often disobedient. She ordered him in general and was answerable generally for what he did, but she was not responsible for his private actions, and would not believe that he was not forced. Feeling himself feeble and delicate, fearing torture, he thought to escape by laying it on the Queen. A criminal is not received on oath nor his affirmation believed; his oath is worth nothing. His first oath is to his master which detracts from all others, which are no longer of any value. She saw quite well that he had neither signed nor written what they affirmed he had. Then these shufflers in a rage debated and fought over this speech of the Queen like furies; all that had been said or written, all the circumstances, suspicions, and conjectures—in short, all the reasons they could imagine—were put forward to make their case good and accuse Her Majesty without her being able to answer distinctly what they said; but like madmen they went on, sometimes all together, sometimes one after the other, in order to bring out the Queen as guilty, which gave her occasion to make an eloquent speech.

“Next morning after she had returned to the hall, seated as usual, all the lords, who approached bareheaded, listened with great attention. She was permitted to speak freely, the Chancellor having allowed it in name of the assembly. She found it very strange the mode of proceeding towards her, because having made her come into this place against what was due to her rank, they had given the management of her cause to people whom they were not accustomed to employ. Her Majesty was overwhelmed by the importunity of lawyers and advocates, who seemed to indulge in the technicalities used by the petty lawyers of the towns and the chicanery that they used, rather than confine themselves to the examination of this question; and although it was promised that she would be interrogated and examined on this point alone concerning the person of Elizabeth, they

rather accused her and hindered her from answering, and interrupted her, speaking and seeming to debate among themselves as to who would plead the best and distort the facts, wishing to force her to answer about what there was no question. She appealed against what had been done and what was being done against her.

“Burghley said it was quite right she should say what pleased her and what was in her power; and that those who had spoken the preceding day should have done what was necessary according to their belief; that in order to know the truth they made use of all their reasons which would serve their cause. As to her demanding another assembly to answer to, that might be provided, but they had no power to do it. He would lead them and cause them to speak or be silent as he wished. Upon this we hoped they would not continue long, because the greater part of the lords had come to the assembly booted and some in their riding habits. At the same time we were in doubt as to what verdict they might give before their departure.

“The next morning was employed in the reading of letters as on the preceding day, for the most part concerning the displacing of the Queen of England by foreigners; the intercourse of Her Majesty with Christian princes, and her deliverance from prison, all of which had been already discussed. Her Majesty said if they wished to deliver her from prison she was willing, but she did not know the means by which they might proceed; that her hands were tied, she could do nothing. Many times she had proposed an agreement for the utility and profit of her kingdom. She had advanced these offers so far that she had been suspected and blamed by the Christian princes and in danger of excommunication, having done more and offered more than was approved of, and what in reality was contrary to Catholic interests; that she had often submitted on condition that they would finish on their side what had been proposed, but they refused her offers, so her submission was conceded. She tried to do what she could for the best, and appealed to Beale, Mildmay, Sir Ralph Sadler, and the gentlemen of the Council, as witnesses; also Somers, if he had been present. All had to do with her affairs; she had often warned them of what might happen, as she was not responsible, and she had told them if anything happened they would blame her; but foreseeing all that, she had repudiated responsibility long ago.

“When the commissioners read, and wondered at her confession of correspondence, she silenced them by telling them it was not their business to speak of the affairs of princes. Did they not understand that princes had secret correspondents? and it could not be otherwise. Burghley did not blame her for this, and did not wish to enter into it, but said if such a number of soldiers as was spoken of had come into the country as the King of Spain, the Pope, and M. Guise thought of sending, what opinion would she have had of them, and would she have been willing to answer for the life of the King and the state of the country; and would not the country have been in danger of falling into the hands of foreigners? She said she did not know what were their intentions, but she was certain they might have done something for her, and if she could have employed them she could have formulated some agreement, as she several times offered to do. They ought not thus to reject her, and if they lost her they would experience more harm than profit, and put themselves in danger of what was being done by foreigners. She knew nothing and wished for nothing but her deliverance. Burghley again told her that the death of the Queen and principal lords and councillors had been plotted; that her friends had talked of setting fire to Chartley and killing her guards; they were to enter England by all sides and harbours of the kingdom; that all the Catholics were to rise, were to put Her Majesty in place of Elizabeth; that they already called her their Queen and their Sovereign, and that the Pope had sent bulls to deliver the kingdom from the illegitimate usurper; that they made public prayers in Rome for Her Majesty as their legitimate Queen; that the King of Spain and the Pope furnished ships, men, and money to invade the kingdom; that already there had been a revolt in Ireland which by the grace of God their mistress had subdued, and had had a victory over her enemies. This plot was to take the King of Scotland and give him to foreigners and Catholics in order to dispose of him afterwards, and that Her Majesty had offered her rights to the King of Spain. To all these things he said she was a consenting party, as they found by the letters discovered and read publicly, addressed to Mendoza, Ambassador of Spain, to Lord Paget, who was in Spain, to the Ambassador of France in London, and others. Her Majesty answered that she knew nothing of murder or any attempt against the life of anyone or of a plot or invasion of the kingdom; that as she had already said, she had warned her friends that they must take care lest they undertook some such enterprise. They were doing something, she knew not what; they had

always hidden it from her, knowing she would not consent, and they were afraid of doing her harm; that they may have made use of her name to authorise their plan, to render it stronger, but that no letter was found written with her own hand signed, nor could they produce anyone who had seen or received it, or had communicated or spoken with her. Besides, they knew when she was in her kingdom she had never molested anyone about their religion, trying always to win by mildness and clemency. It had been the cause of her ruin, her subjects becoming proud and abusing the good treatment she had given them. They complained that they had not been so well as they had been under her government. They were formerly in the hands of a traitor and tyrant, the Earl of Morton, who had tyrannised over them till the very end. Since the death of Morton they were scarcely any better, having been almost always in subjection to the English, and others who were traitors to their country. Of all that the foreign princes had undertaken or done on her behalf she washed her hands and had nothing to say. As to Chartley, she said she knew nothing; she had not heard of setting fire to it, but they had promised to deliver her, and owned that if the foreign princes had assembled it was to take her out of prison, from which she could not go without armed men to receive, defend, and conduct her; and if the Catholics had offered assistance, it was for their own interests. Being so wickedly treated, vexed, and afflicted in this kingdom, they had fallen into despair, wishing rather to die than live longer under such persecution; but so far as she was concerned, she knew nothing of it. They would be none the better of afflicting either them or her; she was only one person, and although she were dead neither the Catholics nor foreign princes would keep quiet if the English did not cease their persecutions. As regards taking the place of the Queen, the letters they had read in this assembly answered sufficiently for this if they would own it, because they declared expressly that she desired neither honour nor kingdom, and no schemes on her account. She only cared for the Catholics and the kingdom of God. She desired the deliverance of the former and the defence of the latter. They did not see that what they reproached her for was as to her justification, and she proved the contrary of what they laid to her charge, as was evident by the letters. She could not hinder her friends from sending her such letters as seemed good to them; that they knew in their conscience what they had done, but if they spoke as they wished, and desired her to be delivered, she could not blame them; and it was not for her to hinder them. It was not for

her to reform the Pope. She thanked him and all Christian people, every nation and Catholic assembly, for the prayers they offered daily for her, and begged them to continue. As to the bull, she had offered to hinder the execution of it, and desired that the Pope should do nothing. Upon which Burghley asked if she had really power to do so; that in England they cared nothing for it, and took no account of the Pope or his doings. She asked them to cease persecuting the Catholics, and she would do much to appease the troubles into which they were in danger of falling. Burghley said that no Catholic had been punished for his religion, to which Her Majesty replied that in all places and every day they were banished and exiled, fugitive and wandering here and there to hide themselves, and the prisons of England were full of them; in short, they were made guilty of treason. Some did not wish to serve or do the behests of the Queen, being contrary and repugnant to their religion; others of them would not recognise the Queen as head of the Church. They had been treated so cruelly that they died, and she could see they wished her also to die by accusing her of things of which she was entirely innocent in order to make out what they had resolved. It was no use troubling her further with these letters and papers, as she would not answer them and they were only wasting their time. It was not for her to render an account of her affairs and the correspondence she had had with Christian princes. She was allied to them and had been under their protection. Burghley said that if it pleased her she could now retire, and they would remain to finish the commission. She replied that she declared herself a faithful and humble servant of Almighty God, ready and willing to obey his commands and those of his Catholic, Apostolic, and Roman Church. It did not belong to them to resist or blame what she did, as she was guided by the Holy Spirit as God had promised to her; that as she was given the title of Queen they must not accuse her for that, since it was not she who took it, but the Catholic Church and the Christian princes who esteemed her legitimate. They knew well that this was her right, although they hid it, making special statutes and laws to meet her case, showing that they thought she could aspire to it, and that their object was to dispossess her as a Catholic princess. They must cease this procedure, for she had made it sufficiently clear that she cared not for it herself, but she would not allow it to be lost for those who came after her. The troubles in Ireland showed it was not for this that they revolted. They knew well they were subject to her. That country never had been peaceable, inasmuch as they wished her for

their Queen. A certain book had been published in Ireland by Catholics desiring that the right to the crown should be changed to some other than her because they had little hope that she would get out of prison. She was growing old, sickly, and not likely to live long. As to her son, he belonged to her and the Queen of England, and she could do what seemed best to her; she was sorry they had taken so much care to make a league with him, separating the son from the mother and assisting him against her, and keeping him under the government of young people like Gray, who had been a traitor, and others who knew nothing about the government of a kingdom, furnishing him with money and making him Elizabeth's pensioner. He was ill-advised to let himself be so subject to his enemies on account of money received from them.

Burghley answered that her son was not a pensioner; that his mistress had given him some money in order to get on with; that he had little money, as it was given him to meet his engagements. He said there was no mention of the King of France in the league; that her son had done well to enter into Elizabeth's friendship; that they had always defended him, and Elizabeth liked him, and they had not separated him from his mother. Her Majesty said she knew well all about it. As to the King of Spain, she had great respect for him, and to tell the truth, she had found nobody who had troubled her with such goodwill, and he had often aided her in her affairs, and she relied more on him than on anyone else. There was also some talk of the Jesuits who had been in Scotland troubling the State and religion, and of a Dr. Loges, whom they called traitor, with whom Her Majesty was in correspondence. She called him reverend father, and he acknowledged her as his lawful Sovereign. She said the Jesuits did their office when they preached and laboured to restore the Catholic Church. To counsel and comfort afflicted Christians was their duty, and she esteemed them good people. She protested that she did not wish harm to any of the commissioners for what they had said and done against her, and there was not one of them to whom she did not desire good, and apart, before two or three Lords, she explained what they had touched upon as to the deposition of her secretary. She had some conversation with Walsingham in private, who did not show that he remembered much of what she had said. At last she told him her cause was in the hands of God. And Her Majesty, to gratify the commissioners, in passing out of the hall turned to them and with a

pleasant mien said, 'You have behaved severely with your charges, and have treated me pretty rudely for a person who is not learned in the laws of chicanery. May God pardon you and keep me from having much to do with you.' They turning to each other smiled, as did also Her Majesty." This was an extraordinary rebuke to the commissioners, and it is unfortunate we have not a full report of the trial, in order to see the treatment the Queen so keenly resented, treatment that must have been disgraceful to call forth such a rebuke. The proceedings terminated, and the commissioners returned to London.

In order that the reader may comprehend the situation it will be necessary to reproduce the two letters in connection with the Babington Conspiracy (referred to on page 213) on which Mary's trial was founded. The letters in italics are the interpolations.

Babington to the Queen of Scots, July 1586:—

"May it please your gracious Majesty to admit excuse of my long silence and discontinuance from those dutiful offices intercepted upon the removal of your royal person from the ancient place of your abode to the custody of a wicked Puritan and mere Leicestrian, a mortal enemy both by faith and faction to your Majesty and to the Catholic estate. I held the hope of our country's weal depending on the life of your Majesty to be desperate, and therefore resolved to depart the realm, determined to spend the remainder of my life in such solitary manner as the miserable and wretched state of my country doth require; only expecting, according to the just judgment of God, the present confusion thereof, which God for His mercy's sake prevent. The which my purpose being in execution, and standing upon my departure, there was addressed to me from the parts beyond the seas by one Ballard, a man of virtue and learning, and of singular zeal in the Catholic cause and your Majesty's service. This man informed me of great preparations by the Christian princes, your Majesty's allies, for the deliverance of our country from the extreme and miserable state wherein for a long time it hath remained; which, when I understood, my special desire was to advise by what means I might, with the regard of my life and all my friends in general, do your Majesty one day's good service. Whereupon, according to the great care which these princes have of the preservation and

safe deliverance of your Majesty's sacred person, I advised of means and considered of circumstances accordingly, to and with so many of the wisest and most trusty so as with safety I might commend the secrecy thereof. I do find, by the assistance of the Lord Jesus, assurance of good effect and much fruit of our travail. These things are first to be advised in this great and honourable action, upon the issue of which dependeth not only the life of your Majesty, which God long preserve to our inestimable comfort, and to the salvation of English souls and the lives of all actors therein, but also the honour and weal of our country, far more dear than our lives unto us, and the last hope to recover the faith of our forefathers, and to redeem ourselves from the servitude and bondage which heretofore hath been imposed upon us with the loss of many thousand souls. First, for the assuring of invasions sufficient strength on the invaders' part to arrive is appointed, with a strong party at every place to join with them and warrant their landing, the deliverance of your Majesty, *the despatch of the usurping competitor*. For the effecting of it all may it please your Majesty to rely upon my service. I protest before the Almighty, who hath long miraculously preserved your royal person, no doubt to some universal good, that what I have said shall be performed or all our lives happily lost in the execution thereof. Which vow all the chief actors have taken solemnly, and are, upon assurance by your Majesty to me, to receive the blessed sacrament therefrom, either to prevail in the Church's behalf and your Majesty's, or fortunately to die for so honourable a cause. Now, forasmuch as delays are extremely dangerous, it might please your Majesty by your wisdom to direct us, and by your princely authority to enable us and such as may advance the affairs; foreseeing there is not any of the nobility at liberty assured to your Majesty in this desperate service but those unknown to us; and seeing it is very necessary that some there should be to become heads to lead the multitude who are disposed by nature in this land to follow nobility; considering withal it doth not only make the commons and country to follow without contradiction, which is ever found in equality, but also doth add great courage to the leaders. For which necessary purposes I would recommend some to your Majesty as are fittest in my knowledge to be your lieutenants in the west parts, in the north parts, South Wales and North Wales, the counties of Lancaster, Derby, and Stafford. In all which counties parties being already made and fidelity taken in your Majesty's name, I hold them as most assured and of undoubted fidelity. Myself, with ten gentlemen of

quality and one hundred followers, will undertake the delivery of your person from the hands of your enemies; and *for the despatch of the usurper, from obedience of whom, by the excommunication of her, we are made free, there be six noble gentlemen, all my private friends, who, for the zeal they bear the Catholic cause and your Majesty's service, will undertake the tragical execution.* It followeth that, according to their infinite deserts and your Majesty's bounty, their heroic attempts may be honourably rewarded in them, if they escape with life, or in their posterity; and that so much by your Majesty's authority I may be able to assure them. Now it remaineth only in your Majesty's wisdom that it be reduced into method *that your happy deliverance be first, for on that dependeth the only good,* and that the other circumstances concur—that the untimely end of the one do not overthrow the rest, all which your Majesty's wonderful experience and wisdom will dispose in so good manner as I doubt not, through God's good assistance, shall take deserved effect; for the obtaining of which every one of us shall think his life most happily spent. Upon the 12th day of this month I will be at Lichfield, expecting your Majesty's answers and letters, to execute what by them shall be commanded.—Your Majesty's faithful subject and sworn servant,

“ANTHONY BABINGTON.”

Mary's alleged answer to Babington: Chartley, 17th July 1586:—

“According to the zeal and entire affection which I have known in you towards the common cause of religion, and since having always made account of you as a principal and right worthy member to be employed both in the one and in the other, it hath been no less consolation unto me to know your estate, as I have done by your last letter, and to have further means to renew my intelligence with you, than I have felt griefs all this while past to be without the same. I pray you, therefore, to write unto me hereafter, so often as you can, of all concurrents which you may judge in any sort important to the good of mine affairs, wherein I shall not fail to correspond, with all the care and diligence possible. For divers considerations, too long to be dealt with here, I cannot but greatly praise and commend your common desire to prevent in time the design of our enemies for the extirpation of our religion out of this realm with the ruin of us all; for I have

long ago showed to the foreign Catholic princes what they have done against the King of Spain, and in the time the Catholics here, remaining exposed to all persecutions and cruelty, do daily diminish in number, forces, means, and power, so as, if remedy be not speedily provided, I fear not a little but that they shall become altogether unable for ever to rise again to receive any aid at all when it is offered. Then, for my own part, I pray you assure our principal friends that, albeit I had no particular interest in this case, that all that I may pretend unto being of no consideration to me in respect of the public good of the State, I shall be always ready and most willing to employ therein my life, and all that I have or may look for in this world. Now, to ground substantially this enterprise, and to bring it to good success, you must examine duly (1) what forces, as well on foot as on horse, you may raise among you all, and what captain you shall appoint for them in every shire, in case a general cannot be had; (2) which towns, ports, and havens you may assure yourselves, as well as the north, west, and south, to receive succour as well from the Low Countries, Spain, and France, as from other parts; (3) what place you esteem fittest and of most advantage to assemble the principal company of your forces at the same time, which would be compassed conform to the proportion of your own; (4) for how long pay and munition, and what ports are fittest for their landing in this realm from the foresaid three foreign countries; (5) what provision of moneys and armour, in case you should want, you would ask; (6) *by what means do the six gentlemen deliberate to proceed*; (7) the manner of my getting forth of this hotel—which points having taken amongst you who are the principal actors, and also as few in number as you can, the best resolution in my opinion is that you impart the same with all diligence to Mendoza, Ambassador to the King of Spain in France, who, besides the experience he hath of the estate on this side, I may assure you will employ himself most willingly. I shall not fail to write to him of the matter with all the recommendations I can, as also I shall do in any way that shall be needful. But you must take choice men for managing the affair with Mendoza and others out of the realm, of some faithful and very secret both in wisdom and personage, unto whom only you must commit yourselves, to the end things may be kept the more secret, which, for your own security, I commend to yourself. If your messenger bring you back again sure promise and sufficient assurance of the succours which you demand, then thereafter (but not sooner, as it would be in vain) take diligent order that all those on

your part make, secretly as they can, provision of armour, fit horses, and ready money, wherewith to hold themselves in readiness to march so soon as it shall be signified to you by the chief and principal of every shire, reserving to the principals the knowledge of the ground of the enterprise. It shall be enough at the beginning to give it out to the rest that the said provisions are made only for the fortifying of yourselves, in case of need, against the Puritans of this realm, the principal whereof, having the chief forces thereof in the Low Countries, as you may let the report go disguised, do seek the ruin and overthrow on their return home of the Catholics, and to usurp the crown, not only against me and all other lawful pretenders thereto, but against their own Queen that now is, if she will not altogether submit herself to their government. These pretexts may serve to found and establish among all associations or confederations what is done only for your preservation and defence, as well in religion as lands, lives, and goods, against the oppression and attempts of the said Puritans, without directly giving or writing out anything against the Queen, but rather showing yourselves willing to maintain her and her lawful heirs after her, not naming me. The affairs being thus prepared and forces in readiness both within and without the realm, then *shall it be time to set the gentlemen on work, taking good order upon the accomplishment of their design*. I may be suddenly transported out of this place, and meet without tarrying for the arrival of the foreign aid which thus must be hastened with all diligence, *now for that there can be no certain day appointed for the accomplishment of the said gentlemen's design, to the end others may be in readiness to take me from hence. I would that the said gentlemen had always about them, or at least at court, divers and sundry scout men, furnished with good and speedy horses, as soon as the design shall be executed, to come with all diligence to advise me thereof, and those who shall be appointed for my transporting; to the end that immediately after they may be at the place of my abode, before my keeper can have notice of the execution of the said design, or at the least before he can fortify himself within the house, or carry me out of the same. It were necessary to despatch two or three of the said advertisers by divers ways, to the end if one be stayed the other may come through; at the same instant were needful to try to cut off the posts ordinary ways*.

“This is the plot that I consider best for this enterprise, and the order whereby we shall conduct the same for our common security; for stirring on

this side before you be sure of sufficient foreign forces, that were for nothing but to put ourselves in danger of following the miserable fortune of such as have heretofore laboured in the like actions; and if you take me out of this place, be well assured to set me in the midst of a good army, or some very good strength, where I may safely stay till the assembly of your forces and arrival of the said foreign succours. IT WERE SUFFICIENT CAUSE GIVEN TO THE QUEEN, IN CATCHING ME AGAIN, TO ENCLOSE ME IN SOME HOLD, OUT OF THE WHICH I SHOULD NEVER ESCAPE, if she did use me no worse, and to pursue with all extremity those who assisted me, which would grieve me more than all the unhappiness that would fall upon myself. Earnestly as you can, look and take heed most carefully and vigilantly, to compass and assure all so well that shall be necessary for the effecting of the said enterprise, as with the grace of God you may bring the same to a happy end, remitting to the judgment of your principal friends on this side with whom you have to deal, therein to ordain and conclude upon these points, which may serve you for an overture of such propositions as you shall amongst you find best; and to yourself in particular I refer the gentlemen aforementioned, to be assured of all that should be requisite for the entire execution of their plans. I have their common resolution to advise: in case the design do not take hold, as may happen whether they will or no, do not pursue my transport, and the execution of the rest of the enterprise. But if the mishap should fall out that you might not come by me, being set in the Tower of London, or in any other strength with strong guard, yet, notwithstanding, delay not, for God's sake, to proceed with the enterprise; for I shall at any time die most contentedly, understanding of your delivery out of the servitude wherein you are holden as slaves. I shall endeavour, at the same time that the work shall be in hand, to make the Catholics of Scotland rise and put my son in their hands, to the effect that from thence our enemies may not prevail by any aid from others. I would also that some stirring were in Ireland, and that it were begun some time before anything be done here, and then that the alarm might arise thereby on the direct contrary side. That the blow may come from your designs is very pertinent; and therefore were it good to send privately to the Earl of Arundel or some of his brethren, and likewise to seek the young Earl of Northumberland, if he be at liberty from over the sea; the Earl of Westmoreland may be had, whose hand and name you know may do much in the north; also the Lord Paget, of good ability, in some counties there. Both the one and the other may be had, amongst whom

secretly some of the principal banished may return, if the enterprise be once resolute. Lord Paget is now in Spain, and may treat of all that by his brother Charles, or directly by himself, what you commit unto him. Beware that none of your messengers that you send forth of the realm carry any letters upon themselves; but write their despatches, and send them either after or before them by some others. Take heed of spies and false brethren that are amongst you, specially of some priests already educated by your enemies for your discovery; and in any case keep never a paper about you that may in any sort do harm, for from like errors has come the condemnation of all such as have suffered heretofore, against whom otherwise nothing could justly have been proved. Disclose as little as you can of your names and intentions to the French Ambassador in London; for although he is a very honest gentleman, yet I fear his master entertaineth a course far contrary to our designs, which may induce him to discover us, if he had any particular knowledge thereof. All this while, I have tried to change and remove from this house, and for answer the Castle of Dudley only hath been named to serve the turn; so as by appearance about the end of this summer I may go thither. Therefore advise me, as soon as I shall be there, what provision may be had for my escape from thence. If I stay here there is but one of three ways to be looked for: First, that at a certain day appointed for my going abroad on horseback, on the moors between this and Stafford, where ordinarily you know but few people pass, let fifty or sixty horsemen, well mounted and armed, come to take me away, as they may easily, my keeper having with him but eighteen or twenty horse, armed only with pistols. Secondly, to come at midnight or soon after, and set fire to the barns and stables, which you know are near the house; and, whilst my guardian's servants come forth to the fire, your company, having duly on a mark whereby they may be known one from another, some of you may surprise the house, where I hope, with the few servants I have around me, I shall be able to give your people aid. Thirdly, some there be shall bring carts hither early in the morning. These carts may be so prepared that, being in the midst of the great gate, the carts might fall down or overthrow; that thereupon you might come suddenly and make yourselves master of the house, and carry me suddenly away; so you might easily do before any number of soldiers who lodge in sundry places, some half a mile and some a mile away, could come to relieve. Whatever issue the matter taketh, I do and shall think myself obliged, so long as I live, towards you for the offers

you make to hazard yourself as you do for my deliverance; and by any means that ever I may have, I shall do my endeavour to recompense you as you deserve. I have ordered a more complete alphabet to be made for you, which you will herewith receive. May the Almighty God protect you.

MARIE R.”



MARY, QUEEN OF SCOTS.

From the Collection of RANDOLPH WEMYSS, ESQ., of Wemyss Castle.

CHAPTER X

Paulet and the Queen discuss the situation—Arrival of Lord Buckhurst—Buckhurst, Paulet, Drury, and Beale have an audience of the Queen—Elizabeth's insolent message—Mary's vigorous reply—Debate between the Queen and Beale—Text of Mary's famous letter to Elizabeth, 19th December 1586—The Drury and Melville interview—Mary demands delivery of her papers—Paulet's duplicity—Mary's opinion of Nau—Melville, Bourgoyne, and Preat separated finally from her in spite of remonstrance.

“AFTER the departure of the commissioners, Paulet treated the Queen courteously, provided her with what was necessary to make her comfortable, and gave her in addition the use of the great hall which had served for the examination. Her Majesty all this time, so far from being troubled with what had passed, I had not seen her so joyful nor so much at her ease for seven years; only speaking of things for the purpose of recreation, especially giving her opinion on the chronicles of England, which she read daily; and afterwards in chatting with her people without any appearance of sadness, looking well and appearing better than before her trouble. Her resolution was that she did not fear to die for such a good cause, and if anyone said they would not put her to death, she knew quite well they would. She saw well that they were proceeding in order to come to that point, for she knew their ways of doing.

“In reply to Paulet, she said she had no occasion to be indisposed or troubled; that she knew in her conscience what she had done, and she had already responded to everything; that God knew she had never attempted nor consented to conspire against the Queen of England; that her conscience was free from all connivance in that respect, and being innocent, she had occasion rather to rejoice than be sad, having confidence in God, the protector of the good and the innocent. She was quite ready to suffer death if it pleased Him. She had been born in trouble, and the Queen her mother had brought her up in trouble and had had much pain in doing so; and at last was obliged to send her to France, where she did not long enjoy the good that came to her, the King her husband having prematurely died. When she

returned to Scotland she was almost always troubled, and had not been without trouble ever since. It would be no profit to her to be afflicted any longer. It was a great satisfaction to have a clear conscience. Paulet said her cause was not a question of religion, it was a question of murder, rebellion, and invasion, and being guilty, she ought not to deny it. If she had committed so horrible a crime neither she nor a great part of the kingdom could be excused, not even all the Catholics of the kingdom. If they consented to this, they deserved to be punished. She said they must find some other cloak or pretext to enable them to come to the point. She could see well what they had in view, but she would have no worse cheer for all that; they were not going to spare her. Paulet said it was not for her religion; no one had been punished for that. He knew nothing of what the Lords had done, but they had found the charge clear and evident. It was said they had given sentence, that he knew not; some supposed he had done it, but he knew nothing: had only heard by hearsay. Her Majesty said she knew they had condemned her *before they came here*. What they had done here was only to go through the formalities to make their resolution feasible. She was not obliged to acquiesce or submit, and she did not care in the least what they had done. Having her a prisoner, they could very easily afflict her and kill her and dispose of her at their own will and pleasure, for she was all along feeble and careworn, and she desired that everyone should know how her affairs were handled. Paulet said spitefully that he was very sorry everybody knew it, that such an enterprise was not secret, but he had passed no judgment on it before the arrival of the Lords. He said that Elizabeth should not take the title of supreme head of the Church, and that there was no head but Jesus Christ. She replied that this was the only point on which the exclusion of the Catholics had been founded; that she thought this thing was so common and so true that to Henry VIII. the title had been given; that he might think the Calvinists, who are the most reformed, did not approve of this; but those who followed the religion of the Queen, who are Lutherans and inventors of this idea, hold everyone guilty of treason or *lèse majesté* all who hold the contrary. Not only have they judged guilty those who would not recognise it or disavow it by words, but they have obliged them to say what they thought in their conscience, and upon their answers condemned them to death. If Elizabeth did not wish to accept this title she knew well it was given to her and that they were guilty who did not recognise it. Paulet answered that Elizabeth could not do so, and they did

not give it to her but others, and those who were called Puritans considered her governor under God of things ecclesiastical and temporal in England, but not supreme head of the Church. There was no one that but Jesus Christ.

“At the conclusion we were of opinion that he would write Her Majesty's answer to the court. Her countenance was not in the least changed, neither her conversation nor her actions, and we said she could bear a thousand torments sooner than ask pardon. She said they would be instructed by Elizabeth, who wished to reserve this authority in order to keep her under subjection as incapable of the right to reign. She repeated what she had been told several times, that there were many others in England whom they had put to death, princes, kings, and great lords; as she said to Paulet some days before, that England was the bloodiest of all nations, and that they were in the habit from time immemorial of putting their kings to death or deposing them according to their will. Paulet said it was of all nations the least addicted to that; and she replied their chronicles were full of it.”

The next entry in the *Journal* is Sunday, 13th November. Drury, the Ambassador of Elizabeth, came in the place of Stallenge, who left next day.

“*Friday, 18th November.*—Lord Buckhurst arrived in order to consult with Her Majesty. He came with the governor of the castle to speak to Paulet, then went back to sleep in the town.

“*Sunday, 20th November.*—After having asked permission to speak to Her Majesty they came after dinner with Paulet and Drury into her chamber. Lord Buckhurst had a message from Elizabeth, if it would please her to listen: that she, considering what had passed, had sent Beale and him to tell her that after she had been informed of rebellions in her kingdom against her person and Estates, of which Her Majesty was accused, knowing her rank and having great regret in her heart that such a thing should have happened, she had been careful to order that the facts should be looked into, and for that purpose had sent the greatest and most honourable lords of her kingdom to inquire into the same. They had reported to Parliament that Her Majesty not only was consenting to a thing so horrible, but was also author and inventor of the same, and that she, being in this country under the protection of the Queen of England and the laws, was subject to the same.

After having deliberated with Parliament, Elizabeth had given sentence of death against her, and he had left his mistress irresolute, but in order that she might not be taken by surprise, there being such a ferment in Parliament, and she was so importuned by her Estates, that it was almost impossible for her not to consent. For since the Queen of Scots had been in this country there had been continual trouble in the kingdom, so that neither the Queen's person, nor the State, nor religion were secure. They all said for the safety of these it was necessary that one or the other should die, for it was impossible for both to live at the same time.

“Beale and he had been sent to warn her of her death, that she might not be taken unawares, and they would send her the Bishop of Peterboro' or a Dean to console her—these were men of knowledge and reading; however, if she would reflect, and recognise her fault, and make repentance and satisfaction before God and man, and if she knew something more of this plot besides what had already been proved, she would unload her conscience, as she was bound to do in Christian charity, being a near relation of the Queen of England, to whom she was indebted for the benefits she had received. If she knew any who were guilty in this matter, she should declare it before her death, for such was her duty. Her Majesty said she expected nothing else; they were in the habit of proceeding thus to those of her rank or those who were related or near the Throne. They never allowed those to live who could aspire to it, and that for a long time she knew the end would be that they would lead her there. She respected the Queen and the country, and had done all she could for the preservation of both. She did not fear death and was quite resolute, and with a good heart would endure it. She had in no way conspired to the hurt of the Queen's person; her friends had several times offered her deliverance, to which for not having consented she had been blamed, and they threatened to leave her and mix themselves up no more in her affairs. In these circumstances she had striven for deliverance out of amiability, but to her great disadvantage; in short, on being refused on the one side and pressed on the other she had thrown herself into the arms of her friends and had taken part with the Christian princes and Catholics, not for ambition or aspiring to great estate, but for the honour of God and his Church, and to be delivered from the misery and captivity in which she was placed. She was not ignorant that for a long time there were individuals who had got up all these accusations

against her; and to speak plainly, it was Walsingham who had confessed to being her enemy, which he would never cease to be till he had accomplished his purpose; of all which she had spoken before the commissioners. Beale said that Walsingham did not meddle more than the others, that he was esteemed a good and faithful servant, and that he believed that neither he nor any of the lords had any special power to do anything for or against her unless in the Council and Assembly. Beale said that he had to tell Her Majesty something about the treaties and affairs which had been in the past in this kingdom, and with these she had been connected and caused trouble. He criticised her coming into the kingdom, and said that the Queen had cared for her and received and appeased her subjects who were against her; that seeing her in danger, she had helped her to retire to Carlisle in order to be more secure. Her Majesty answered that she had been led there compulsorily and against her will. Beale said it was for her good, and put her in mind that there had been affairs over which the subjects of Her Majesty and her friends had taken arms. She said that formerly when she desired to write she could; and when it could profit the Queen and her it was no longer permitted, but since her enemies had procured her sentence she had not thought it would profit or serve her in any way; besides, being deprived of all dignity and title, she did not see in what rank she could write for the present. What she did was not to save her life, nor to get pardon and escape, but only for peace of mind and for a last adieu.

“Next day after dinner, Paulet and Drury having been sent for, they came into her chamber, when she made the same speech, adding that she would make a rough draft of a letter before them. And while they were talking Paulet said he wished to read this letter before it was sealed, as she might put something within of which he wished to be assured because of his duty to his mistress. On this they had some conversation, Her Majesty being surprised that he should require such a thing. At the same time she said ironically that she thanked him for the good opinion he had of her, to suspect her of putting something into the letter that would hurt the English Queen. Paulet apologising for his behaviour, assured her that Elizabeth wished to write her the same day (16th December). Her Majesty's chaplain arrived.

“*Tuesday, 19th December* (the Vigil of St. Thomas).—Paulet and Drury were sent for to receive her letter. She showed it to them quite open, and took a copy of it, rubbing it against her forehead, then shut it with white silk and sealed it with Spanish wax.”

This letter has very fortunately been preserved, though it is not in Bourgoyne's *Journal*, and is in the following terms:—

“MADAM,—Having with difficulty obtained leave from those to whom you have committed me to open to you all I have on my heart, as much for exonerating myself from any ill will or desire of committing cruelty, or any act of enmity against those with whom I am connected in blood; as also kindly to communicate to you what I thought would serve you as much for your weal and preservation as for the maintenance of the peace and repose of this isle, which can only be injured if you reject my advice. You will credit or disbelieve my discourse as it seems best to you.

“I am resolved to strengthen myself in Christ Jesus alone, who to those invoking him with a true heart never fails in his justice and consolation, especially to those who are bereft of all human aid; such are under his holy protection; to him be the glory. He has equalled my expectation, having given me heart and strength *in spe contra spem* (in hope against hope) to endure the unjust calumnies, accusations, and condemnations (of those who have no such jurisdiction over me) with a constant resolution to suffer death for upholding the obedience and authority of the Apostolical Roman Catholic Church.

“Now since I have been on your part informed of the sentence of your last meeting of Parliament, Lord Buckhurst and Beale have admonished me to prepare for the end of my long and weary pilgrimage, I beg to return you thanks on my part for these happy tidings, and to entreat you to vouchsafe to me certain points for the discharge of my conscience. But since Sir Amias Paulet has informed me (though falsely) that you had indulged me by having restored to me my almoner and the money that they had taken from me, and that the remainder would follow; for all this I would willingly return you thanks, and supplicate still further as a last request, which I have thought for many reasons I ought to ask of you alone, that you will accord

this ultimate grace for which I should not like to be indebted to any other, since I have no hope of finding aught but cruelty from the Puritans, who are at this time, God knows wherefore, the first in authority and the most bitter against me.

“I will accuse no one: nay, I pardon with a sincere heart everyone even as I desire everyone may grant forgiveness to me, God the first. But I know that you more than anyone ought to feel at heart the honour or dishonour of your own blood, and that moreover of a Queen and the daughter of a King.

“Thus, madam, for the sake of that Jesus to whose name all powers bow, I require you to ordain that when my enemies have slaked their black thirst for my innocent blood, you will permit my poor desolate servants altogether to carry away my body to bury it in holy ground with the other queens of France my predecessors, especially near the late Queen my mother; having this in recollection, that in Scotland the bodies of the kings my predecessors have been outraged and the churches profaned and abolished; and that as I shall suffer in this country I shall not be given place near the kings your predecessors, who are mine as well as yours; for, according to our religion, we think much of being interred in holy ground. As they tell me that you will in nothing force my conscience nor my religion, and have even conceded me a priest, refuse me not this, my last request, that you will permit free sepulture to this body when the soul is separated, which when united could never obtain liberty to live in repose such as you would procure for yourself—against which repose, before God I speak, *I never aimed a blow*: but God will let you see the truth of all after my death.

“And because I dread the tyranny of those to whose power you have abandoned me, I entreat you not to permit execution to be done on me without your own knowledge, not for fear of the torments which I am most ready to suffer, but on account of the reports which will be raised concerning my death unsuspected, and without other witnesses than those who would inflict it, who I am persuaded would be of very different qualities from those parties whom I require (being my servants) to stay spectators and with witnesses of my end in the faith of our Sacrament of my Saviour and in obedience to his Church. And after all is over that they together may carry away my poor body (as secretly as you please) and speedily withdraw without taking with them any of my goods except those

which in dying I may leave to them ... which are little enough for their long and faithful services. One jewel that I received of you I shall return to you with my last words, or sooner if you please.

“Once more I supplicate you to permit me to send a jewel and a last adieu to my son with my dying benediction, for of my blessing he has been deprived since you sent me his refusal to enter into the treaty whence I was excluded by his wicked Council; this last point I refer to your favourable consideration and conscience as the others; but I ask them in the name of Jesus Christ, and in respect of our consanguinity, and for the sake of King Henry VII. your grandfather and mine, and by the honour of the dignity we both held and of our sex in common do I implore you to grant these requests.

“As to the rest, I think you know that in your name they have taken down my daïs (canopy and raised seat) but afterwards they owned to me that it was not by your command but by the intimation of some of your Privy Council. I thank God that this wickedness came not from you, and that it serves rather to vent their malice than to afflict me, having made up my mind to die. It is on account of this and some other things that they debarred me from writing to you, and after they had done all in their power to degrade me from my rank they told me 'that I was but a mere dead woman, incapable of dignity'—God be praised for all.

“I would wish that all my papers were brought to you without reserve, that at last it may be manifest to you that the sole care of your safety was not confined to those who are so prompt to persecute me. If you will accord this my last request, I would wish that you would write for them, otherwise they do with them as they choose. And, moreover, I wish that to this my last request you will let me know your last reply. To conclude, I pray God the just judge of his mercy that He will enlighten you with His Holy Spirit, and that He will give me His grace to die in the perfect charity I am disposed to do and to pardon all those who have caused or who have co-operated in my death. Such will be my last prayer to my end, which I esteem myself happy will precede the persecution which I foresee menaces this isle, where God is no longer seriously feared and revered, but vanity and worldly policy rule and govern all—yet will I accuse no one nor give way to presumption—yet while abandoning this world and preparing myself for a better, I must

remind you that one day you will have to answer for your charge, and for all those whom you condemn, and that I desire that my blood and my country may be remembered in that time. For why? From the first days of our capacity to comprehend our duties we ought to bend our minds to make the things of this world yield to those of eternity.

“From Fotheringay this 19th December 1586.—Your sister and cousin, prisoner wrongfully,

“MARIE (*Royne*).

“Paulet afterwards troubled Her Majesty with a rather violent speech, warning her to thank the Queen and recognise the favour she had done her not only since her arrival in England but since, and in this last she was much indebted. Her Majesty said if she had received any benefit or favour from Elizabeth she thanked her for it, but she did not see it, having kept her a prisoner for eighteen years and then condemned her to death. It was the worst that she could do. Paulet said she had kept her from her enemies and saved her life; that she had come into this country fleeing from another place, and it was the inconvenience of the sea that sent her into England. Her Majesty said there was nobody in England who held this view but himself, and that she had come into this country in a simple fishing boat, which was not intended to carry her farther, against the opinion of the lords who were with her, of whom there were some still living, who had tried to dissuade her from coming because she would put herself into the hands of the enemy and would only leave it at her death. They would not cross with her unless she gave them an attestation and certificate by her own hand that it was against their will that she came to England. Paulet, she said, showed himself very ignorant of her affairs. If Elizabeth did not wish to keep her promise she ought to have sent her away and not detained her against her undertaking. Paulet repeated it was for her good and to save her from her enemies, therefore she ought to have a good opinion of Elizabeth. Since she came into the country and was under her protection, Elizabeth had guarded her and done her no harm, although she might have had suspicion of her as a rival in the kingdom. She was quite sure the enemies of the Queen of Scots would have taken her life had she been sent back to Scotland. Her Majesty replied that her subjects had taken arms on the frontiers. Paulet

reminded her that when her party was the feeblest in her country Elizabeth had kept her in her rank and dignity, and her gratitude was to attempt Elizabeth's life. The which was so undoubted that Elizabeth had a right to proceed against her according to the laws of the country.

“Drury began to speak to Melville, and said that many great lords had told him that the King of Scotland had good reason to know and respect the Queen of England, who had been to him a good mother: that it was not the English who had separated him from his mother, but it was because he would not make a league in which she (Mary) was included; thus they had treated with him as King of Scotland, as one who was recognised in England and in all foreign countries. There was no other with whom to treat but he who was recognised by the Parliaments of England and Scotland. Her Majesty answered on the first point that it must be allowed to pass as above, she not having been allowed by the Queen of England to arm her people. The English not having laid down their arms they burned and wasted the country, and she, being kept by force, had not been able to make good conditions for getting away. Her party would not have been the weakest if the English had not mixed themselves up in it. She was obliged to tell them that one well-known man in England (John Wood) had written to Moray that 'they had not been able to keep the devil when they had him in their possession.' Better to have kept him tied and chained than to let her go. She desired to be judged by her peers or by twelve subjects not kings or primates, by whom England had no right to make laws. It was no great honour to praise such a wicked man as Morton, who was known for a tyrant and usurper, who pillaged and ravaged all the wealth of the poor subjects of Scotland, took her son prisoner, and extorted money tyrannically from everyone. He was a false man and a traitor, his life debauched and vicious, coming to a climax in luxury and adultery. Melville said he could corroborate this statement. She wondered at Elizabeth thinking herself a good mother to her son in having kept him separate from her and hindered friendship with his mother, having intercourse with those who kept her prisoner, receiving her rebels and favouring them. They ought not to have taken the counsel of young Gray to treat with the son rather than with the mother to whom the kingdom belonged, and that as soon as he became King she declared she had submitted by force, that she permitted him to take the title of King provided he took her counsel in affairs of importance

and that he would do nothing without her. Otherwise she would disavow all that he did. The foreign kings recognised him only on this condition. (Paulet was evidently unable to reply.)

*“Thursday, 22nd December.—*Paulet sent to fetch Melville and Bourgoyne both together, contrary to his custom, inasmuch as Melville since his return had always alone carried messages to and from the Queen. Paulet declared he had something to send to the Queen. This was two bags of papers according to what Her Majesty had asked in order to arrange her accounts, saying that he did not know what they were, but he gave them as he got them, delivering to us aside a letter from Curle to his sister saying that he had been allowed to write to ask Her Majesty that as she had promised for his bargain £4000 by testament and £1000 in prison, it would be better to leave him the 2000 crowns that he had had by deposit, that the said sum might be put to interest in France, as otherwise it might fall into the hands of his enemies. As the bags were unsealed we showed them to him. He said that because of his duty and charge he had unsealed them in order to know their contents. Her Majesty read Nau's letter, which was in one of the bags in a very short memorandum.

*“Friday, 23rd December.—*Her Majesty sent to Melville and Bourgoyne to beg of Paulet to tell the court that she could do nothing without her papers which were awanting, and being those that were principally required, namely, the conclusion and clearing up of the past, and that he would know what had become of them, as they had been carried away by Wade. Desiring to speak to him particularly of other points that she wished him to write down, Paulet, who was ill, promised to come to her when he was better, but he would write to her upon this and other subjects.

*“Saturday, 7th January 1587.—*Paulet sent by his secretary the papers which he said he had received the day before from his servants, who had returned from London with money for the expenses of the house, as he thought. These papers were memorandums made by Nau of the accounts of the Queen for the years 1583-4-5, what the treasurer had received and what he had paid out, showing that they owed her more than he had received because of the past troubles.

“Her Majesty complained that they were not what she had asked, and were of no use to her; that she must have her books and original papers concerning her estate and private affairs, the which neither affected the Queen nor England, and were of no interest to anyone but herself. She wished no writings to be in the hands of Nau. She desired to know what she had to dispose of in her will, without which she could do nothing, and she wanted from Nau a memorandum of the money he owed her in his own private name. This money he had received from her and her servants, including Pasquier, for the services he had given her in furnishing stuffs and distributing them, which stuffs he had paid with her money when he was in London; while he also received it from those to whom he had delivered the said stuffs (paid twice).

“Paulet took a memorandum of this, to write about it and about what Her Majesty wanted to know more particularly. He said he would do it when he could—he understood it well.

“*Next day, 8th January*, Her Majesty desired him to come and speak to her, as he had made her understand, by his wife and Melville, because of his malady he was unable. She knew he had been out the day before, when she hoped to have seen him, having also been able to walk out. Paulet answered that he would come, when his health would allow it—that he had a cold, and could not stir. We were charged to tell him that Her Majesty, not being able to communicate with him, and having no answer to her letter written nearly three weeks ago, thought of writing again. Then when he was getting better, she would prepare her letters, so that when he was cured he might find them all ready. He, a little angry, said she could write and prepare what she wished.

“*Saturday, 14th January*.—Her Majesty sent to Paulet to tell him that, according to what she had sent on Sunday last, she was surprised that she had received no answer, nor to that which she had begged him to write. She wished to be kept no longer in suspense, so as to arrange the matters of her last will and prepare herself for everything. Her letter was ready, and she desired him to come and speak to her, and see the letter, and seal it, as he had done the last. He being in bed, with one of his arms bandaged, said it was not possible for him to move or walk at present. He was very sorry, but as soon as he was able he would go to her. She gave orders to tell him if he

could not come, to send Drury or his wife, or both, in order to receive it and seal it. Paulet said he would communicate with Drury, and next day we would have the answer. Which day, *15th January*, after dinner, Paulet sent to tell us he had spoken with Drury, and that he could send nothing to the court without being authorised to do so. It was not for him to hinder her writing, but he was a servant, and not such an infant as to send anything without leave; but he would write about it, and the distance not being great, she would soon receive an answer. Her Majesty sent to tell him she thought it very strange he should act in this fashion, seeing she had had permission to write; that they even found it strange she had not done it, and that the Queen of England expected it, and one single letter from her might have kept them back, and if she had received it they might not have come here—that he himself, after the return of Lord Buckhurst, had offered to do this, and had even sent her letter. Paulet answered that he had a commission, and that he had executed it, but she might be content, she would soon have an answer. Upon this he was told that Her Majesty wished to know if he had instructions prohibiting him from sending her letters. Paulet said he could not answer particular questions: he promised to send Elizabeth Curle's letter, in answer to that of her brother, which she had received some days before, provided he saw and read it first.

*“Friday, 20th January 1587.—*Melville spoke to Paulet about the diet and the ordinary pension, if to have a servant, also our wages, to which he received a courteous answer refusing a servant but hoping he might be able to send the wages. Upon which we founded our hopes that all was not at the last extremity.

*“Saturday, 21st January.—*Paulet sent to fetch Melville, Bourgoyne and Prean, upon which we wondered much what it could be for, and the latter not wishing to go because he had not suitable dress, remained behind until Melville and Bourgoyne spoke to him; when he refused, saying he could do nothing without Prean. We concluded that he sent for us in private suspecting that they wished to separate him from the Queen. Prean, dressed as he was, borrowed a cloak. All the three having come to Paulet, he addressed Bourgoyne, whom he requested wishing him to tell the Queen that Melville and Prean were to have no more communication with Her Majesty, and he (Paulet) could not tell her himself. Then Paulet said he had something to tell them that he knew would not be agreeable to Her Majesty

nor to Melville, who was always known as a faithful servant to his mistress, but there was no help for it; that he must take it in good part, and know there were good reasons for it; that they must leave their mistress for the present, and they must appear no more before her; therefore they must retire to their rooms; that Prean, being lodged so near Her Majesty, they could not hinder him from going to her. It would be better for him to live in one of Melville's chambers; they were not to be made prisoners nor lose anything they had before, excepting in the presence of their mistress. They could walk in the court, dine in the office if they wished, communicate with the servants who came to them, but not to enter into the hall. Upon this Melville protested with regret, saying that all his consolation was to be near his mistress—would he permit him to see her and take leave of her? Paulet answered that he could not, and it was of no use; he said nothing to hinder him from thinking that he might return to her as before, but he must have patience for the present. Prean, protesting his regret, said the same. Bourgoyne, returning to Her Majesty, astonished her and the others very much; they imagined all kinds of things, but could not find a good reason.

CHAPTER XI

Mary prohibited from writing Elizabeth—She surrenders her life to God, and is willing to die—
Paulet still insolent—The Queen remonstrates with him—She thinks they will murder her
secretly—Denied the use of a priest—Paulet resents secret murder—Mary's dignities—The daïs
and rod discontinued—Paulet and Melville quarrel—Arrival of the Sheriff and the Earls of Kent
and Shrewsbury—She receives them in her bedchamber—Shrewsbury announces sentence of
death; to take place next morning—Mary's calm and pathetic reply—Takes leave of her servants:
gives them her blessing and distributes presents to them—She writes her will—Names of those to
be present at her death—Her last words and the scene of execution as recorded by Bourgoyne—
Author's summing up and conclusion.

*“Sunday, 22nd January 1587.—*Her Majesty sent Bourgoyne to tell Paulet that on the report that he had made she wished to speak to him but it was too late, and she wished it to be taken to him to think over it (I think she feared I would be detained like the others). Bourgoyne said to Paulet that Her Majesty found the manner of proceeding towards her very strange: that she, preparing for death, had wished to write to the Queen, as had been allowed, even invited by Buckhurst and Beale, and again allowed by him; that she had given him a letter with the promise and assurance to keep it safely, in which she had treated of nothing which could hurt anyone, neither of business, nor of things concerning the country, nor the State, nor the person of the Queen; that it was not even to obtain favour, nor pardon, nor escape, having resolved to offer her body and her life gratefully, and with great contentment, for the cause of God and His Church, for which she was ready to die and shed her blood—not esteeming herself worthy to do this, as she had many times protested; she had only written about her *Will*, as much for her *Will* as her funeral, which it was necessary to do in the religion which she professed. She had received no answer, at which she was not only astonished, but she was not sure that the Queen had received her letter; consequently she had prepared another, but he had refused to send it; and although he had promised to write to the Court, to see if she could send the letter, which was ready, she did not yet know if she could send it. He said he had permission, and had sent the Queen's letter; that it did not follow

though he had permission once, he had permission always. He assured her that Elizabeth had received her letter, but he had received no answer, and therefore could not give her one. He would never presume to inquire what the Queen had written—it was all one to him, and he was not the man to keep back letters if he had got them; and pressed to say if he had been prohibited from allowing her to write, answered that he had already said he had no orders to send her letters. On the second point he was told she was in great trouble to know the reason why she was separated from her two servants. The Queen of England had sent her a priest to prepare her for death and give consolation, and now, when it was more than ever necessary, they had taken him away; that having asked him to assist at her last end, when she was nearest to her death, she was deprived of him. There were none so criminal that they did not give them a minister of their religion to conduct them to execution and console them, and all the consolation she now had in her affliction in captivity came from her religion. She regretted infinitely not to be able to make her prayers to her contentment, assist at the Mass, and do the duties of a good Christian. The Queen had promised not to trouble her in her religion, and said it was not for religion they accused her. Her priest harmed no one, mingled in nothing but saying the prayers; it would have been better not to have offered his services than to take him away in her great extremity. She could see that, not content with afflicting her body, they tried if that were possible to make her lose her soul, which could not be. She had such hope in God, that He would help her in this, as He had done before. She saw that their intentions were to take away her servants, one after the other; carry her away secretly from here, to make her die at their pleasure or murder her secretly.

“This she did not regret, as having no consolation near her as she had hoped. She could do nothing without her papers, and she required a priest to assist and communicate with her. They might leave her this consolation seeing they had got everything they could desire as against the greatest enemy that could be found. One could do nothing more grievous than take away life. The rest is not only cruelty, it is inhuman and is denounced even by the wickedest of people. Paulet said that he did not think Her Majesty wished to have her priest near her, but he could assure her that he was not far away. He was neither in France nor in Scotland, nor out of the house; and he saw no reason why she might not have him when necessary. When

he heard of Her Majesty being massacred or killed secretly he indignantly protested that there was no danger of such an outrage, and they had no right to suspect him of such a thing. Bourgoyne said there was no idea of such a charge against him. Paulet said there was no more danger for Her Majesty than for his wife, his children, or himself. As for him, he was not the man to do such an act, and was indignant that he should be suspected of such a thing, for he was an honest man and a gentleman. He would not take such dishonour upon himself as to exercise such cruelty or behave like a Turk. Upon which they said that perhaps they did not mistrust him, but there were many people in England who were enemies of Her Majesty, and whom she suspected much, and whom she knew would spare nothing to do her harm. It was principally those that she feared. Then she complained that her steward had been taken from her, and wanted to know the reason; if he had done anything injurious to anyone which might concern Elizabeth. They, without her having asked him, had offered him to her. He was of their own religion, and she did not think he could have done them any harm. Paulet said Melville was an honest man; that he was not separated because he had offended Her Majesty nor done anything on his own account, but there were certain reasons, and it had to be done. At last Bourgoyne said Her Majesty feared to send anyone, as they might be detained one after the other. Paulet said she must not anticipate that as all her servants were in the house, and he thought she need not vex herself about it.

*“Monday, 23rd January.—*Melville got leave to speak to Paulet. Before this he had not been allowed to do so, although he had asked for it. We were full of suspicion and fear until the evening of the same day about five p.m., when the porter came to Her Majesty's chief baker to say that he must not carry the rod before Her Majesty's dinner. Upon which the Queen was very much astonished and thought of sending to ask the cause; but Paulet would receive nobody, saying it was too late. Next day he would hear them. If it was because he had prohibited the carrying of the rod it would be useless, as it should have been prohibited when Melville was taken away.

*“Tuesday, 24th January.—*Her Majesty sent Bourgoyne to say to Paulet that she had so far got over the fear about her life and murder because of his disposition towards her. Having been warned of his new prohibitions, she had come back to the same doubt, as she could not but think they were doing it with the intention of taking away from her all conveniences and

state and dignity, the more easily to accomplish their evil designs. She was much astonished that he would forbid a thing of so little consequence, that could neither hurt nor profit anyone. He could prohibit her servants as he pleased from doing her any honour, but he had been warned not to prevent them from doing their duty, as they had sworn to do, to Her Majesty's pleasure. He had no authority over them, especially touching their service. Paulet said Her Majesty did herself great wrong, and did wrong to the Queen and State of England, to the Council and to himself, to suppose that they would undertake anything so unworthy and so outrageous as to kill her either by night or by day, stab or massacre her secretly or suddenly. This touched him to the heart to hear such a speech, and displeased him to think that he could commit such an act of butchery, or permit it to be done. They had talked enough about that the day before; Her Majesty was a woman of reason, of great mind, and practical, and he wondered she would torment herself about this. She knew they had taken away her daïs, her steward, and her priest, and now she took offence at a trifle, for having taken away the rod they carried before her at meals. She was wrong, being attainted and a convicted and condemned woman. Bourgoyne said she had cause to be angry, seeing they showed such ill-will for a thing of so little consequence, and she remembered they had done the same to King Richard, whom they had degraded from all honour and dignity. He was suddenly put to death, murdered in a moment, and she feared the same thing might be done to her. Immediately Paulet flew into a rage and said they must not bring him such unworthy messages, and that Bourgoyne had invented them. Bourgoyne said he only repeated the Queen's words, and neither added to them nor diminished them. After much discussion they separated.



GEORGE TALBOT, SIXTH EARL OF SHREWSBURY,
From the Collection of the present Earl.

*“Friday, 3rd February.—*Melville asked to speak to Paulet, but was refused. Paulet said if he came on the part of the Queen, he could not speak to him, being separated. If he came on his own account, he could tell the porter. He also refused to allow him to write, for the same reason. Upon his wishing to know if he had offended his mistress or Paulet, or why they kept him apart, might he have his letters delivered to him, or might he be allowed to return to Her Majesty, or go back to his own country. It would be easier to go to the kitchen to communicate with the Queen's women by the

window of the hall, where he might also see the Queen. He wished also to be better lodged, being one of two in one chamber. He was answered that he had offended no one; he would have his letters in due time, and they would see about his lodging; for the rest, nothing could be changed.

*“Saturday, 4th February 1587.—*Her Majesty sent Bourgoyne to say she was ill, and to beg Paulet to allow him to go out and gather herbs in some of the adjoining gardens. Paulet said she would get everything she wished if she put it in writing; and being pressed by Bourgoyne to allow him to go, said he could not answer to this, but must communicate with Drury, and on Monday he would have his reply. Paulet being pressed not to delay for fear Her Majesty might get seriously ill, and it was necessary that the remedy should be given her to-morrow. Immediately after Bourgoyne left, Paulet sent to say he could go if he wished, although he thought it was imprudent. Bourgoyne and the apothecary went to gather the herbs, and the Queen began her cure next day.

*“Monday, 6th February.—*The Dean of Peterborough and some others dined with Paulet. After dinner, Beale arrived alone, consulted with Paulet, and then returned to the village.

*“Tuesday, 7th February.—*Several arrived, amongst whom was the Sheriff, as we thought; after dinner the Earls of Kent and Shrewsbury, at whose coming we were greatly astonished and in great fear, having for three days imagined all kinds of things as to Her Majesty's end, fearing the blow was certain. They sent asking an audience of her. She answered that she was in bed, but if they were much pressed she would get up if they gave her a little time. After hearing that it was of great importance, she prepared to receive them in her chamber, at the foot of her bed, namely, the two earls, with Beale, Paulet, and Drury (Shrewsbury with head uncovered), together with the others, who did not uncover all the time they spoke to her. Shrewsbury began to say that Elizabeth had sent them to tell her that after having acted honourably in her affairs of which she was accused, and found guilty and therefore condemned, he had been sent by the Queen in order that she might hear her sentence read. He, Kent, and Beale had been commissioned to put it into execution. Thereupon Beale commenced to read a writing on parchment with the Great Seal of England and yellow wax hanging therefrom, in which Her Majesty was named “Marie Stuart,

daughter of James V., formerly called Queen of Scotland and Dowager of France,” etc. This being read, Her Majesty firmly, and without emotion, answered that she thanked them for news so welcome; that they did her a great benefit in retiring her from this world, with which she was quite content because of the misery she saw in it, being in continual affliction, and of no use or profit to anyone. She had long expected this, and had waited for it from day to day for eighteen years. She was Queen born and Queen anointed, near relation to the Queen of England, granddaughter of Henry VII., and had had the honour to be Queen of France. Throughout her life she had only had misfortune, and she was very glad that it had pleased God, by their means, to take her away from so many troubles; she was ready and willing to shed her blood in the cause of God, her Saviour, her Creator, as also the Catholic Church, for the maintenance of which she had always done what was possible; loving the Queen her good sister and the island as dearly as herself, as she had often shown, having offered in every way to take order, so that everything should come to a good issue and be arranged peacefully. She had always been rejected, thrust back—held prisoner without having merited it, having come of her own free will into the country in hope of succour. With the Queen she was in full agreement, and might have arranged everything so that each would have been content if she had been allowed an interview. And at last Her Majesty swore on the Bible, which she had near her, that she had neither sought nor attempted the death of the Queen nor of any other person. She was told by Shrewsbury and Kent that this Bible was the version of the Pope, and therefore it did not count. She was offered the Dean of Peterborough for her consolation, by whom she could learn what was the true religion, for her salvation. They said she had always remained in what they taught her in her youth, and that she had continued in that, because no one had led her to know the truth; and now it was time, when she had but a few hours to remain in this world, that she should recognise the true religion, and remain no longer in these follies of popery and abomination; that they had the true word of God; that she could make comparison when she had spoken with the minister—she could choose afterwards; that they spoke in a good conscience, desiring that she should be right at her death, and be converted to God. Her Majesty said she had been a long time instructed and well versed in her religion; she knew well what she ought to know for her salvation and conscience; she had not only read and heard the wisest men of the Catholic religion, but also those

of the Protestant; she had communicated with them and heard them preach, but had heard nothing which could in the least turn her from her first faith; that having come into this country to the dwelling of Lord Shrewsbury, to please everyone and show that she only acted for her conscience, she had heard the ablest of their preachers for a whole Lent. At last she gave it up, which Lord Shrewsbury confirmed, asking her to continue. She found no edification; having lived till now in the true religion, it was not the time to change. Now she must remain firm and constant, as she intended to do; and rather than fail she would lose ten thousand lives, if she had them, shed her blood, and endure the tortures which they could inflict. Therefore, in order to console her, would they let her see her priest, to prepare her for death: it was all she wished for. They told her that could not be; it was against their conscience, which would accuse them if they did so, knowing that it was against God and their religion; that, as much as possible, they should hinder and take away such abominations, which offended God and their consciences; but she would be allowed to see a minister. Her Majesty said she would do nothing of the kind, and would have nothing to do with him; she wished neither to see nor hear him, and they need not trouble themselves any more trying to persuade her, for she saw they wished her to lose both body and soul. She hoped God would have mercy on her. She was already prepared, and He who knew her heart would pardon her. She was astonished that at the end they denied those things which the Queen had granted her; they had taken her priest, and when he became more necessary they denied him to her, a thing that was very cruel. It was told her that they did not know who had granted her a priest, but it would be a burden on their conscience if they allowed him to come to her. And intermingled with much conversation, it was told her as to her condemnation that it was found she could not live without danger to the life of the Queen and of religion, and that of all those who were occupied with her there was not one who could show the contrary. She complaining of her son, they said he had done his duty, and she must die in charity. She said she pardoned everybody and accused nobody, but in God's cause she could follow the example of David: pray God to confound and punish his enemies, and pardon her sins. At last, being pressed to see the minister, she asked when she must die; the answer was, to-morrow, about eight o'clock in the morning. She again asked for her priest, and said she could not make her *Will*, not having received her papers, for which she had written, and made Paulet write that there was nothing

which could be of any use to Elizabeth. She wanted to arrange with her treasurer, and not to disappoint her other servants. They told her that Wade, who had them, was in France. Then Her Majesty asked about her burial. They told her she could not be buried in France. As to her servants, they had no orders, but they saw nothing that would hinder them from doing as she desired, and have their gifts. She asked where her servants were, and what had become of Nau. They said they did not know. She asked if she was to die, and he be saved. They said they did not know, but he had not escaped. Her Majesty said she would die for the life of him who accused her and caused her death to save himself; then she was told she was no longer in the hands of Paulet, but that the earls, from now, would give her in charge to him, to deliver her up when they came.

“Then the servants of Her Majesty, crying out in tears, said the time was too short to arrange her affairs—one night was not enough; she would leave her servants destitute of all means, and to have pity upon them; that it seemed by their commission they had power to make the execution when they would—would it please them to defer it for a little time? The answer was that it could not be so. Her Majesty sent for her servants after supper, gave them a lecture on charity between themselves, and took leave of them in a long speech, giving them pardon for all, begged of them to pray God for her, admonished each in particular, requesting them to live in friendship among themselves, and to give over all past enmity and ill-will, showing how much reason, wisdom, and constancy she had. Then she parted her clothes among them, to each something, as conveniently as she could. In the night, after having slept some hours, she wrote her last *Will*, as fully as she could, and for the little time that she had gave orders for her movables, for the journey of her servants, and distributed to each some money, according to her will.

“In the morning, she admonished anew her servants, and then remained in prayer until the Sheriff arrived about nine o'clock, who led her away without allowing any of her servants to follow her. At the foot of the steps she found Melville, who took leave of her kneeling, who showed how difficult such an adieu was to support, and grieved that he must see such a spectacle after being so long separated from her. Her Majesty had asked the day before that Paulet would allow Melville to come before her death. At her earnest request they allowed Melville, Bourgoyne, Jervis, Gourgon,

Didier, Jane Kennedy, and Elspeth Curle to be present, at which, by the witness of all, she showed her great and royal courage, her constancy, above all her firmness to her religion and piety. After having spoken some words to those of whom she had spoken the day before to the lords, Her Majesty refused flatly to hear the minister, who insisted. She protested more zealously than ever, prayed to God apart in Latin, while the Dean did so according to his religion. After a few words Her Majesty recommended her servants to the Lords, and then gave them her benediction, prayed anew, moving everyone to pity, until, standing up, she made her two maids take off her veil, her mantle with train, and her stomacher, begging of them not to weep. Then anew she knelt down, holding her hands to heaven, holding the crucifix of wood which she had carried from her chamber, and did not release it until the end; made her eyes be bandaged by her maids, and without any other bands raised her head and extended her neck, which she kept quite rigid, and praying, waited the blow without any movement. As long as she could speak she repeated with a loud voice the words, '*In manus tuas domine commendo*' ('Into Thy hands, O Lord, I commend my spirit'), and immediately her spirit passed away, and the Queen of Scots was delivered from all her cares."

Bourgoyne adds nothing more. There can be no doubt that the cruel and inhuman conduct of Elizabeth, Walsingham, and Paulet, of which he had been so long an eye-witness, had fairly overwhelmed him with grief, and the last tragic scene had prevented him adding another word. This *Journal* can never be disregarded as a great factor in the consideration of Mary's unfortunate career, and particularly regarding her relations with Elizabeth and her position in the Babington Conspiracy.

CONCLUSION

It is difficult to read this *Journal* without emotion, more particularly when we think that the Royal victim had committed no crime and was absolutely innocent of any plot affecting the life of the Queen of England. After the kidnapping outrage her execution was clearly decided upon in the mind of Elizabeth, and it would have been better to have had the execution then than to have tormented Mary for another six months. No sooner was this outrage completed than the first step towards the death of Mary was

taken, under date 13th September, as recorded by Bourgoyne, when her personal servants, part of her household, were separated from her by force, and they never saw her again. On the 9th October following the remainder were separated from her in the same offensive way, and only her four maids of honour were left to attend her.

Four days after this the commissioners arrived from London to undertake the trial, which lasted three days, a trial that was remarkable for its illegal procedure:—

(a) By refusing to permit the accused to be defended by counsel.

(b) Compelling the accused to defend herself.

(c) Refusing to surrender to the accused her own papers to enable her to make her defence; which papers were surreptitiously seized by Elizabeth's order some time previously.

(d) For having its decision “cut and dry” before the trial took place.

These points have all been proved up to the hilt. The trial was undoubtedly the greatest farce in English history, and we think would be very generally denounced by the English people as an outrage on their national honour and an event that materially affected the prestige of their country. Had the vilest criminal been sentenced to death he would have been treated with indulgence and kindness up to his execution. Not so Queen Mary. In the estimation of Elizabeth no amount of torture was too much to administer, and she compelled it to be administered. It is evident from the record that Paulet had *carte blanche* after the sentence to treat her with greater severity than ever.

On the 19th November she wished to send a letter to Elizabeth respecting her will and arrangements for her funeral, and on Paulet being asked to forward it he replied that “he must first read it before it was sealed, as she (Queen Mary) might put something within of which he wished to be assured because of his mistress.” On 19th December Paulet was so insolent as to warn her “that it was her duty to thank the Queen (Elizabeth) for favours since her arrival in England and since, as she was much indebted to her!” On 12th January Paulet informed her that he could send no letters of hers to the Court without being authorised to do so. Mary wished to know if

he had letters prohibiting him from sending her letters, but he replied that he could not answer particular questions; and so the torture of the poor captive was carried on from day to day.

On 20th January Paulet informed Sir Andrew Melville that he must leave his mistress and appear no more before her. Melville was the master of her household, and probably her most devoted and faithful friend and counsellor. The separation of Melville was the greatest calamity that could have befallen her. Thus they deprived her of the services of her priest and also of her steward, and on 23rd January Paulet's porter informed her chief baker that he must no longer carry the rod before dinner; the rod was an emblem of royal dignity. Mary remonstrated with Paulet, stating that it would neither hurt nor profit anyone; but Paulet was immovable, and Mary had to stand the insult.

On 4th February, four days before the execution, Mary was ill, and her physician recommended herbs from the garden to cure her trouble. It will scarcely be credited that Paulet in a brutal manner refused to allow the herbs to be gathered—but afterwards he consented. All this persecution was by order of the Queen of England. Why, it may naturally be asked, was the Queen of Scots tortured in this manner after she had been tried and condemned and sentence of death pronounced? Surely her condemnation might have satisfied Elizabeth without resorting to those miserable tactics—cruelly insulting her and killing her by inches. Paulet, who was an uneducated man, was capable of administering the coarsest treatment, in all which he was supported by his mistress and received from her many expressions of gratitude for carrying out her wishes and keeping the Queen of Scots in constant misery. We may well ask, Was Elizabeth a woman, or was she a fiend in human form?

On 7th February, the day before the execution, the Earls of Shrewsbury and Kent, and Beale, Drury, and Paulet, desired an interview with her, but she was ill and in bed. They, however, insisted on seeing her, and were reluctantly admitted, Shrewsbury being the only one who had the common decency to uncover his head. What these rude and uncultivated men, all foes of hers, wanted was simply to read the death-sentence, which, had they been gentlemen, any two of them might have read the paper and the others remained outside; or, considering their errand, they might have had as much

consideration for the Queen as to wait till she got up and dressed. This document showed the cloven foot of Elizabeth. It described Mary as “formerly Queen of Scotland and Dowager of France,” which was an insulting reference; and her crime was that she had attempted to assassinate Elizabeth. When the paper was read Mary swore on the Bible that she had never sought, nor attempted to seek, the life of Elizabeth. In place of receiving this in solemn silence, seeing they had no authority to discuss anything with her, they with incredible insolence informed her that her Bible was the Pope's version and not binding. They offered her the Dean of Peterborough for consolation, “from whom she would learn what was the true religion, that she might no longer remain in the follies of Papistry and abomination.” The offer she rejected with scorn. On being informed that she was to die the following morning, she requested that her priest might help her to make her will; also that she wished to be buried in France. Both requests were refused, whether with or without Elizabeth's knowledge is not recorded. It was a disgraceful incident to all concerned.

And so we have arrived at the close of this great tragedy, and the spirit of the Queen of Scots has gone for ever beyond the jurisdiction of its royal persecutor. Mary's reputation has been dragged through the mire, and every effort made by adverse critics to slander her fair fame, but no authentic proof has been produced against her, no proof that will stand investigation. Her traducers have been compelled to fall back on forged or fabricated documents, and these have been freely put before us with the view of influencing the public mind against her.

It is evident from the most careful research that there is no authentic evidence to connect her either with the Darnley murder, the Casket Letters, or the Babington Conspiracy, while the Bothwell marriage was by the Ainslie Bond compulsory. Her life was full of trouble, and her last days were made bitter by suffering and distress. Can we wonder, after perusing Bourgoyne's *Journal*, that Mary Stuart regarded the scaffold with feelings of gratitude, and rejoiced that her captivity was at last concluded?

“When the day of toil is done,
When the race of life is run,
Father, grant Thy wearied one
Rest for evermore.”

CHAPTER XII

APPENDIX

Description of Queen Mary's first Parliament—Queen Mary's Proclamation anent religion—Her second Proclamation anent religion—Her third Proclamation anent religion—Declaration as to religion by Mary and Darnley—Text of her compulsory abdication—Procuratory signed compulsorily—Plots for her liberation—Text of letters in handwriting of Phillips:—

Queen Mary to Charles Paget, 20th May 1586

Charles Paget to Queen Mary, 29th May "

Queen Mary to Charles Paget, 27th July "

Queen Mary to Mendoza, 27th July "

Queen Mary's mottoes and devices, with translations

Queen Mary's Will

THERE are certain documents connected with the history of Queen Mary, not easily found elsewhere, documents which are of the very highest importance in estimating her character and the adverse criticism to which she has frequently been subjected. Specially we refer to her attitude on the question of religion, a point that has given rise to much controversy. No less than three proclamations were issued by Queen Mary, all of which we reproduce, and to which we direct the reader's attention. Each of them is conspicuous for the liberality of her opinions. It is evident from these that no attempt was ever made by her to impose the Catholic religion on the nation.

The proclamation regarding Moray's Rebellion is a document that is not usually included in the biographies of Queen Mary. This proclamation was the result of Moray and Morton's conduct in opposing to the very last Mary's marriage with Darnley and taking steps to create a rebellion in the kingdom. The Queen keenly resented this conduct, and although her position and influence were much stronger than that of the rebels, these two nobles were vindictive, unforgiving, and tyrannical to a degree. They both

led the conspiracy which resulted in Darnley's murder, and Morton was the man who behaved so treasonably and disgracefully at Carberry Hill and betrayed the Queen, an event which was followed by all her troubles.

We also give the text of the two fabricated documents—the Abdication and the Procuratory—signed by her at Lochleven on 24th July 1567, when Lord Lindsay of the Byres committed the outrage on the Queen by forcing himself into her bedchamber and compelling her to sign these papers under pain of death.

The letters in the handwriting of Phillips the spy, as also the text of Queen Mary's Will, are reproduced as being rather uncommon papers.

Queen Mary's Devices and Mottoes, which once adorned her private apartments, have, very fortunately for posterity, been carefully deposited in the State Paper Office. They have been specially translated for this volume, and must be admitted to be very ingenious and very curious, and full of pathetic interest. The translation was difficult on account of the age and obscurity of the text; but in their new form they are an invaluable addition to the history of the Queen.

QUEEN MARY AND HER FIRST PARLIAMENT

Letter from Randolph to the Earl of Rutland 10th June 1563 at Edinburgh:—

“Her Grace has now held her Parliament, the solemnity whereof hath been very great. On the 26th May her Grace rode to the Parliament House in this order:—gentlemen, barons, lords, and earls in their order; after these the trumpeters and such other music as they had; next the heralds; then the Earl of Moray, who carried the sword, the Earl of Argyll the sceptre, and the Duke the regalia. Then followed the Queen in her Parliament robes and a very fair rich crown upon her head. There followed Her Grace the noblemen's wives as these were in dignity, twelve in number; after them the four Maries, demoiselles of honour, or the Queen's minions, call them as pleases your honour, but a fairer sight was never seen. These being the principals, sixteen, there followed them as many more so wonderful in beauty that I know not what court may be compared to them. The choice, I

assure your lordship, that day was there of the whole realm. Having taken her place in Parliament, and silence being commanded, the Queen delivered, with a singular good grace, an oration short and very pretty, of which I send your lordship a copy. I am sure she made it herself, and she deserved great praise for delivering the same. I had that day the honour to escort Her Grace to the Parliament House and to be present at the whole solemnities during the time she was there. That day there was little done.”

QUEEN MARY'S PROCLAMATION ANENT RELIGION,
EDINBURGH, *25th August 1561*

“Forasmuch as the Queen's Majesty has understood the great inconvenience that may come by the division presently standing in this realm in matters of religion, that Her Majesty is desirous to see pacified by an order to the honour of God and tranquillity of her realm, and means to adopt the same by the advice of her Estates as soon as convenient may be. Her Majesty's resolution may be greatly hindered if any tumult or sedition be raised among the lieges. Therefore Her Majesty ordains letters to be directed charging all and sundry by open proclamation at the Mercat Cross of Edinburgh and other places, that the lieges continue in quietness, keep peace and civil society among themselves. In the meantime while the Estates of her realm may be assembled, and Her Majesty having taken a final order by their advice and consent, which Her Majesty hopes will be for the good of all—that none of them take on themselves publicly or privately to make any alteration or innovation on the state of religion, or attempt anything against the form which Her Majesty found universally observed on her arrival in this realm, under pain of death; with certification that if any subject violate this order he shall be held to be a seditious person and a raiser of tumult, and the said penalty shall be executed upon him with all rigour, as an example to others,—Her Majesty by the advice of the Lords of her Secret Council commands and charges her lieges that none of them take upon themselves to molest or trouble any of her domestic servants or any person who has come from France in her company, in word, deed, or countenance, or any cause whatever, either within her palace or outside of it, or make any division amongst them on any colour or pretence, under pain of death. Albeit Her Majesty is sufficiently persuaded that her good

and loving subjects would do the same for the reverence they bear to her person and authority even if no such command were published.”

SECOND PROCLAMATION,
ST. ANDREWS, *16th March 1562*

“Forasmuch as our Sovereign Lady remembering that soon after her arrival in this realm, understanding the great inconvenience that might follow by the differences in matters of religion, and being desirous to see the same pacified by a good order to the honour of God and tranquillity of the realm, directed letters, proclamations, and charges throughout the realm, straightly commanding her lieges that they should continue in quietness and keep peace and civil society among themselves. In the meantime the Estates might be assembled and a final order by their advice and consent might be taken in the matter that none of the lieges shall take in hand privately or openly to make any alteration on the state of religion, or attempt anything against the form which Her Majesty found publicly and universally observed on her arrival, under pain of death. With certification that if any violate this order he shall be held to be a seditious person and a raiser of tumult. Albeit the same was duly proclaimed so that none can pretend ignorance thereof. Nevertheless, some forgetting their duty, are reported to have contravened, and intend purposely to contravene, the same by innovation of the religion and ministration of the sacraments otherwise than the public form aforesaid. Such contravention if it be allowed to proceed unpunished may not only engender contempt for our authority, but raise tumult and sedition within the realm, to the hindrance of Her Majesty's good intentions for restoring peace in such matters. Her Majesty ordains open proclamation to be made at the Mercat Cross of all burghs of this realm, that they as far as in them lies endeavour to observe and keep the said former proclamation in every point and condition; that none of them presume to do anything that may tend to the violation thereof, under the penalty contained in the same, certifying them that as Her Majesty most lovingly will embrace all her subjects obeying her commands, so can she not of her honour and duty but hate and punish the transgressors thereof, specially where the matter concerns the keeping of good order, of which they may assure themselves when they shall feel the same and obtain the reward due to those who depart from their Sovereign's obedience.”

Confirmation of the foregoing proclamation; Holyrood, 30th June 1564:

“The Queen ordains the Keeper of her Signet to pass letters of the date hereof according to the ordinance made by her grace at St. Andrews, 16th March 1562, touching the matter of religion and the keeping of civil society among her subjects, nowise adding thereto or diminishing the same in any of its conditions; keeping this present Act for his warrant as he will answer to Her Majesty therefor.”

THIRD PROCLAMATION,
22nd August 1565

“The King and Queen remembering that soon after Her Majesty's arrival great inconvenience arose by differences in matters of religion, and being desirous to see the same pacified, directed letters, proclamations, and charges throughout the realm, commanding the lieges not to make any alteration on the state of religion or attempt anything against the form which Her Majesty found prevailing on her arrival, under pain of death; with certification that if any should act contrary to this he should be regarded as a seditious person and raiser of tumult. The same has been divers times duly proclaimed, so that none can pretend ignorance. Nevertheless, some forgetting their duty, it is reported that they have contravened, and intend to contravene, the same by introducing the religion and ministration of the sacraments otherwise than by the public form observed on Her Majesty's arrival. Others have already disobeyed their Majesties' commands and are denounced rebels and put to the horn. To cover their rebellion they endeavour to persuade the lieges to believe that their Majesties in prosecuting the rebels mean nothing else but the plain subversion of the state of religion as aforesaid. By such false reports they alienate the lieges from their loyalty. For eschewing of which false report their Majesties ordain letters to be directed to officers of the King and Queen, etc., charging all and sundry their lieges that they endeavour to observe and obey the former proclamation, and that none presume to attempt anything that may tend to the violation and breaking thereof under the penalty contained in the same.”

PROCLAMATION TOUCHING MORAY'S REBELLION

Declaration by the King and Queen, 3rd September 1565:—

“Forasmuch as in this uproar lately raised against us by certain rebels and others to blind the eyes of the simple people, we have given them to understand that the quarrel they had in hand was only religion, thinking with that cloak to cover their other ungodly designs. And so under pretence of that plausible argument to draw after them a large following of ignorant persons. Now, for preservation of our lieges whose cases were to be pitied if they blindly should be trapped in so dangerous a snare, it has pleased God, by the utterance of their own mouths and writings to us, to discover the poison that before lay hid in their hearts; albeit to persons of clear judgment the same was evident before. For what other thing might move the principal raisers of this tumult to put themselves in arms against us so unnaturally, upon whom we had bestowed so many benefits. The great honour we did to them, being thereof most unworthy, made them to misknow themselves, and their insatiable ambition could not be satisfied with heaping riches upon riches, and honour upon honour, unless they might receive in their hands ourselves and our whole realm, to be led, used, and disposed at their pleasure. But of this the multitude could not perceive if God, for disclosing of their hypocrisy, had not compelled them to utter their unreasonable desire to govern. For now, by letters sent from themselves to us, they make plain confession that the establishing religion will not content them, but we must perforce be governed by such counsel as shall please them to give us, a thing so far beyond all reason that we think the mere mention of such a demand is sufficient to make their nearest kinsfolk their mortal enemies. What is this but in a manner to invert the order of nature, to make the prince obey, the subject to command? The like was never demanded of any of our noble progenitors, nor of governors or regents. The princes ever chose their counsel of such as they thought most fit. When we ourselves were of less age, and on our first arrival in the realm, we had free choice of counsel at our pleasure. Now, when we are at our full majority, shall we be brought back to the state of pupilage and minority, or be put under tutelage?

“So long as some of them bore the whole swing with us, this matter was never called in question; but now, when they cannot be permitted to do and

undo all things at their own pleasure, they will put a bridle on our mouths and give us counsel after their own fantasy. This is the quarrel of religion they made you believe they had in hand; this is the quarrel for which they would have you hazard your lives, lands, and goods, in company with certain rebels against your natural princes; or, in plain language, they would be kings themselves, leaving us the bare name and title, taking to themselves the whole use and administration of the kingdom.

“We have thought good to make publication hereof so that you suffer not yourselves to be deceived under pretence of religion to follow them, who, preferring their own advancement to the public good, would, if ye hearken to their voice, draw you after them to your utter destruction. Assuring you that as we have hitherto had good experience of our clemency, and under our rule enjoyed in peace the possession of your goods and liberty of conscience, so may ye be in full assurance of the like hereafter, and have us always your good and loving princess as many as shall continue in due obedience and do the office of faithful and natural subjects.

“ST. ANDREWS, *3rd September 1565.*”

FABRICATED ABDICATION OF QUEEN MARY

“Mary, by the grace of God, Queen of Scots, to all and sundry, our judges and ministers of our laws, lieges and all to whom it effeirs, to whose knowledge these our letters shall come, greeting:—Forasmuch as after long, great, and intolerable pains and labours taken by us since our arrival in the realm for the government thereof, and keeping of the lieges in quietness, we have not only been vexed in our spirit, body, and senses, but altogether so wearied thereof, that our ability and strength of body is not able longer to endure the same. Therefore and because nothing earthly can be more comfortable and happy to us, or in our lifetime to see our most dear son the native prince of this our realm, placed in the kingdom thereof, and the crown royal set on his head; we of our own free will and special motive have demitted and renounced the government, guiding, and governing of this our realm of Scotland, lieges, and subjects thereof, in favour of our said son; to the effect that in all time coming he may peaceably and quietly enjoy the same without trouble and be obeyed as native king and prince of

the same by the lieges thereof. And understanding by reason of his youth he is not able in his own person to administer in his kingly government as equity requires until hereafter he come to the years of discretion; and also knowing the proximity of blood standing between our son and our dearest brother James, Earl of Bothwell, Lord Abernethy, etc., and having experience of the natural affection and kindly love he has in all times borne and presently bears towards us, honour and estate of our said son, of whose love and favour towards him we cannot but assure ourselves to whom no greater honour, joy, nor felicity on earth can come than to see him inaugurated in his kingdom, feared, revered, and obeyed by the lieges thereof. In respect whereof and of the certainty and notoriety of the honesty, ability, qualification, and sufficiency of our said dearest brother to have the care and control of our dearest son, realm, and lieges foresaid, during our son's minority, we have made, named, appointed, constituted, and ordained, and by these our letters, name, appoint, make, constitute, and ordain our said dearest brother James, Earl of Moray, regent to our said dearest son, realm, and lieges foresaid, during his minority and until he be of the age of seventeen years, and that our dearest brother be called during the said space regent to our son, realm, and lieges; so that our son after completing the years foresaid in his own person may take upon him the government, and use and exercise all and sundry privileges, honours, and other immunities that appertain to the office of a king, as well in governing his realm and people according to the laws, as in repressing the violence of such as would invade or unjustly resist him, or their or his royal authority; with power to our dearest brother James, Earl of Moray, in name, authority, and on behalf of our said most dearest son, to receive surrenders of whatever lands are holden of him, or of offices, castles, towers, fortalices, fishings, woods, benefices whatsoever; the same again in our son's name to give and deliver signatories thereupon, and upon the gifts of words, release of lands, marriages of heirs, falling, or shall happen to fall, into our son's hands as superior thereof; and also upon presentation of lands, benefices, escheat of goods movable and immovable, debts and tacks, reports and remissions; and upon the disposition of offices vacant or when they shall become vacant; to subscribe and cause to pass the Seals. The said office of regent to use and exercise in all things, privileges and commodities, as freely and with as great liberty as any regent or governor to us or our predecessors used in times bypast; and as if every privilege and article concerning the

said office were at length expressed and amplified in these our letters; promising to hold firm and stable on the word and faith of a prince to whatever things our said dearest brother in the premises happens to do; charging therefor all and sundry our judges and ministers of law, lieges, and others foresaid, to answer and obey our said brother in all and sundry things concerning the said office of regent as you and each of you will declare your loving subjects to our dear son, and under all pains, charge, and offence that ye may commit against His Majesty in that part.

“Subscribed with our hand and given under our Privy Seal at Lochleven the 24th day of July 1567, and of our reign the 25th year.”

[This abdication was a forgery. The text of the document the Queen never saw.]

PROCURATORY APPOINTING A COMMISSION TO MAKE ARRANGEMENTS IN MORAY'S
ABSENCE AND PROVIDING FOR THE CONTINGENCY OF HIS REFUSING THE REGENCY

“Mary, by the grace of God, Queen of Scots, to all and sundry our judges and ministers of law, lieges and others whom it effeirs, to whose knowledge these our letters shall come, greeting:—Forasmuch as by long, irksome, and tedious travel taken by us in the government of the realm and lieges thereof, we are so vexed and worried that our body, spirit, and senses are become unable longer to travel in that room; and therefore we have demitted and renounce the office of government of the realm in favour of our most only dear son, native prince of this realm; and because of his tender youth and inability to use the government in his own person during his minority, we have constituted our dearest brother James, Earl of Moray, regent to our said son, realm, and lieges foresaid; and in respect that our said dearest brother is actually furth of our realm and cannot instantly be present to accept the said office of regent, and use and exercise the same during our dearest son's minority. We, until his returning within our realm, or in case of his decease, have made, constituted, named, appointed, and ordained, and by these our letters make, constitute, name, appoint, and ordain, our trusty cousin and counsellor James, Duke of Chatelherault, Earl of Arran, Lord Hamilton; Mathew, Earl of Lennox, Lord Darnley, etc.; Archibald, Earl of Argyll; John, Earl of Atholl; James, Earl of Morton; Alexander, Earl of

Glencairn; John, Earl of Mar,—regents to our dearest son, realm, and lieges; and in case our said brother James, Earl of Moray, come within our realm and refuse to accept the office of regent upon his own person, we make, constitute, name, appoint, and ordain our trusty cousins and counsellors foresaid, and our said brothers, regents of our dear son, giving, granting, and committing to them, or any five of them conjointly, full power for our son, and in his name to receive surrenders of lands, make disposition of wards, marriage of benefices, escheats, offices, and other casualties and privileges whatsoever concerning the said office, signatories thereupon to make, subscribe, and cause to be passed by Seals; and to use and exercise the office of regent in all things as freely and with as great liberty as any regent or governor to us or our predecessors used in times past; promising to hold firm and stable, on the word and faith of a prince, to whatever things our said dearest cousins do in the circumstances; charging all and sundry foresaid to answer and obey our said cousins and regents in all and sundry things concerning the office of regent during our son's minority and until he be of the age of seventeen years complete, as you and each of you will declare yourselves loving subjects to our said most dear son, your native prince, and under all pain, charge, and offence that you and each of you may commit against His Majesty in that part.

“Subscribed with our own hand and given under our Privy Seal at Lochleven, 24th July 1565, and of our reign the 25th year.”

[The Queen signed this by compulsion. The text of the document is a fabrication.]

THE FOLLOWING WERE SOME OF THE SCHEMES FOR QUEEN MARY'S LIBERATION
FROM THE GRASP OF ELIZABETH, WITH A PORTION OF THE CORRESPONDENCE
WHICH FOLLOWED THEREON

In May, June, and July 1586, no less than three plots for Mary's liberation were proposed by the Catholics—one by John Savage for the assassination of Elizabeth and release of Mary; one by Ballard for an invasion of England and release of Mary; and one by Babington for her release by force of arms. These plots eventually culminated in one scheme, and Walsingham, by the aid of his spies, was able to intercept letters, decipher and copy them,

introduce matter of his own into the copies, and by this means brought about the ruin of all concerned, including Mary herself. The Babington plot [\[20\]](#) we have fully recited, but we now reproduce the following letters translated from the French, not hitherto published by us, excepting Nos. 3 and 4. They throw a very curious light over the startling events of these three months. The letters are No. 1, Queen Mary to Charles Paget; No. 2, Charles Paget to Queen Mary; No. 3, Babington to Queen Mary; No. 4, Mary to Babington; No. 5, Mary to Paget; No. 6, Mary to Mendoza, the Spanish Ambassador.

These letters are preserved in the State Paper Office in the handwriting of Phillips, one of the spies, and this throws suspicion on the whole. We cannot guarantee that any one of them is genuine, and it will be well for the reader to attach little importance to them; but as an illustration of the voluminous literature of that period, they will be read with interest. It was very probably these interpolated letters that gave rise to the kidnapping plot of 16th August. A writer in our own day (Strickland) says: "The tone in which Queen Mary writes on 13th July to Archbishop Beton shows that she was perfectly unconscious that any projects against Elizabeth's life were in contemplation; in the mass of papers seized at Chartley it is a striking fact that not one was produced in evidence against her."



MARY BETON,
One of the Queen's Maries.
From the Collection of MAJOR BETHUNE, of Balfour

Queen Mary to Charles Paget, 20th May 1586:—

“I have thought it good that you enter with the ambassador of Spain into the following overtures:—That I endeavour by all means to make my son enter into the enterprise (invasion of England), and if he does not, that I arrange a secret league among the Catholic nobility and adherents to be

joined with the King of Spain, to do what shall be thought meet for advancing the scheme, so being that they have plenty of men and money. Moreover, I shall arrange to have my son delivered into the hands of the King of Spain or the Pope, as shall be thought best, stipulating to set him at liberty when I shall desire, or that after my death, being Catholic, he shall desire to return to Scotland; and that the King of Spain shall never attempt anything to my prejudice or my son's (if he be Catholic) in the succession to the Crown. This is the best hostage that I and the Lords of Scotland can give to the said king for the performance of that which depends on them in this enterprise, but withal there must be a regent appointed in Scotland having commission from me and my son to govern the country in his absence, and I find no man so capable as Lord Claud Hamilton. He shall have a Privy Council, without which he shall not ordain anything of importance. I shall be obliged to the King of Spain if he will receive my son and instruct him in the Catholic religion, which is the thing of all things in this world I most desire, affecting rather the salvation of his soul, than to see him monarch of all Europe. And I fear much that so long as he remains where he is it will never be in my power to bring him again into the right ways, whereby there shall remain in my heart a thousand regrets if I should die and leave behind me a tyrant and persecutor of the Catholic Church. If you get a good answer from the ambassador, I would desire you to write Lord Claud informing him that the King of Spain is to set on this country (invasion of England), and desires to have the assistance of the Catholics of Scotland to stop any assistance that may come from there to the Queen of England. You will also inquire what help in men and money would be required from the said king to hold Scotland. If you get a favourable answer, you may inform Lord Claud that to assure himself of my son, if all things be done under his name and authority, it shall be necessary to seize his person if he cannot be willingly brought into this enterprise, and that the surest way would be to deliver him to the said king or the Pope, as shall be deemed best, Lord Claud to be regent in his absence.

“All this I will confirm and approve. For various reasons my name not to be named in this until the very last. You will say to Lord Claud, that indirectly you put him in hope that I shall make him be declared lawful heir to the Crown of Scotland should my son die without children, and that I shall make the Catholic princes of Christendom recognise and maintain

him. I have written to the Spanish Ambassador in favour of your brother Lord Paget and yourself. [\[21\]](#)

“CHARTLEY, *20th May*.”

Charles Paget to Queen Mary, 29th May 1586:—

“Since my last letter to your Majesty, a priest named Ballard, capable and discreet, has arrived who knows the most important Catholics in England and Scotland. He has been sent by them to announce this resolution to take up arms, provided they are assured of foreign assistance. I sent him to the Spanish Ambassador that he might report what he knew, and to state how many of the chief nobles and knights in the North and West country were ready to take up arms; what number of men, armed and unarmed, and how many of them had promised and therefore received the sacrament in order to make their obligation stronger; as now the Earl of Leicester has with him the best and most valiant captains and Protestant soldiers; and the people are annoyed and discontented at the oppression they have endured on account of the wars in the Netherlands. These times are more suitable than ever to accomplish with little trouble the deliverance of the Queen.

“The ambassador listened attentively, and requested Ballard to write down full details of the numbers from these provinces who would take up arms on Mary's behalf. Ballard said he could not name the persons, as he had pledged his word to the priest not to do so. The ambassador gave notice of the ports for landing and several other things which he thought the knowledge of would be necessary. Nevertheless he (Ballard) came with a resolution so general that the ambassador gave him other instructions to show him how to proceed, more particularly and by secret means assuring him that the King of Spain, after being fully satisfied, would give them prompt assistance. The principal thing with which he is charged is to assure and guarantee your person, and if strong enough to try by every possible means to carry off your Majesty from the hands of those who restrain you. After this we consulted about the best port for landing troops. I think Newcastle, Hartlepool, or Scarborough, or some other port in the north; our help will be by the Prince of Parma. Our design will not be suspected by the Queen of England, as she would never dream of enemies this way (the East

coast); she believing that all designs would come by way of Spain. Ballard will be here again immediately after my return from the baths, and you will be promptly informed of everything that happens.”

Queen Mary to Charles Paget, 27th July 1586:—

“Upon the return of Ballard to this country, one of the principal Catholics who sent him (to the Queen) communicated their intentions according to what you had written before, more particularly asking directions for the execution of the design. I have written them a full despatch, giving my advice concerning all requirements; as much for those on this side as for those outside the kingdom, in order to bring their enterprise to a successful issue. I have shown them that they must not lose time, having undertaken to carry out the resolution contained in the despatch, they must hasten to communicate this to Mendoza, the Spanish Ambassador, sending for the purpose either Ballard or some other of the most faithful and secret that can be found, and who will be sufficiently instructed by them, having promised them that I would write to Mendoza as I do now, to give credit to these messengers, the Stewards: so that I hope if ever the Pope or the King of Spain have had intentions to provide aid to this state, the occasion is now offered them very advantageously. Finding that the Catholics are so well prepared there will be more to do to keep them back than to urge them forward. As to the other difficulties that the ambassador refers to, such as my escape from here and other things, he will be sufficiently satisfied. It only remains now to go on as quickly as possible, both in Rome and Spain, to procure the required support in horses, foot-soldiers, arms, ammunition, and money.”

Queen Mary to Mendoza, the Spanish Ambassador, Chartley, 27th July 1586:—

“Since yours of the 29th May I have been pleased to see that my good brother the King of Spain begins to retaliate the injuries and practices of this queen (Elizabeth); against him not only for the good of this island, but principally for the maintenance of the greatness and reputation of Christendom. You cannot conceive how the exploit of Leicester and Drake

has raised the hearts of the enemies of the king, and how his long patience with this queen has tried the confidence the Catholics have always had in him. As to myself, I frankly confess I was very much discouraged to enter into new proposals, seeing how little effect those of the past have had. I shut my ears to the different overtures and propositions that have been made to me for the last six months by Catholics, not being able to give them any answer. Now, having heard of the good intentions of the king, I have written very fully to some Catholics, with my opinion on each point, that they may resolve together on the execution of these. In order to gain time I have asked them to send you, with all diligence, one of themselves sufficiently instructed to treat with you concerning the general offer which has been made to you. On every point they will show you and the king that upon their faith they have given me assurance that, faithfully and sincerely, they will accomplish at the hazard of their lives what they promise by their deputy. You will credit them as if I myself had sent them. He will inform you of the means of my escape from here, which I undertake to effect provided that I can be assured of sufficient strength to receive and preserve me while waiting on the assembling of troops. Thank God, my health at present is better than it has been for three months. I thank you very fully for your good offers on the part of the king, your master, for the 12,000 crowns he is pleased to bestow for my deliverance; in which they will be employed and in nothing else, for it is to my great regret that the other 12,000 have been of so little profit to Scotland. I have notice from London which tells me ... but without urgent necessity I shall be very unwilling to be importuned for these things, which I resist owing to the tax required for this sum. You will help me if you please to testify to the king the obligation which I have to him and how willingly I should repay it if ever I have the means; and to you in particular I hope not to remain ungrateful. I have given charge to my ambassador to receive what you will deliver to him, and to send it to me with all diligence by the secret means that I have made known to him.”

“P.S.—As I was sending you enclosed, yours of 5th July reached me. Thank God, this way of communication is so well established that from henceforth you can write to me when you please. May God give help to the king my good brother, preserve his children, and give him all the honour, contentment, and prosperity that his piety and care for the good of

Christianity merit; in respect of which he will have my daily prayers, since I cannot serve him otherwise. I thank you for your diligence in having imparted to him what I committed to you in my letter of May as much for what concerns myself as for those poor English gentlemen whom I cannot abstain from recommending to you, especially the liberty of Morgan, and some pension, if by any means you can help him. I have already answered you about the money that you obtained for me, and I shall put myself in communication with my ambassador concerning what more has to come.”

QUEEN MARY'S DEVICES AND MOTTOES

In Queen Mary's apartments the following devices and mottoes were discovered,—in Latin and French, [\[22\]](#)—and have fortunately been preserved.

QUEEN MARY'S DEVICES

Adorning the walls of her bedchamber

1. A vine root, to the east a hand pouring out a flagon of wine upon the root. Motto—

“Mea sic mihi prosunt.”
“Thus do mine help me.”

2. A lion snared and held in nets (*pris et tenu*), five or six beasts more like hares than rabbits (*cinq ou six bêtes plutôt lievres*, etc.): beneath is written this saying—

“Et lepores devicto insultant leoni.”
“Even hares mock a captive lion.”

3. A lioness and cub by her side.

“Unum quidem sed leone.”
“It is indeed but one, but by a lion.”

4. A leopard holding in mouth a hedgehog.

“Premit et heret.”
“It grips, and holds.”

5. Two globes, and a naked sword between them (*une espée decouverte*), at whose point there is a moon.

“Luna non subjacet orbi.”
“The moon is not subject to the earth” (or “world”).

(*N.B.*—I prefer to read “subjacet,” not “subjicit,” for this latter would require *orbem*.)

6. A lofty pyramid surmounted by a branch of laurel. (“Lubie” I can’t find, but conjecture it to be laurel or some branch of victory.)

“Te stante florebo.”
“While thou standest I shall flourish.”

7. A crescent beneath a sword.

“Donec totum impleat orbem.”
“Until it fill the whole world.”

(The French is “au bout de l’espée il y a.”)

8. Un port de mer et une (main) a (droite) fectant une pierre dedans. A seaport and a (hand) (feminine to agree with “une”), whereas “navire” in the original is masculine. A seaport, and a hand to the right casting in a stone.

“Donec emergerit undis.”
“Until it come forth (emerge) from the waves.”

9. A hedgehog in a half-stormy sea, the hedgehog fairly laden (or covered) with pebbles.

“Ne volutetur.”
“Let it be tossed about.”

9A. Une roue de moulin dans l’eau. A mill-wheel in water. Spanish motto

—
“Llena de dolore non da de speranza.”
“It soothes sorrow, but does not supply hope.”

10. A dove in a cage, and, above, an eagle ready to devour it—from which (bird) this device escapes—in Italian—

“Male pareo, ma peggiora temeo.”
“I seem in evil plight, but I fear worse.”

10A. An upright ship in a stormy sea, sails, masts, and ropes broken, ready to founder.

“Nunquam mei vector.”
“Never the bearer of me.”

11. Un bouclier comme fiche en haut, au dessus une espée. A shield as support above, a sword underneath.

“Aut hoc aut super hoc.”
“Either with this shield or upon it.”

(The Greek warrior brought home dead on his shield.)

12. A tree called Picea (dwarf-pine) and a fallen cedar, like this sketch—

“Floret picea quod cedrus cecidit.”
“The dwarf-pine flourishes now that the cedar has fallen.”

(The allusion is to Elizabeth.)

13. An eagle's wing among many small feathers partly tinted red (or tinged with red) and tattered.

“Magnatum vicinitas.”
“The semblance of the nobles.”

(The great ones of Mary's time were bloodstained and petty: the eagle's wing indicates the Queen.)

14. A vine root and hand grasping another branch or root, above them the legend—

“Virescit volucris virtus.”
“Strength grows to the bird.”

“The bird gains strength”: not “volucre” but “volucris.”

15. At the end of a valley a large oak broken and dismantled by the wind, also a sapling (or shrub) (*qui d'en saut*), which springs out of it.

“Ut superis visum.”
“As seen by those above” (*i.e.* by Heaven).

16. Une colonne d'or demye: a split golden column.

“Idem intus et extra.”
“The same within and without.”

17. Deux coronas en tronc (two crowns on a tree-trunk), et une au ciel (and one in the sky), this one made of stars and flames flowing (flammes de feu decoulantes).

“Manet ultima cœlo.”
“The last (crown) awaits in heaven.”

18. Another crown like the preceding, but that it resembles the two on earth.

“Aliaque moratur.”
“The other tarries.”

Not “*aliam*” but “*alia*”: the other crown tarries.

19. A queen at the foot of a cross, crown and sceptre beneath on the sword, many double “Rã” (for “Regina.”)

“Undique Rã, Rã” (Regina, Regina).
“Everywhere a queen, a queen.”

20. Three seals pierced by an arrow.

“Dederit fortunam Deus ne.”
“Has God given (or sent) this fortune.”

21. A tree laden with crowns and sceptres mixed together, with croziers, cardinals' hats, chains of precious stones, wallets for bread, beneath it is a woman with her eyes bandaged, having in her hand a book.... (I suggest “elle va prendre de l'arbre,” she advances to take from the tree.)

“Ut casus dederit.”
“As luck shall have bestowed,”
or, “As chance shall bestow.”

22. The order of the Annunciation, with these four capital letters (lettres majuscules) F. E. R. I.

The rising sun. Motto—

“Quae cecidere resurgunt.”
“Things fallen rise again.”

23. A circle with triangle within.

“Trino non convenit orbis.”
“The circle does not suit the triangle.”

24. A great oak in wind storm: around the oak, the legend—

“Basta chio venti?”
“Hold, enough, ye winds!”

but this is conjecture of the third word.

25. The polar star and mariner's compass, misfortune turning it straight for the Pole.

“Se virtute mactare” (not “mactire”).
“To sacrifice self by virtue.”

Or it may mean not “virtue” but “strength”—hence, “Bravely to sacrifice self.”

26. A salamander in the fire.

“Nutrisco et extinguor.”
“I nourish and am quenched” (or “extinguished”).

27. Lunar eclipse.

“Ipsa sibi lumen, quod invidet aufert.”
“She is a light to herself, what she envies she withdraws.”

28. Some tall saffron plants.

“Fructus calca, dat amplos.”
“Tread down the fruits, it yields plenty.”

29. A furnace in which gold and quicksilver are set side by side.

“In fide societas.”
“Companionship comes of trust.”

30. A mill-wheel turning in water.

“Movere nec capere.”
“To stir yet not entrap” (or take, “arrest”).

31. La lune peu chaude (so I read it). The moon slightly warmed, observing the sun by her side, having the earth on her other side. (Lunar eclipse.)

“Terrena obcæcavi.”
“I have darkened the things of earth.”

32. Hopeless.

“Sic dulcia in amarum.”
“So do things sweet turn to bitterness.”

33. A little (captive) bird, above it an eagle ready to swallow it.

“Il mal ini preune ma spendato? il peggio.”
“Evil seizes me, but I look for worse.”

34. A hare in labour bringing forth....

“Dabit (tempus) his quoque finem.”
“Time will put an end to these things likewise.”

QUEEN MARY'S WILL

The night before her death Queen Mary was composed enough, and had the wonderful presence of mind to write her will in the following businesslike terms:—

In the name of the Father, Son, and Holy Ghost, I, Mary, by the grace of God, Queen of Scotland and Dowager of France, being on the point of death and not having any means of making my will, have myself committed these articles in writing, and I will and desire that they have the same force as if they were made in due form:—

In the first place, I declare that I die in the Catholic Apostolic and Romish faith. First, I desire that a complete service be performed for my soul in the Church of St. Denis in France, and another in St. Peter's at Rheims, where all my servants are to attend in such manner as they may be ordered to do by those to whom I have given directions and who are named therein. Further, that an annual obit be founded for prayers for my soul in perpetuity in such place and after such manner as shall be deemed most convenient. To furnish funds for this I will that my houses at Fontainebleau be sold, hoping that the King will render me assistance, as I have requested him to do in my memorandum. I will that my estate of Trespagny be kept by my cousin de Guise for one of his daughters, if she should come to be married. In these quarters I relinquish half of the arrears due to me, or a part, on condition that the others be paid, in order to be expended by my executors in perpetual alms. To carry this into effect the better, the documents shall be looked out and delivered according to the assignment for accomplishing this. I will also that the money which may arise from my

lawsuit with Secondat, be distributed as follows:—First, in the discharge of my debts and orders hereafter mentioned and which are not yet paid: in the first place, the 2000 crowns to Curle, which I desire to be paid without any hesitation, they being a marriage portion, upon which neither Nau nor any other person has any claim, whatever obligation he may hold, inasmuch as it is only fictitious, and the money is mine, and not borrowed, which since I did but show him, and afterwards withdrew it; and it was taken from me with the rest at Chartley; the which I give him, provided he can recover it agreeably to my promise in payment of the four thousand francs as promised at my death, one thousand as a marriage portion for an own sister, and he having asked me for the rest for his expenses in prison. As to the payment of a similar sum to Nau it is not obligatory, and therefore it has always been my intention that it should be paid last, and then only in case he should make it appear that he has not acted contrary to the conditions upon which I gave it him, and to which my servants were witnesses. As regards the 1200 crowns which he has placed to my account as having been borrowed by him for my use—600 of Beauregard, 300 from Jervis, and the remainder from I know not whom, he must repay them out of his own money, and I must be quit and my order annulled, as I have not received any part of it, consequently it must be still in his possession, unless he has paid it away. Be this as it may, it is necessary that this sum should revert to me, I having received nothing; and in case it has not been paid away, I must have recourse to his property. I further direct that Pasquier shall account for the moneys that he has expended and received by order of Nau, from the hands of the servants of Mons. de Chateauneuf, the French Ambassador. Further, I will that my accounts be audited and my treasure paid. Further, that the wages and sums due to my household, as well for the last as for the present year, be paid them before all other things, both wages and pensions, excepting the pensions of Nau and Curle, until it be ascertained what there is remaining, or whether they have merited any pensioning from me, unless the wife of Curle be in necessity or be ill-treated on my account: the wages of Nau after the same manner. I will that the 2400 francs which I have given to Jane Kennedy (afterwards married to Sir Andrew Melville; and was drowned by the upsetting of a boat, the year of the marriage of James VI.) be paid to her in money, as it was stated in my first deed of gift, which done, the pension of Willie Douglas shall revert to me, which I give to Fontenay (Nau's brother) for services and expenses for which he has had no

compensation. I will that the 4000 francs of that banker's be applied for and repaid: I have forgotten his name, but the Bishop of Glasgow will readily recollect it; and if the first order be not honoured, I desire that another may be given in the first money from Secondat.

The 10,000 francs which the ambassador has received for me, I will that they be distributed among my servants who are now going away, viz.—First, 2000 francs to my physician; 2000 francs to Elizabeth Curle; 2000 to Sebastian Page; 2000 to Mary Page, my goddaughter; 1000 to Beauregard; 1000 to Gourgon; 1000 to Jervis. Further, that out of the rest of my revenue, with the remainder of Secondats and all other casualties, I will that 5000 francs be given to the Foundling Hospital at Rheims; to my scholars, 2000 francs. To four mendicants such sum as my executors may think fit, according to the means in their hands; 500 francs to the hospitals; to Martin *escuyer de cuisine*, 1000 francs; 1000 francs to Annibal, whom I recommend to my cousin de Guise, his godfather, to place in some situation for his life, in his service. I leave 500 francs to Nicholas, and 500 for his daughters when they marry. I leave 500 francs to Robert Hamilton, and beg my son to take him and Monsieur de Glasgow, or the Bishop of Ross. I leave to Didier his registership, subject to the approbation of the King. I give 5000 francs to Jean Lauder, and beg my cousin of Guise, or of Mayne, to take him into their service, and Messieurs de Glasgow and de Ross to see him provided for. I will that his father be paid his wages, and leave him 500 francs; 1000 francs to be paid to Gourgon for money and other things with which he supplied me in my necessity. I will that if Bourgoyne should perform the journey agreeably to the vow which he made for me to St. Nicholas, that 1500 francs be paid to him for this purpose. I leave, according to my slender means, 6000 francs to the Bishop of Glasgow, and 3000 to the Bishop of Ross. And I leave the gift of casualties and reserved seigneurial rights to my godson the son of Monsieur de Ruissieu. I give 300 francs to Laurenz, and 300 to Suzanne; and I leave 10,000 francs among the four persons who have been my sureties and to Varmy the solicitor. I will that the money arising from the furniture which I have ordered to be sold in London shall go to defray the travelling expenses of my servants to France. My coach I leave to carry my ladies, and the horses, which they can sell or do what they like with. There remain about 300 crowns due to Bourgoyne for the wages of past years, which I desire may be paid him. I leave 2000

francs to Sir Andrew Melville, my steward. I appoint my cousin, the Duke of Guise, principal executor of my will; after him, the Archbishop of Glasgow, the Bishop of Ross, and Monsieur de Ruissieu, my chancellor. I desire that Le Prean may without obstacle hold his two prebends. I recommend Mary Page, my goddaughter, to my cousin Madame de Guise, and beg her to take her into her service, and my aunt de Saint Pierre to get Mowbray some good situation or retain her in her service for the honour of God.

Done this day 7th February 1587.

MARIE (Queen).

MEMORANDUM OF THE LAST REQUESTS WHICH I MAKE TO THE KING

To cause to be paid to me all that is due to me, of my pensions, as also of money advanced by the late Queen, my mother, in Scotland, for the service of the King, my father-in-law, in those parts, that at least an annual obit may be founded for my soul, and that the alms and little endowments promised by me may be carried into effect. Further, that he may be pleased to grant me the benefit of my dowry for one year after my death to recompense my servants. Further, that he may be pleased to allow them their wages and pensions during their lives as was done to the officers of Queen Aliener (of Austria, sister of Charles V.). Further, I entreat him to take my physician into his service, according to his promise to consider him as recommended. Further, that my almoner Prean may be replaced in his profession, and for my sake have some trifling benefice conferred upon him so that he may pray to God for my soul during the rest of his life. Further, that Didier, an old officer of my household, whom I have recompensed with a registership, may be permitted to enjoy it for his life, being already far advanced in years.

Written on the morning of my death this 8th February 1587.

MARIE (Queen).

LETTER OF POPE PIUS V. TO MARY QUEEN OF SCOTS

The custodier of the following important letter has authorised its inclusion in this volume:—

“MOST DEAR DAUGHTER IN CHRIST,—Health and Apostolic Blessing.

“Having read your Majesty's letter of October 15th wherein you have fully acquainted Us of your state and calamity, and being moved thereat in spirit not otherwise than We ought, We have grieved bitterly over your misfortunes and woes; but having learnt that your Majesty has fallen into these mishaps in the defence of Catholic Faith, this comfort has somewhat eased our sorrow, so that We can neither call nor deem you unhappy whom our Saviour calls 'blessed.' For how can you be unhappy, having borne so many persecutions for justice sake? You, who for the maintaining of Almighty God's true worship, have not hesitated to undergo such toils, and to encounter so many dangers: you, in fine, who out of your rare zeal for the Catholic Faith, have feared neither bands nor prisons, a fugitive from your own kingdom: all of which things, although to our human spirit seemingly hard and painful and grievous to be endured, can nevertheless be sweetened by the love of the divine goodness that is sweeter than all things.

“Dearest Daughter, although grief for all that you have lost, and care for your kingdom, may vex your Majesty, still, as neither honour, nor kingdoms, nor fleeting riches are to be sought after since we must leave them behind us: if we seek after good things, let us covet such as we may possess everlastingly: while if we fear evil things, let us rather dread those evils which are borne by the reprobate without end of their woes. Therefore we ought neither to be wearied out with evil, nor despair of what is good, for God Who rescued David from out the hand of Saul, and Who brought the Apostle Paul from out the lion's mouth, can likewise free you from many mishaps, and restore you to your own kingdom.

“That this may come to pass, We on our part are ready to aid you with all the helps that lie in our power, as We have hitherto done. For this end We shall treat in our own name with each of the Kings whom you mention, and strongly commend to them your safety and your kingdom's welfare, as We ought to, being ready at all times to pay you all such good offices of our fatherly goodwill as are deserved by your brave and unconquered spirit, and most manifest care of the Catholic Faith. We shall furthermore, in the

lowliness of our heart, beseech Almighty God in our prayers to help you, now that you are labouring under so many misfortunes, that He may vouchsafe mercifully to give you fortitude and perseverance in adversity.

“Given at Saint Peter's, Rome, under Fisherman's ring, January 9th, 1570, in the fourth year of our pontificate.”

FOOTNOTES:

[1] Petit.

[2] M. M. Shoemaker.

[3] Petit.

[4] For a narrative of it see Author's work on *Mary Queen of Scots, and who wrote the Casket Letters?*

[5] Strickland.

[6] State Paper Office.

[7] Hosack.

[8] Hosack.

[9] Hosack.

[10] Tytler.

[11] For details, see the Author's *Queen of Scots*, vol. ii. pp. 222-52.

[12] Petit.

[13] Before James I. had ascended the English throne Pope Clément VIII. caused it to be intimated to him that he prayed for him as the son of a virtuous mother; that he desired for him all kinds of prosperity, temporal and spiritual, and trusted yet to see him a Catholic (Ranke's *History of the Popes*, vol. ii. pp. 222).

[14] Petit.

[15] Labanoff.

[16] See *Mary Queen of Scots*, by the Author, vol. ii. p. 224.

[17] Petit.

[18] Strickland.

[19] *Life of Egerton*.

[20] *Mary Queen of Scots, and who wrote the Casket Letters?*

[21] Labanoff, vol. vi. p. 343.

[22] Translated by the Hon. Mrs. Maxwell Scott, of Abbotsford, and the Rev. Dr. Conway, Manchester.

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- Ambiguous hyphens at the ends of lines were retained.
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- Mid-paragraph illustrations have been moved between paragraphs and some illustrations have been moved closer to the text that references them. The List of Illustrations was changed accordingly.
- Footnotes were moved to the end of the book and numbered in one sequence.
- Error not corrected, page 256: "The which was so undoubted...." The missing words could not be found.

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